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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

September 15, 2026

WEBVTT

1
00:00:09.330 --> 00:00:12.270
Boardroom: Hello, everyone!

2
00:00:13.060 --> 00:00:16.250
Boardroom: If you could please quiet down, take your seats…

3
00:00:18.340 --> 00:00:37.899
Boardroom: Thank you very much. I'm calling to order the Berkeley City Council meeting. Today is Tuesday, September 15th, 2026, and it is 6.02 PM. Can we start off with the roll, please? Okay, calling the roll. Councilmember Kesarwani is currently absent.

4
00:00:38.270 --> 00:00:40.790
Boardroom: Folks? Kaplan?

5
00:00:41.550 --> 00:00:44.850
Boardroom: Bartlett is currently absent.

6
00:00:45.930 --> 00:00:47.120
Boardroom: Trey Gibb?

7
00:00:49.580 --> 00:00:51.610
Boardroom: is here.

8
00:00:52.100 --> 00:01:00.360
Boardroom: O'Keefe? I'm here. Blackaby? Here. Lunapara? Here. Humbert? Present. And Mayor Ishii? Here.

9
00:01:00.490 --> 00:01:02.340
Boardroom: Okay, quorum is left. All right.

10
00:01:02.990 --> 00:01:13.430

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Boardroom: Thank you very much. Okay, it is the first meeting of the month, and the first meeting back from recess, so we will start off with a land acknowledgement statement, read by Councilmember O'Keefe.

11
00:01:14.620 --> 00:01:16.290
Boardroom: Am I still the Vice Mayor?

12
00:01:16.740 --> 00:01:23.540
Boardroom: Sorry. Yes, Vice Mayor… Just curious, just curious. Okay, I will read the land acknowledgement now.

13
00:01:24.590 --> 00:01:41.499
Boardroom: The City of Berkeley recognizes that the community we live in was built on the territory of the Huchun, the ancestral and unceded land of the Chichenyo-speaking Ohlone people, the ancestors and descendants of the sovereign Verona Band of Alameda County.

14
00:01:41.850 --> 00:01:48.570
Boardroom: This land was and continues to be of great importance to all of the Ohlone tribes and descendants of the Verona Band.

15
00:01:48.810 --> 00:02:00.940
Boardroom: As we begin our meeting tonight, we acknowledge and honor the original inhabitants of Berkeley, the documented 5,000-year history of a vibrant community at the West Berkeley Shell Mound.

16
00:02:01.420 --> 00:02:04.900
Boardroom: and the Ohlone people who continue to reside in the East Bay.

17
00:02:05.120 --> 00:02:16.359
Boardroom: We recognize that Berkeley's residents have and continue to benefit from the use and occupation of this unceded, stolen land since the City of Berkeley's incorporation in 1878.

18
00:02:16.990 --> 00:02:29.410
Boardroom: As stewards of the land regulating the City of Berkeley, it is not only vital that we recognize the history of this land, but also recognize that the Ohlone people are present members of Berkeley and other East Bay communities today.

19
00:02:29.670 --> 00:02:38.360

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Boardroom: The City of Berkeley will continue to build relationships with the Lejeon tribe and to create meaningful actions that uphold the intention of this land acknowledgement.

20
00:02:38.900 --> 00:02:48.089
Boardroom: Thank you very much, Vice Mayor. Now, since this is the first meeting back, we will also say the Pledge of Allegiance.

21
00:02:48.680 --> 00:02:49.650
Boardroom: Please stand.

22
00:02:54.850 --> 00:02:58.880
Boardroom: to the flag of the United States of America.

23
00:03:00.390 --> 00:03:02.210
Boardroom: stands for Formation.

24
00:03:04.750 --> 00:03:05.650
Boardroom: justice.

25
00:03:10.830 --> 00:03:16.589
Boardroom: Okay, so we have a couple of ceremonial items, starting…

26
00:03:17.160 --> 00:03:26.140
Boardroom: with the America the Entrepreneurial Proclamation. So, if I could please have… Eleanor… oh, there you are.

27
00:03:26.310 --> 00:03:27.220
Boardroom: Come on up!

28
00:03:28.050 --> 00:03:49.020
Boardroom: Alright, so earlier this year, I attended the U.S. Conference of Mayors, where I learned about America the Entrepreneurial, a campaign to renew our nation's entrepreneurial promise in honor of America's 250th anniversary. Thank you so much, Eleanor, and the entire Office of the Economic Development team for your tremendous work in supporting our businesses and entrepreneurs.

29
00:03:49.050 --> 00:03:57.570

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Boardroom: The theme for my State of the City Address, which is next week on September 23rd, is doing business in Berkeley, so it's very appropriate that we're doing this today.

30
00:03:59.350 --> 00:04:04.360
Boardroom: Celebrating Berkeley's entrepreneurial spirit through America the Entrepreneurial 2026.

31
00:04:04.530 --> 00:04:27.399
Boardroom: Whereas, as America marks its 250th startup birthday in 2026, we must celebrate the entrepreneurial spirit that built our nation, states, and cities, forged by starters, makers, doers, and dreamers who pursued a better future. And whereas entrepreneurs are essential to fostering economic prosperity, creating homegrown jobs, raising incomes, generating wealth.

32
00:04:27.430 --> 00:04:48.500
Boardroom: Building stronger communities, diversifying goods and services, and reducing inequality and poverty. And whereas entrepreneurs have played a critical role in revitalizing the City of Berkeley, and it is fitting to publicly recognize and celebrate the vital contributions of entrepreneurs to the prosperity and well-being of our community, and whereas the Office of Economic Development

33
00:04:48.500 --> 00:05:05.749
Boardroom: In the City of Berkeley serves as a non-regulatory entity in the city that supports all Berkeley businesses and entrepreneurs from ranging industries, and whereas the City of Berkeley is home to UC Berkeley, over 370 innovation startup companies, and many local shops and restaurants.

34
00:05:05.750 --> 00:05:14.549
Boardroom: It values entrepreneurs, businesses, and startups with the continued work of the Office of Economic Development, the Berkeley Startup Cluster, and business associations.

35
00:05:14.550 --> 00:05:35.140
Boardroom: Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, do hereby proclaim that celebrating America the Entrepreneurial will allow the City of Berkeley to continue encouraging more entrepreneurship across the city, and celebrate its entrepreneurs and entrepreneurial spirit throughout 2026, during our nation's 250th birth year.

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36
00:05:37.860 --> 00:05:52.999
Boardroom: Thank you so much, Mayor and Council. As we learned, my name's Eleanor Hollander, I'm the Manager of the Office of Economic Development, or OED, here in the City of Berkeley, and it is a great pleasure to receive this proclamation. Our mission in the Office of Economic Development

37
00:05:53.000 --> 00:05:57.999
Boardroom: Which, and our remit, which encompasses the commercial and cultural institutions in our entire city.

38
00:05:58.000 --> 00:06:04.690
Boardroom: ends with the sentiment of wanting entrepreneurs and established businesses alike to feel welcome in Berkeley and thrive.

39
00:06:05.130 --> 00:06:12.909
Boardroom: From our innovation startups that find resources and community in our Berkeley Startup Cluster, which is a unique partnership between the National Lab.

40
00:06:12.910 --> 00:06:37.899
Boardroom: our university, our Downtown Business Association, our Chamber of Commerce, and of course, the City of Berkeley. To our brick-and-mortar establishments nestled in our diverse commercial districts, our office is here to support accessing the City services and celebrating their service to our community. In addition, I wanted to take a moment to recognize and commend our long-standing entrepreneurs in Berkeley. Those with businesses in operation for 25 years.

41
00:06:37.900 --> 00:06:52.710
Boardroom: or more. Soon we'll be rolling out our legacy business program, acknowledging these Berkeley businesses who've been practicing their craft and demonstrating creative entrepreneurship for more than a quarter century. And many more for an actual century.

42
00:06:52.750 --> 00:07:08.949
Boardroom: It's an incredibly unique and immense opportunity to work in a city and a community where both the new and the old, the young and the wiser, we won't say older, entrepreneurial establishments can thrive side by side.

43
00:07:08.950 --> 00:07:16.710

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Boardroom: People can continue to discover what makes Berkeley so special. Like our local marketing campaign, hashtag DiscoveredInBerkeley says.

44
00:07:16.850 --> 00:07:26.729
Boardroom: This is a special place, where in the same way, you can discover a new element on the periodic table, or a vintage fine in one of our many, fine establishments in our commercial districts.

45
00:07:27.020 --> 00:07:39.580
Boardroom: It's really a tremendous opportunity that we in Berkeley can feel proud of our entrepreneurs and in this business community. So thank you again for honoring, nurturing this group, and we really appreciate the spirit tonight.

46
00:07:48.110 --> 00:07:50.870
Boardroom: Hold on.

47
00:08:14.640 --> 00:08:15.320
Boardroom: It's too late.

48
00:08:23.140 --> 00:08:32.770
Boardroom: Okay, so for our second proclamation this evening, we have recognizing September 2026 as Hunger Action Month.

49
00:08:33.280 --> 00:08:37.490
Boardroom: Councilmember Bartley, did you want to read this proclamation?

50
00:08:37.610 --> 00:08:46.599
Boardroom: So, I think that Andrew Crispin from Berkeley Food Network is here. Yes, would you like to come up and receive it?

51
00:08:47.160 --> 00:08:51.260
Boardroom: And this was requested by Councilmember Bartlett's office.

52
00:08:52.160 --> 00:08:55.289
Boardroom: Thank you so much. Happy birthday.

53
00:08:58.280 --> 00:08:59.190
Boardroom: Approach.

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54
00:08:59.770 --> 00:09:06.619
Boardroom: Recognizing September 2026 as Hunger Action Month.

55
00:09:07.090 --> 00:09:18.119
Boardroom: Whereas the City of Berkeley recognizes September as National Hunger Action Month, a nationwide effort to raise awareness and inspire action to address food insecurity and hunger in our communities.

56
00:09:18.290 --> 00:09:35.559
Boardroom: And whereas external factors such as federal legislation in conjunction with the high cost of living, especially of food in the Bay Area, have exacerbated food insecurity, individuals experiencing poverty must often choose between vital expenses, including rent, healthcare, and food.

57
00:09:35.910 --> 00:09:44.889
Boardroom: And whereas the City of Berkeley acknowledges the struggle of individuals and families in our community experiencing food insecurity and hunger, we encourage our residents

58
00:09:45.050 --> 00:09:53.449
Boardroom: Send a helping hand by supporting one of the community organizations in our city working to create greater food sovereignty by volunteering their time and treasure.

59
00:09:54.030 --> 00:09:57.460
Boardroom: And whereas the work of groups such as the Berkeley Food Network.

60
00:09:57.680 --> 00:10:12.139
Boardroom: The Basic Needs Food Pantry, Inside Housing, formerly known as the Berkeley Food and Housing Project, Resource Reorg, and Village of Love, as well as all their volunteers and supporters, are critical to the ability of everyone in our community to thrive.

61
00:10:12.480 --> 00:10:24.220
Boardroom: And whereas these organizations, and countless other organizations, mutual aid organizations, and caring individuals provide direct services, food, and other resources for those in our community who need it.

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62
00:10:24.770 --> 00:10:27.609
Boardroom: Now, therefore it be resolved that the Mayor, Adina Ishii.

63
00:10:27.730 --> 00:10:36.219
Boardroom: On her birthday, no less, the Mayor of the City of Berkeley does hereby recognize September 2026 as Hunger Action Month in the City of Berkeley. You're here.

64
00:10:41.480 --> 00:10:56.130
Boardroom: City Council, Mayor, audience here, my name is Andrew Christman, I'm the Executive Director of Berkeley Food Network, and I am so honored to be in a community where we recognize food as a basic right, and are taking action to make sure our neighbors are fed. Thank you for this recognition.

65
00:11:21.980 --> 00:11:28.689
Boardroom: Thank you, Councilmember, for bringing that up for our, for our proclamation this evening.

66
00:11:28.910 --> 00:11:38.960
Boardroom: Okay, we are now moving on to City Manager comments, and, I think our city auditor is also here… oh, yes, and then after, we will have our city auditor.

67
00:11:39.270 --> 00:11:48.880
Boardroom: Okay, thank you, Madam Mayor. I'd like to make a few comments about the Harrison Street encampment, the corridor, and the potential community impacts.

68
00:11:49.150 --> 00:12:02.620
Boardroom: This morning, as many of you know, we began closing the encampment to everyone there, except for the 7 people who Judge Chin ordered us to continue working with on disability accommodations, as well as people living in RVs.

69
00:12:02.820 --> 00:12:07.230
Boardroom: The city's required to carry out this work in accordance with court orders.

70
00:12:07.300 --> 00:12:12.989

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Boardroom: Including requirements to offer replacement survival gear, provide packing assistance, and store belongings.

71
00:12:12.990 --> 00:12:27.399
Boardroom: They're not hazardous or contaminated. Additionally, the court ordered the city to exempt disabled individuals from the city's space-related constraints as long as they proposed locations that met specific criteria identified by the court.

72
00:12:27.500 --> 00:12:35.590
Boardroom: The City has ordered to evaluate areas in the city that the Berkeley Homeless Union and individuals living in the encampments identified for relocation.

73
00:12:36.510 --> 00:12:42.729
Boardroom: the city… Has received numerous complaints about areas in the city, mostly centered around

74
00:12:42.940 --> 00:12:51.629
Boardroom: 9th and Camellia, 4th and Camellia, and 2nd Street, where individuals either already have or are considering relocating.

75
00:12:51.880 --> 00:12:58.389
Boardroom: The city did not suggest these locations, or any location, as a sanctioned or approved encampment place.

76
00:12:58.590 --> 00:13:09.160
Boardroom: And the city's hands were tied in evaluating these locations, as only certain factors, such as path of travel, could be considered, not the general impact on surrounding communities.

77
00:13:09.470 --> 00:13:16.560
Boardroom: The City does not suggest locations for people to camp, nor does the city approve locations for encampments.

78
00:13:16.940 --> 00:13:36.040
Boardroom: We know that living outside lowers life expectancy, and our goal is to end unsheltered homelessness by moving people indoors, not moving them around on the street, which is why we've pursued programs like our Berkeley Care Beach program, and applied to the state for millions of dollars to expand housing opportunities for people living on the streets.

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79
00:13:36.630 --> 00:13:43.470
Boardroom: The Berkeley Homeless Union is demanding sanctioned and city-assisted relocation to alternative encampment sites.

80
00:13:43.580 --> 00:13:53.779
Boardroom: This is part of their demands. A federal judge, Chen, who oversees these suits, has ordered the city to consider any location suggested by the Berkeley Homeless Union.

81
00:13:54.040 --> 00:13:59.790
Boardroom: We were ordered to go to these locations and assess them against our various city codes and regulations.

82
00:13:59.900 --> 00:14:02.930
Boardroom: Governing belongings and tents in the right-of-way.

83
00:14:03.140 --> 00:14:09.359
Boardroom: We were disallowed by the judge from considering the overall size of the tent encampment in this analysis.

84
00:14:09.800 --> 00:14:21.260
Boardroom: Any location that did not violate federal, state, and local rules, such as ADA passage on the sidewalk, interference with driveways or parking meters or fire hydrants, and other similar considerations.

85
00:14:21.360 --> 00:14:33.129
Boardroom: was imposed upon the city by the court as a place to which people could relocate. We are actively arguing against this in court, and we are appealing this ruling to the Ninth Circuit, but the appeals process will take months.

86
00:14:34.150 --> 00:14:53.859
Boardroom: It's also important to understand that if violations of any relevant state or local law other than this base limitation in the city's policies are found to be present at any encampment locations, we can enforce, but we must follow our own policies and procedures in so doing. The City will continue to vigorously defend its interest in court.

87
00:14:53.860 --> 00:15:01.190

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Boardroom: The city's abatement efforts were not halted today, despite many filings by BHU today to try and stop that abatement on an

88
00:15:01.190 --> 00:15:08.740
Boardroom: emergency basis, and our city attorney's office, who I thank, appeared in federal court earlier today and defended the city's abatement efforts.

89
00:15:08.760 --> 00:15:10.560
Boardroom: Thank you.

90
00:15:11.980 --> 00:15:16.839
Boardroom: Thank you, Mr. City Manager. I also just wanted to say that…

91
00:15:16.960 --> 00:15:23.540
Boardroom: you know, this was a very long, complicated, and painful process, and I understand

92
00:15:24.100 --> 00:15:47.079
Boardroom: that it needed to happen for real health and safety reasons. However, I also want to be clear, as you stated, that clearing the encampment is not by itself a solution. It doesn't end anyone's homelessness, it just changes where the immediate problem of homelessness is visible. Our real goal, and the only thing that actually solves this, is getting people into long-term, stable housing. And I remain committed to that work.

93
00:15:47.540 --> 00:15:51.309
Boardroom: We'll have our city auditor come up, with comments. Thank you.

94
00:15:58.100 --> 00:16:12.119
Boardroom: Good evening, Mayor and Council. I just wanted to briefly highlight a new special report from our whistleblower program, the Evaluation of Workplace Relationship Policies, which is item number 14 on tonight's consent calendar.

95
00:16:12.250 --> 00:16:23.349
Boardroom: This report is a good example of how information received through the Whistleblower program can identify broader risks and issues, even if it does not lead to an investigation.

96

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00:16:23.440 --> 00:16:41.409
Boardroom: In this case, we received a report concerning a romantic relationship involving a manager and an employee, and the potential for perceived favoritism. The conduct described was not prohibited under current city policy, so we did not investigate the reported relationship.

97
00:16:41.500 --> 00:16:45.729
Boardroom: Instead, we use the information to conduct a broader policy review.

98
00:16:46.160 --> 00:16:47.690
Boardroom: So what did we find?

99
00:16:47.840 --> 00:17:03.180
Boardroom: We found that Berkeley's current policies do not address romantic, dating, or cohabitating relationships when they intersect with hiring, supervision, and other employment decisions. The City, therefore, does not have consistent requirements for disclosure.

100
00:17:03.210 --> 00:17:09.049
Boardroom: Recusal or managing potential of conflicts of interest in these situations.

101
00:17:09.280 --> 00:17:23.409
Boardroom: We also found that Berkeley's policies are more limited than approaches used by nearby cities of Oakland and San Francisco, which does address a broader range of personal relationships and provide additional tools for managing conflicts of interest.

102
00:17:24.020 --> 00:17:28.910
Boardroom: This report also connects to our recent contract audit that was released.

103
00:17:29.100 --> 00:17:36.679
Boardroom: Where we recommended strengthening the city's ethical standards, including guidance for city officials, staff, contractors.

104
00:17:36.700 --> 00:17:49.300
Boardroom: In disclosing personal, professional, and business relationships. Both reports highlight the importance of identifying relationships that could create, or appear to create conflicts in city decision-making.

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105
00:17:50.000 --> 00:17:57.810
Boardroom: It's important that we take steps to prevent any scandals or corruption involving workplace relationship that may be of conflict of interest.

106
00:17:58.000 --> 00:18:01.320
Boardroom: We made 3 recommendations to strengthen the city's framework.

107
00:18:01.730 --> 00:18:12.410
Boardroom: Management agreed with these recommendations and plans to evaluate the city's employment of near-relatives policy and provide training following the policy development and labor relations process.

108
00:18:12.520 --> 00:18:24.430
Boardroom: Our third recommendation addresses a broader governance issue. The city manager's administrative regulations do not govern all elected officials, charter officers, appointed

109
00:18:24.430 --> 00:18:43.120
Boardroom: officials, boards, and commissions. We therefore recommend that the city consider… the City Council consider nepotism and cronyism provisions in the municipal code so that appropriate safeguards can apply more consistently citywide, and also that we can be more consistent with Oakland and San Francisco.

110
00:18:43.330 --> 00:18:52.900
Boardroom: The item on tonight's consent calendar recommends that Council ask the City Manager to implement Recommendations 1 and 2, consistent with the management response.

111
00:18:53.180 --> 00:19:00.369
Boardroom: And Recommendation 3 to the Agenda and Rules Committee to consider whether and how to pursue that broader policy I'd mentioned.

112
00:19:00.610 --> 00:19:08.029
Boardroom: I finally want to thank HR and the City Attorney's Office for their assistance with this report. Thank you.

113
00:19:09.460 --> 00:19:11.760
Boardroom: Thank you so much, Madam City Auditor.

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114
00:19:11.880 --> 00:19:21.740
Boardroom: I really appreciate all of the work that you do and your team. Thank you so much. We will now take public comment on non-agenda matters.

115
00:19:29.530 --> 00:19:38.019
Boardroom: Right, so we'll draw 5… Names from the drum for in-person speakers. I have one minute each.

116
00:19:38.340 --> 00:19:43.869
Boardroom: And then we will go to the first 5 hands raised on the Zoom.

117
00:20:17.480 --> 00:20:33.530
Boardroom: And while you're pulling that, I did just want to say, since it is also the first meeting back of the month, we will take public comment by employee unions after this, so if there are any employee unions here that would like to speak, just so you know, you're on deck. Okay. So the five names are…

118
00:20:33.770 --> 00:20:42.060
Boardroom: Gina Rieger… Jason Martins… Alana A.

119
00:20:42.350 --> 00:20:45.760
Boardroom: Cheryl, and 8th and Harrison.

120
00:20:49.320 --> 00:20:51.820
Boardroom: So come on up whenever you like.

121
00:20:52.850 --> 00:20:53.920
Boardroom: Any order.

122
00:21:00.080 --> 00:21:01.840
Boardroom: Go, come, go ahead.

123
00:21:07.940 --> 00:21:31.600
Boardroom: Good evening. I was here on the evening of July 28th for the Hopkins, issue, and the day before, as I had mentioned when I spoke then, I had sent the City Council, the City Manager, and the City Attorney an email with correspondence between me and Chief Sprague regarding

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124
00:21:31.600 --> 00:21:36.089
Boardroom: Alternative 1, and the Class 4 bicycle lanes.

125
00:21:36.090 --> 00:21:40.830
Boardroom: I think, Councilmember Tregeb, you were the one who queried

126
00:21:41.020 --> 00:21:54.650
Boardroom: Sprague at the meeting to find out whether he had, in fact, signed off, or approved, or whatever word you want to use for the Hopkins, bike… Class 4 bike lanes.

127
00:21:54.650 --> 00:22:01.630
Boardroom: And I pointed out that the memorandum that Kesarwani, Ishii, and Humbert submitted

128
00:22:01.710 --> 00:22:05.040
Boardroom: Had the version 1… the,

129
00:22:05.330 --> 00:22:22.900
Boardroom: version 1 of the bike lane from the fights meeting of April 15th, and not what was currently being discussed. And you went ahead and voted nonetheless. Thank you, your time. It's an abusive process. Thank you.

130
00:22:23.040 --> 00:22:25.750
Boardroom: Shh, folks, come on.

131
00:22:26.660 --> 00:22:28.990
Boardroom: I'm Jason Martins, and I'm yielding my time.

132
00:22:30.120 --> 00:22:35.260
Boardroom: Thank you, Jason. Hi, I'm Catherine Hookting, and good evening, Madam Mayor and City Council.

133
00:22:35.620 --> 00:22:45.190
Boardroom: I'm here this evening to ask for clear answers about how the city is reviewing and scoring bids for the current Public Safety Technology RFP.

134

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00:22:45.190 --> 00:23:04.370
Boardroom: Right now, some items are listed as required, but these companies are still giving points based on whether or not they meet them. We need to be clear. If something is required, a company that submits the RFP and does not meet that requirement, they should be rejected. It should not just lose points and stay in the process.

135
00:23:04.750 --> 00:23:29.730
Boardroom: These required items include… the city owns its data. The city is notified if there is a data breach with financial penalties for improper sharing. The technology is set to protect privacy by default. The technology meets the city's security and privacy rules. The company follows Criminal Justice Information Services, or CJIS, requirements. The company follows Berkeley's sanctuary policies and limits access by federal immigration agencies.

136
00:23:29.730 --> 00:23:30.950
Boardroom: agencies.

137
00:23:31.210 --> 00:23:43.880
Boardroom: These are called requirements for a reason. We need clear answers from you about why they are being scored as points instead of… excuse me, instead of being treated as requirements. Thank you. Thank you.

138
00:23:44.240 --> 00:23:46.900
Boardroom: I further question the City Manager.

139
00:23:48.880 --> 00:23:57.569
Boardroom: Since we don't have this up, I'm gonna just… oh, you got it? Okay. Great, thank you, I was just gonna ask for that. Welcome back, I hope y'all had a great,

140
00:23:57.990 --> 00:23:59.010
Boardroom: Recess?

141
00:23:59.870 --> 00:24:04.380
Boardroom: I was there this morning and witnessed the abject failure

142
00:24:04.890 --> 00:24:15.239

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Boardroom: That was the encampment at 8th Street and Harrison. It was horrible to watch. I don't know if any of you… have any of you ever gone to an encampment eviction?

143
00:24:15.290 --> 00:24:25.609
Boardroom: It is traumatizing. It's traumatizing to watch. It's not only traumatizing to the people who are getting evicted. It's traumatizing to the community members, and to our city workers.

144
00:24:26.350 --> 00:24:33.329
Boardroom: It's an abject failure of imagination, a failure of society, a failure of kindness, and a failure of this city.

145
00:24:33.500 --> 00:24:42.350
Boardroom: How come we don't have a safe, stay-sanctioned encampment in Berkeley? How come we don't? There's an empty lot behind my house that's been empty for over 30 years.

146
00:24:42.700 --> 00:24:46.349
Boardroom: I know there was a referral to the city manager, but we…

147
00:24:46.980 --> 00:24:50.699
Boardroom: That's not what I'm talking about. I'm talking about someone championing

148
00:24:50.740 --> 00:25:07.620
Boardroom: a place for these unhoused people who are our neighbors, and who are our community, and no one up here on the dais, none of you, not one championed it. And that's why we had what happened today. It's a failure. Thank you, Alana. Let's flip the Berkeley City Council. Alana, thank you.

149
00:25:14.330 --> 00:25:17.070
Boardroom: Let's do it!

150
00:25:22.830 --> 00:25:26.919
Boardroom: Flip the Berkeley City Council, that's right.

151
00:25:27.220 --> 00:25:32.510
Boardroom: Y'all should be ashamed, because I was also down there this morning at 7 AM.

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152
00:25:33.410 --> 00:25:35.349
Boardroom: And what was happening?

153
00:25:36.270 --> 00:25:37.780
Boardroom: Bulldozers.

154
00:25:39.090 --> 00:25:50.690
Boardroom: Looked like Gaza, in a way. People living with trash, mice, no toilets, no water, no dumpsters.

155
00:25:52.270 --> 00:25:56.759
Boardroom: Just cops and bulldozers and public works people.

156
00:25:57.110 --> 00:26:02.730
Boardroom: Ragu, what did he do? Absolutely fucking nothing.

157
00:26:03.530 --> 00:26:08.619
Boardroom: He didn't help people. He wouldn't even let people in that were pressed.

158
00:26:08.900 --> 00:26:13.660
Boardroom: Because they didn't want people to see. They were so special.

159
00:26:14.350 --> 00:26:24.450
Boardroom: They even put smoking trash in the dumpster, and then it burst out into flames. Don't you know that when there's smoke, there's fire?

160
00:26:26.090 --> 00:26:28.630
Boardroom: Thank you, Cheryl. No! You're not…

161
00:26:28.820 --> 00:26:47.209
Boardroom: I'm not done. Your time is up. Y'all need to do better. Cheryl, your time is up. We need to find services and do better and not traumatize up, thank you. Those that are living on our streets. They deserve better! Thank you for your comments, Cheryl. Cheryl, your time's up.

162
00:26:52.240 --> 00:26:56.410

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Boardroom: Alright, nobody claiming the last speaker card, or… Yes.

163
00:26:57.130 --> 00:27:01.450
Boardroom: Well, who wrote Heath and Harrison, okay? I did.

164
00:27:01.840 --> 00:27:04.489
Boardroom: I'm at 8th and Harrison every single week.

165
00:27:05.090 --> 00:27:08.080
Boardroom: And I can barely look at all of you.

166
00:27:09.800 --> 00:27:10.990
Boardroom: when there.

167
00:27:11.220 --> 00:27:25.060
Boardroom: You claim that this is your top priority? Why aren't you speaking out? Why aren't you doing more? All of you, all of you, all of us, have a responsibility to do something.

168
00:27:25.280 --> 00:27:43.990
Boardroom: Berkeley deserves better. There are elders who are distraught, animals terrorized. People have had to go to the hospital because of the trauma that has gone on before, as you know, June 4th of last year.

169
00:27:44.070 --> 00:27:46.759
Boardroom: When the police threw smoke bombs.

170
00:27:46.980 --> 00:27:54.430
Boardroom: into people's tents to get them out. People did not forget that. You are all complicit.

171
00:27:54.710 --> 00:27:58.489
Boardroom: Especially the city manager.

172
00:27:59.410 --> 00:28:00.360
Boardroom: Yes.

173
00:28:01.180 --> 00:28:07.539

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Boardroom: People were not helped. Immediately, the city went against what the judge…

174
00:28:08.190 --> 00:28:19.629
Boardroom: Thank you. The Mayor has a PR. Jesus, welcome to PR. Your time is up. Thank you. I know my time is up. Your time is up as well.

175
00:28:22.730 --> 00:28:27.769
Boardroom: is, Kit Saginore is the first speaker on Zoom.

176
00:28:35.470 --> 00:28:36.600
Kitt Saginor: Can you hear me?

177
00:28:36.600 --> 00:28:37.459
Boardroom: Yes, go ahead.

178
00:28:37.760 --> 00:28:47.609
Kitt Saginor: Thank you. Along with Catherine Hutchting, I'm asking for clear answers about how the City is reviewing and scoring bids for the current Public Safety Technology RFP.

179
00:28:47.780 --> 00:29:05.669
Kitt Saginor: It's really important to notice that some items are listed as required, but companies are still being given points based on whether they meet them. We need to be clear. If something is required, a company that does not meet that requirement should be rejected. It should not just lose points and stay in the process.

180
00:29:05.670 --> 00:29:09.110
Kitt Saginor: The required items include that the city owns its data.

181
00:29:09.110 --> 00:29:21.420
Kitt Saginor: The city is notified if there is a data breach with financial penalties for improper sharing. The technology is set to protect privacy by default. The technology meets the city's security and privacy rules.

182
00:29:21.460 --> 00:29:33.449
Kitt Saginor: The company follows Criminal Justice Information Services, or CJIS, requirements, and that the company follows Berkeley's sanctuary policies and limits access by federal immigration agencies.

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183
00:29:33.670 --> 00:29:41.950
Kitt Saginor: These things are called requirements for a reason. We need clear answers about why they're being scored instead of treated as requirements. Thank you.

184
00:29:43.810 --> 00:29:46.509
Boardroom: Next is, Rocky Chow.

185
00:29:54.160 --> 00:29:54.870
Rocky Chau (he/him): Hello?

186
00:29:55.530 --> 00:29:56.599
Boardroom: Yes, go ahead.

187
00:29:57.830 --> 00:30:05.110
Rocky Chau (he/him): Yes, I would like to cede my time to,

188
00:30:12.350 --> 00:30:12.980
Rocky Chau (he/him): So…

189
00:30:13.060 --> 00:30:14.050
Boardroom: Hello?

190
00:30:18.390 --> 00:30:20.039
Boardroom: Are you there, Rocky?

191
00:30:25.010 --> 00:30:33.130
Boardroom: Rocky, your time is running out. Is there someone you want to cede your time to? He muted himself again. Rocky, you…

192
00:30:33.410 --> 00:30:35.409
Boardroom: Want to speak, you can unmute.

193
00:30:38.230 --> 00:30:43.880
Boardroom: Okay, maybe we'll just… Move on to the next.

194
00:30:45.690 --> 00:30:49.600

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Boardroom: Alright, next is… Jerry?

195
00:30:56.160 --> 00:31:01.199
Jerry’s iPad: Yes, hello, this is Jesse Sheehan at the Chess Club, you can hear me?

196
00:31:01.690 --> 00:31:02.750
Boardroom: Yes.

197
00:31:03.530 --> 00:31:20.120
Jerry’s iPad: Hello. I want to thank Judge William Chen for ruling that the City of Berkeley did, in fact, break the law as it relates to, homeless services. And that was before your government, Mrs. Ishii, and it was one person.

198
00:31:20.120 --> 00:31:24.960
Jerry’s iPad: Peter Radu, and he's still with your government, working for Mr.

199
00:31:24.960 --> 00:31:39.280
Jerry’s iPad: Paul. Paul, why is Peter Verdue still on your staff? You had a federal judge say he broke the law. It has opened our city up to litigation. He broke the law. Never.

200
00:31:39.510 --> 00:31:44.270
Jerry’s iPad: Has a person stayed on city staff that broke the law?

201
00:31:44.380 --> 00:31:47.940
Jerry’s iPad: Miss Ishii, I'm greatly disappointed in you.

202
00:31:48.560 --> 00:32:01.210
Jerry’s iPad: I'm going to sit on your campus, on your alma mater, every day until your re-election, if Peter Dew stays on that staff. Every day, I will work to make sure you're not re-elected.

203
00:32:01.910 --> 00:32:08.129
Boardroom: Thank you, Jesse. Next is a caller with a number ending in 211.

204
00:32:13.980 --> 00:32:18.330

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1510****211: Hi, my comment actually addressed to Eleanor.

205
00:32:18.510 --> 00:32:24.990
1510****211: Orlando. Are you kidding me? Have you walked down Telegraph Avenue? Chattuck Avenue? University Avenue?

206
00:32:25.290 --> 00:32:27.750
1510****211: Third or half the stores are vacant.

207
00:32:28.490 --> 00:32:38.629
1510****211: What you have done to our business, you've cost us millions of dollars. You have… I actually have millions of dollars of credit lines available to me. I get 5, 10 calls every week.

208
00:32:38.830 --> 00:32:46.400
1510****211: from different finance institutions. And what is worse, what you call the citizens in Berkeley, they have nowhere else to go.

209
00:32:46.550 --> 00:32:47.920
1510****211: To do what we have done.

210
00:32:48.270 --> 00:32:55.470
1510****211: You should all be ashamed of yourself. And really, Mayor Ishii, very disappointed. He just followed Aragin.

211
00:32:55.660 --> 00:32:59.940
1510****211: and Bates, as some of the worst mayors in Berkeley history.

212
00:33:00.110 --> 00:33:03.479
1510****211: Terrible. I will call again. I'm not done with you yet.

213
00:33:09.620 --> 00:33:12.510
Boardroom: Thank you. Alright, thanks.

214
00:33:13.380 --> 00:33:16.359
Boardroom: Next is Margarita.

215
00:33:21.790 --> 00:33:32.979

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Margarita Fedorova: Yes, hello, can you hear me? Yes. Okay, so, yeah, I'm a student at UC Berkeley, also getting me and other students politically engaged.

216
00:33:33.000 --> 00:33:42.080
Margarita Fedorova: And other students notified me of the question of whether to lift a ban on chemical weapons, like tear gas, smoke.

217
00:33:42.080 --> 00:33:48.829
Boardroom: I'm so sorry, I think we're actually not, addressing this at the moment. We're currently taking public comment on non-agenda matters only.

218
00:33:48.830 --> 00:33:50.380
Margarita Fedorova: My bad, y'all, my bad.

219
00:33:50.380 --> 00:33:52.610
Boardroom: That'll come later in the agenda.

220
00:33:52.610 --> 00:33:53.750
Margarita Fedorova: Okay, I misunderstood.

221
00:33:53.750 --> 00:33:55.020
Boardroom: No, that's alright.

222
00:33:55.290 --> 00:34:01.140
Boardroom: Next is… Deontology?

223
00:34:07.170 --> 00:34:08.210
deontology: Hello?

224
00:34:09.290 --> 00:34:10.259
Boardroom: Yes, go ahead.

225
00:34:10.260 --> 00:34:13.649
deontology: Yes, I'd like to give my time to Derek Wallace, I think he's in the audience.

226
00:34:15.500 --> 00:34:16.940

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Boardroom: Oh, there's Derek, alright.

227
00:34:17.350 --> 00:34:18.030
deontology: Thank you.

228
00:34:18.030 --> 00:34:19.150
Boardroom: Okay, thank you.

229
00:34:26.889 --> 00:34:32.660
Boardroom: Hey, everyone. Hi, City Council. I'll make this quick.

230
00:34:32.820 --> 00:34:51.630
Boardroom: The doing business in Berkeley thing. The reason I'm here is that I'm a tenant at Evans Manor, which used to be known as Barrington Hall. We have a lot of problems, we've gone to the rent board and have got no help, so I'm here asking if the City Council will start up some kind of commission about not just our building, Evans Manor, but we're owned by the Berkeley Student Cooperative.

231
00:34:51.679 --> 00:34:59.310
Boardroom: And, we are suffering through conditions of, extreme mold, asbestos, rats, roaches.

232
00:34:59.400 --> 00:35:16.819
Boardroom: Trash piling up. They're not, securing our facilities, so people have been coming in, stealing packages, assaulting people. We would like the police to get involved. If anybody is, watching this also, any journalists, we have some really juicy stories for you. You will not believe the stuff that's happening in the building.

233
00:35:16.970 --> 00:35:29.979
Boardroom: We've already had one tenant die, others have been hospitalized, and it's getting to be, like, emergency status. Can we have… can anybody grant me their minute also? Is that a thing? Yeah? Is that cool? Somebody that has to have…

234
00:35:30.160 --> 00:35:46.699
Boardroom: Yeah, we didn't… so this is off-agenda comments, so you can't do that at this time, but, if one of my staff has a card to give you, then we'll follow up. Thank you. Well, I'm gonna reach out directly to Cecilia, since she's my… That's fine. My staff will also come and talk to you. Excellent. Thank you.

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235
00:35:48.060 --> 00:35:52.550
Boardroom: Okay, last speaker is, Jessica.

236
00:35:57.760 --> 00:35:59.020
Yesica Prado: Hello, can you hear me?

237
00:35:59.440 --> 00:36:00.160
Boardroom: Yes.

238
00:36:01.120 --> 00:36:08.659
Yesica Prado: Hi, thank you. Yes, I'm just here to let you guys know about what has happened at 8th and Harrison Streets, which is totally illegal.

239
00:36:08.820 --> 00:36:12.890
Yesica Prado: None of the city staff wanted to follow the judge's order, which is actually…

240
00:36:12.890 --> 00:36:29.390
Yesica Prado: engage in the interactive process to talk about the disability accommodations for people. Bhu filed them on time. You know, the notice says filed by September 14, and I did that. I followed up many times, and the ADA coordinator did not even respond at all until, like, late in the evening.

241
00:36:29.390 --> 00:36:52.410
Yesica Prado: And then, basically, the city moved in without actually providing the accommodations that were required by the court. So, just so you know, you will be held in contempt, and the fact that you keep doing this, this is repeatedly being done, this is the third time that a person has been swept without their accommodations, this is not acceptable. So I just ask you to please refrain from doing this action, and to please refrain from keeping city staff that

242
00:36:52.410 --> 00:37:01.349
Yesica Prado: want to violate the laws. Like, it is clear, it has been written, so please pay attention, and please do the best that it is for everybody in this community.

243
00:37:01.460 --> 00:37:02.029

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Yesica Prado: Thank you.

244
00:37:03.220 --> 00:37:04.650
Boardroom: Thank you.

245
00:37:06.080 --> 00:37:06.980
Boardroom: Okay.

246
00:37:08.150 --> 00:37:14.279
Boardroom: So we can move on to the employee union public comments. Thank you.

247
00:37:14.560 --> 00:37:18.250
Boardroom: Are there any public, comments from employee unions here?

248
00:37:18.690 --> 00:37:20.490
Boardroom: Any employee unions?

249
00:37:20.890 --> 00:37:27.200
Boardroom: If there's any designated representatives of employee unions for public comment online, you could raise your hand.

250
00:37:29.310 --> 00:37:34.980
Boardroom: Alright, I don't see any, so we can move… move on.

251
00:37:35.470 --> 00:37:36.250
Boardroom: Oh.

252
00:37:36.360 --> 00:37:41.990
Boardroom: No, he's not a… he's not a designated representative of an employee union.

253
00:37:42.980 --> 00:37:46.600
Boardroom: Okay. No, we can… Move on.

254
00:37:47.380 --> 00:38:00.469
Boardroom: Okay. Thank you very much. Okay, we're moving on to the consent calendar now. And so, we have an urgent item that's been brought before us this evening.

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255
00:38:02.600 --> 00:38:09.819
Boardroom: Go ahead, Councilmember Blyn. Madam Mayor, thank you for the indulgence, and I'll be very brief. There's some copies on the back table, we each have copies.

256
00:38:09.970 --> 00:38:15.210
Boardroom: We're bringing this item because the agenda committee meeting for this,

257
00:38:15.370 --> 00:38:17.619
Boardroom: This council meeting met on the 24th.

258
00:38:17.780 --> 00:38:32.599
Boardroom: And at that time, we did not have, this information. There are 8 wildfire resiliency bills that passed the legislature at the end of August. They're awaiting the governor's signature, which he has to do or veto by the 30th of September.

259
00:38:32.600 --> 00:38:41.030
Boardroom: These are 8 bills that would really help, here in Berkeley, as well as communities across the state that are dealing with the wildfire crisis.

260
00:38:41.170 --> 00:38:56.830
Boardroom: They cover, areas including, funding for homeowners and financing for homeowners that are doing welfare mitigation. There is a, innovation unit that would test and deploy emerging, emerging wildfire technologies.

261
00:38:56.830 --> 00:39:14.430
Boardroom: support for our county coordinators, work on home hardening, and grants to communities, that are doing wildfire mitigation work. On behalf of the City Council, we've drafted 8 letters that the mayor, would sign… would send to the governor, asking for him to, sign these bills.

262
00:39:14.430 --> 00:39:24.129
Boardroom: It's a package that's been supported by a great advocacy group called Megafire Action that we've been working with that is working on good wildfire policy in California and across the country, and they've been very supportive.

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263
00:39:24.190 --> 00:39:41.060
Boardroom: what we're doing here in Berkeley. I sent a letter that was co-signed by 250 residents in D6 over the weekend along the same lines, and so we're just trying to sort of up the ante with the governor and, urge him to support the bills and sign them before the end of the month.

264
00:39:41.060 --> 00:39:44.199
Boardroom: We'd like to move this to consent.

265
00:39:44.200 --> 00:39:49.450
Boardroom: as an immediate action item, and I appreciate support from my colleagues. Second.

266
00:39:50.550 --> 00:39:52.350
Boardroom: Thank you, the Mayor, for co-sponsoring.

267
00:39:52.950 --> 00:39:54.250
Boardroom: Thank you.

268
00:39:54.770 --> 00:40:04.850
Boardroom: Councilmember, okay, we have a second. Can we take the roll on that, please? Or, actually, is there any opposition to putting this onto the consent calendar?

269
00:40:05.380 --> 00:40:08.060
Boardroom: Okay, we will do that then. Thank you very much.

270
00:40:08.180 --> 00:40:12.059
Boardroom: Are there any council comments on the consent calendar?

271
00:40:17.030 --> 00:40:18.770
Boardroom: Councilmember Treka.

272
00:40:20.500 --> 00:40:40.030
Boardroom: Thank you, Madam Mayor, and happy birthday. Thanks. I'm very excited to see items 1 and 2 on today's agenda. Thank you to the Economic Development, team for advancing our work on restoring Berkeley's Civic Center and the Madel Shirewac building.

273

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00:40:40.190 --> 00:40:45.180
Boardroom: I also would like to acknowledge the Downtown Berkeley Association, city staff.

274
00:40:45.270 --> 00:41:01.899
Boardroom: and everyone who assisted, including my own District 4 team, in bringing more light to our wonderful arts district. The Caternary lighting project on Addison will undoubtedly bring even more vibrancy to this already incredible destination.

275
00:41:02.820 --> 00:41:16.219
Boardroom: Other items deserve to be uplifted, especially in Berkeley, a city of environmental and climate leadership. And these include items 13, supporting a neighborhood decarb pilot project.

276
00:41:16.220 --> 00:41:24.270
Boardroom: I'm grateful to our Environmental and Climate Commission and my commissioner, Daniel Tahara, for initiating it.

277
00:41:24.270 --> 00:41:29.130
Boardroom: And I'm also very proud of our city for standing up to call yet again.

278
00:41:29.130 --> 00:41:39.490
Boardroom: In item 19, we're expressing our opposition to the handling, storage, and transport of coal and petroleum coke in the San Francisco Bay region.

279
00:41:39.490 --> 00:41:57.710
Boardroom: and the East Bay. We're also expressing our strong support for AB40, which will require stronger environmental protections against cold projects like the one being proposed in Oakland. This week, I'm pleased to bring on the consent calendar Renaissance Part 2 to the Council.

280
00:41:57.720 --> 00:42:00.720
Boardroom: This item focuses on solving problems.

281
00:42:00.860 --> 00:42:11.509
Boardroom: that we hear about regularly from residents and businesses. Commercial spaces and buildings that remain vacant, unfinished, or difficult to bring back into active use.

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282
00:42:11.810 --> 00:42:22.480
Boardroom: My office and I have worked extensively on this, and have been submitting referrals to tackle commercial vacancies in our downtown and other commercial districts.

283
00:42:22.760 --> 00:42:33.480
Boardroom: Since my first day in office, partnering with stakeholders such as local merchants and cultural organizations, property owners, community members, and city staff.

284
00:42:33.880 --> 00:42:40.609
Boardroom: Just to name a few, to understand the myriad economic factors that have exacerbated these challenging issues.

285
00:42:40.790 --> 00:42:51.800
Boardroom: I hope this work will help us address some of the persistent commercial vacancy issues we see throughout Berkeley, and make it easier to bring these spaces back to life.

286
00:42:52.270 --> 00:43:09.319
Boardroom: I would like to express special thanks to my Chief of Staff, Olga Bolotina, for helping to usher this item onto tonight's consent calendar, and of course, I want to thank my co-sponsors on this item, who have also been thought partners every step of the way.

287
00:43:09.320 --> 00:43:15.400
Boardroom: Thank you so much. Thank you. I have the timer here on my phone, just FYI for folks.

288
00:43:15.530 --> 00:43:23.939
Boardroom: Moving on… oh… It's not really working, but we'll move on to Councilmember Humbert.

289
00:43:25.040 --> 00:43:40.409
Boardroom: Thank you, Madam Mayor. Yeah, my little device says I'm number 29, so… thank you, and happy birthday. As to number 16, which is Councilmember Kesarwani's item.

290
00:43:40.540 --> 00:43:51.640
Boardroom: Asking for a report on, construction-related costs and added costs. I, I would like to be added, if I might.

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291
00:43:51.890 --> 00:43:57.619
Boardroom: As a co-sponsor. Yes, we'd be delighted to have you as a co-sponsor. Councilmember Humbert, thank you. Thank you.

292
00:43:57.810 --> 00:44:06.580
Boardroom: And then, number 19, I notice that's the Councilmember Trigoub's, Renaissance item.

293
00:44:06.740 --> 00:44:10.860
Boardroom: I don't know if you have any room, but I'd love to be a co-sponsor if you do.

294
00:44:11.110 --> 00:44:24.230
Boardroom: I wish we did, we have a full house on that item, but thank you for your support. That's because it's a salutary item. Thank you, Councilmember. I have others if you'd like to co-sponsor any.

295
00:44:24.420 --> 00:44:37.799
Boardroom: And I'd also like to thank Auditor Wong for her whistleblower report. Thank you, Auditor Wong. That's it. Thank you very much, Councilmember Lunapara, and then we'll go Blackaby, Kesserwani, and then if anyone else, let me know.

296
00:44:37.990 --> 00:44:54.009
Boardroom: Thank you. I want to thank the City Auditor and her team for the great work on the report and recommendations. Thank you. I also want to thank Councilmember Castarwani for item 16, and I'm wondering if I can also be a co-sponsor? Yes, we have room. Thank you.

297
00:44:54.010 --> 00:45:14.180
Boardroom: And on item 19, I want to thank Councilmember Traeger for bringing this forward, and for the community organizers who have been fighting so hard to pass these resolutions and defeat Trump's proposed coal terminal. I encourage everyone to reach out to the No Coal in Oakland campaign if they want a yard sign or wish to volunteer with these efforts to keep our air breathable in the East Bay.

298
00:45:14.200 --> 00:45:15.060
Boardroom: Thank you.

299

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00:45:16.190 --> 00:45:35.369
Boardroom: Thank you very much. Councilmember Blackaby. Thanks, Madam Mayor. Just wanted to highlight, item 5 on the consent calendar, which is, contract for fire aside. This is a really great software program we've been using, the fire department's been using to track, the work that individual residents are doing to do fire mitigation. I guess we're on the fire beat right now.

300
00:45:35.370 --> 00:45:42.770
Boardroom: We at last report, of the 1,400 homes in the Ember Zone,

301
00:45:42.770 --> 00:45:53.009
Boardroom: More than 600 are already on the path to Zone Zero and home hardening compliance, which is amazing. And this software helps the city track all that really great work.

302
00:45:53.100 --> 00:45:56.489
Boardroom: Folks, can you have your conversations outside, please?

303
00:45:56.590 --> 00:46:15.470
Boardroom: Thank you. And in addition, the CHIPR program, which are also fireside supports, has supported more than 2,400 pickups and removed 6,000 cubic yards of hazardous vegetation from Berkeley homes. So I just want to double-click on this, because it's been a really successful program, and it's really key to the work that's being done in the hills.

304
00:46:15.560 --> 00:46:30.860
Boardroom: I want to thank Councilmember Tregeb for, item 19, strongly support, Assembly Bill AB40, and oppose, the handling, storage, and transport of coal in the Bay Area. Also want to thank him for allowing me to co-sponsor, the Renaissance Act.

305
00:46:30.860 --> 00:46:54.459
Boardroom: Anything that we can do to revitalize downtown and our business districts is really important to me. And very briefly, I just wanted to comment on the City Manager's comment on Harrison Street. I just wanted to thank city staff, for all their work today and every day. Berkeley Police Department, Fire Department, Public Works, the Homeless Response Team, Peter Radu and his team, city manager, and so many others.

306
00:46:54.910 --> 00:47:01.279
Boardroom: I want to be clear that we're deeply committed to supporting… Our unhoused neighbors.

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307
00:47:01.800 --> 00:47:04.630
Boardroom: But the situation is not sustainable.

308
00:47:04.750 --> 00:47:21.900
Boardroom: The status quo can't continue. We had a serious public health and safety crisis in Harrison that had to be addressed. Cheryl, please. It's gonna take a multifaceted response to deal with it. I'll also just comment that staff has been working for weeks and months

309
00:47:22.040 --> 00:47:26.110
Boardroom: To identify and make reasonable accommodations for people with disabilities.

310
00:47:26.530 --> 00:47:38.459
Boardroom: The judge set a September 1st deadline, which we met and have been working and conferring in good faith, notwithstanding efforts by BHU to wait until the very end after the deadline to file new requests.

311
00:47:38.570 --> 00:47:47.700
Boardroom: So I… look, this is a difficult problem, and I understand, that there are a lot of strong feelings, but I also… I also want to say… Cheryl. Staff's been working really hard on this.

312
00:47:48.120 --> 00:47:52.210
Boardroom: I also want to say that we live in a community where everyone deserves access.

313
00:47:52.320 --> 00:48:02.599
Boardroom: to public spaces. That includes children playing sports at nearby fields, employees walking sidewalks to get to work, and artists making their way to pottery classes in and around Harrison.

314
00:48:02.890 --> 00:48:15.420
Boardroom: We can't allow a situation like this to reform once abatement is complete. That's not a win for public health, for public safety, for the unhoused individuals, nor the rest of our community. It just resets the same crisis.

315
00:48:15.540 --> 00:48:23.299

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Boardroom: So I'm committed to working with Council colleagues, the City Manager, and our community partners to find durable solutions for housing for our neighbors.

316
00:48:23.350 --> 00:48:42.189
Boardroom: and making policy changes to make sure we don't end up dealing with another large encampment that poses a health and safety risk down the line for neighbors and businesses, housed and unhoused, families, kids, and seniors. I'll also just make a note, we need more financial support from the county and from the state

317
00:48:42.240 --> 00:48:49.580
Boardroom: to help us fund the programs that will help house more people in Berkeley. We are a generous community.

318
00:48:49.780 --> 00:48:55.170
Boardroom: But we also have limits On our fiscal capacity to help.

319
00:48:55.170 --> 00:49:17.569
Boardroom: Folks, please… So, this has to be resolved, it can't just be moved around, and I'm looking forward to working on it. Let Councilmember Humber Blackaby finish his… let Councilmember Blackaby finish his statements. I appreciate the spirit with which people have received my comments, it's been great. But, this is a difficult problem, and we can't allow the status quo to continue.

320
00:49:17.570 --> 00:49:19.540
Boardroom: on Harrison or any place else.

321
00:49:19.580 --> 00:49:28.379
Boardroom: And it's about putting people in housing, it's also about making policy changes that don't allow a situation like this to, to come back. So, thank you.

322
00:49:30.040 --> 00:49:35.760
Boardroom: Okay, we have Councilmember Kastarwani, and then Councilmember O'Keefe, and then Councilmember Bartlett.

323
00:49:36.540 --> 00:49:49.700
Boardroom: Thank you very much, Madam Mayor, and thank you, Councilmember Blackaby, for your comments about the Harrison Street encampment. I also

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want to just take a brief moment to thank the City Manager and all of our city staff, including

324
00:49:49.700 --> 00:49:59.889
Boardroom: Berkeley Police, Fire, Public Works, Neighborhood Services, and our City Attorney's Office. Mr. Budenhagen, are there any other departments that I missed in that list?

325
00:50:00.440 --> 00:50:09.979
Boardroom: Okay, so I just want folks who are watching or here to know that it is a whole city response to address

326
00:50:10.060 --> 00:50:12.150
Boardroom: unsafe encampments.

327
00:50:12.160 --> 00:50:20.910
Boardroom: And we initially sought to close this encampment in January 2025. It's now September 2026.

328
00:50:20.910 --> 00:50:41.349
Boardroom: Because of the litigation, that was brought forward by the Berkeley Homeless Union, and some of those points have been valid, and I'm glad that the city is addressing them. And I do want to, express my support for what the mayor said, that, closing an encampment that is unsafe because of.

329
00:50:41.370 --> 00:50:49.169
Boardroom: Leptospirosis and fire hazards is only one part of the significant and massive

330
00:50:49.170 --> 00:51:07.970
Boardroom: financial investment that Berkeley has made into longer-term solutions, like shelter, transitional housing, and permanent supportive housing. We are proud to host two Homekey sites in District 1, and I always note that I have always said yes to those solutions.

331
00:51:07.970 --> 00:51:11.620
Boardroom: At the same time, I can't say yes.

332
00:51:11.840 --> 00:51:20.349

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Boardroom: to an unsafe, unhealthy encampment that is unsafe for the people who are… who are staying there in tents.

333
00:51:20.480 --> 00:51:44.360
Boardroom: and unsafe to the people who need to work there, or need to do business there. So I know we can do better, and I agree that this is a regional challenge, and it does take more than one city, and some other cities are stepping up. I'd love to see other… some other cities that haven't stepped up more. So thank our city staff again for the tremendous work that has been put into that over…

334
00:51:44.360 --> 00:52:06.850
Boardroom: Nearly two years. Folks. It's actually been more than 2 years, but the immediate period of 2 years. So, okay, so I did want to, for item 15, this is supporting the Gilman District Merchants Association. I'd like to add Councilmember Terry Taplin as a co-sponsor. I want to thank again Council Members Humbert and Luna Pata, who have

335
00:52:06.940 --> 00:52:10.579
Boardroom: So, who are co-sponsoring item 16. This is…

336
00:52:10.600 --> 00:52:33.529
Boardroom: requesting a study on housing fees so that we can get an understanding of how much discretionary added cost is being added to each unit that we're creating in our city. And I do, finally, I want to thank Councilmember Trey Gube for the resolution opposing coal, and I was very proud to be able to co-sponsor it, as

337
00:52:33.530 --> 00:52:38.519
Boardroom: One of the two council members who has the rail line running through their district.

338
00:52:38.520 --> 00:52:39.979
Boardroom: Thank you very much.

339
00:52:40.750 --> 00:52:45.420
Boardroom: Thank you. Councilmember… Councilmember O'Keefe?

340
00:52:46.430 --> 00:52:48.529
Boardroom: Thank you, Madam Mayor, happy birthday.

341

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00:52:48.590 --> 00:53:02.269
Boardroom: Just a couple brief comments. I really want to thank Councilmember Trey Gube for allowing me to co-sponsor Renaissance. It's a really, really important, and much-needed initiative, so thank you very much. And also thank you for the cold one. It's great, too.

342
00:53:02.270 --> 00:53:17.330
Boardroom: And that's actually all I have to say, all I had to say was written down, but I do kind of spontaneously just want to really thank Council Members Bacabee and Councarwani for your, for your comments just now. I think it's very important that we, as a Council.

343
00:53:17.390 --> 00:53:25.590
Boardroom: really respond and show our support for city staff in everything they've been doing. And I actually especially want to thank

344
00:53:27.110 --> 00:53:37.329
Boardroom: Paul Buttigieg… Paul Buttigieg… Paul Budenhagen, sorry. I'm really tired. I've made that mistake before, just never on… never on public.

345
00:53:37.330 --> 00:53:51.270
Boardroom: Sorry, City Manager Budenhagen about… for the really excellent summary you made, it was really helpful, important that the public understand the process and the… the gravity with which we treat this and the amount of work that's gone into it, so thank you so much for that, and for…

346
00:53:51.270 --> 00:53:56.669
Boardroom: your and all of the staff's efforts, and I also want to really thank the, City Attorney's Office.

347
00:53:56.840 --> 00:54:13.079
Boardroom: Fareem Brown for all of the work, because it's been an incredible amount of work that you guys have put into it, just making sure that the process is law-abiding, and fair, and actually possible to carry out. So thank you so much, and to all of your staff as well. That's… those are my comments.

348
00:54:13.370 --> 00:54:14.900
Boardroom: Okay, Councilmember Bartlett.

349

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00:54:16.330 --> 00:54:35.569
Boardroom: Thank you, Madam Mayor. I would really quickly call out on the, the number… the first item here on the consent calendar, the grant application for the… the planning grant for the Civic Center, rebuild. Really exciting stuff, it's been a long time coming. Those are wonderful, wonderful buildings there that are in deep, deep need of repair, and looking forward to this work.

350
00:54:35.670 --> 00:54:52.470
Boardroom: And item 13, really curious to see how this plays out. We've talked this for years now, the neighborhood decarbonization pilot. Really excited to see that. Very exciting. We've come a long way. I'd like to see how this rolls out, want to help this one. I'm 20, your renaissance.

351
00:54:52.650 --> 00:55:03.159
Boardroom: Councilman Trigov, really good work. You know, your… your district is, you've been responsive to your needs, and all our needs in our commercial districts, with, getting these storefronts activated. Thank you.

352
00:55:03.290 --> 00:55:07.899
Boardroom: And I'll last want to thank, Councilor Blackaby for your… these excellent fire letters.

353
00:55:08.040 --> 00:55:10.420
Boardroom: Happy to support this item here.

354
00:55:10.560 --> 00:55:11.500
Boardroom: Thank you.

355
00:55:12.200 --> 00:55:26.810
Boardroom: Thank you very much. Any other comments from my colleagues? Okay, I will just add number 13, supporting a neighborhood decarbonization pilot project in Berkeley. Thank you so much to the Environment and Climate Commission for bringing this letter of support.

356
00:55:26.810 --> 00:55:46.379
Boardroom: For us to consider this evening. This pilot project is an excellent way for our city to continue its journey towards electrification and reduction of emissions. Based on 2023 data, I wanted to share this because I thought this was really impressive. Greenhouse gas emissions declined 41% since the 2000 baseline in Berkeley.

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357
00:55:46.390 --> 00:55:58.459
Boardroom: And for items 19 and 20, both the coal and Renaissance items, thank you so much to Councilmember Tregub for leading the no coal and Renaissance items. Renaissance,

358
00:55:58.620 --> 00:56:09.900
Boardroom: it's important that the city continues to address ground floor vacancies, prevent blight, and encourage activation of our commercial districts. This is something that my office is focused on, so thank you for bringing it forward.

359
00:56:09.950 --> 00:56:19.279
Boardroom: Okay, we are going to public comment on consent calendar or information items only. If you have a comment on that, please come on up.

360
00:56:23.190 --> 00:56:25.099
Boardroom: How are you doing for the FTA?

361
00:56:37.150 --> 00:56:39.730
Boardroom: We're gonna bring a mic over to the table.

362
00:56:56.610 --> 00:57:02.969
Boardroom: There you go. Okay, folks, if you can keep it down so we can hear our public comments, please.

363
00:57:03.750 --> 00:57:20.929
Boardroom: Thank you, go ahead. Hello, my name's Nicholas Elizabeth Davy. I'm strongly opposed to any use of tear gas or other chemical weapons. Oh, I'm so sorry, but this is something that's, not on the consent calendar. So when we get to the tear gas item, we will allow you to come up and speak during that time.

364
00:57:23.080 --> 00:57:24.639
Boardroom: Thank you.

365
00:57:24.900 --> 00:57:28.409
Boardroom: Who is next? Andrea, are you next?

366
00:57:28.550 --> 00:57:29.500
Boardroom: Okay.

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367
00:57:30.070 --> 00:57:32.309
Boardroom: Thank you.

368
00:57:32.980 --> 00:57:35.130
Boardroom: Sorry about that. No, no,

369
00:57:36.390 --> 00:57:44.210
Boardroom: I'm getting an extra minute from Erica, and I'm getting one from Senate, and I'm getting one from Steve. You hang on your minute.

370
00:57:47.580 --> 00:57:52.620
Boardroom: Some of you I tried to contact this morning from the encampment suite.

371
00:57:52.890 --> 00:57:56.070
Boardroom: Those of you for whom I had any kind of number, I reached out.

372
00:57:56.640 --> 00:58:09.449
Boardroom: Because what I was witnessing was an obvious and willful violation of a court order. I'm sorry, Andrew, which… which item are you speaking on? I'm sorry, let me connect it to… I'm sorry.

373
00:58:09.630 --> 00:58:20.809
Boardroom: I'm super psyched that the Maudel Sherriik, for the renovations and Vets Memorial, because I remember how we used the Vets Memorial to support unhoused people.

374
00:58:21.520 --> 00:58:24.229
Boardroom: In contrast to what I saw this morning.

375
00:58:25.040 --> 00:58:27.330
Boardroom: So I'm super happy about that.

376
00:58:27.860 --> 00:58:33.410
Boardroom: That… about the renovation. I'm super unhappy about what happened this morning.

377
00:58:33.850 --> 00:58:53.300

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Boardroom: Because it was a willful and intentional violation of a court order. Peter Radu was flagged by Jessica, we all were like, wait, there's a court order! Wait, you've gotta come! He refused. The police, all they were interested in doing was stopping us from documenting, and that documentation is really important.

378
00:58:53.340 --> 00:58:58.049
Boardroom: Because if the judge is saying you can't take people's vital possessions.

379
00:58:58.170 --> 00:59:02.760
Boardroom: And when… and so somebody's gotta be there to observe what they took.

380
00:59:02.930 --> 00:59:11.189
Boardroom: And so when the police willfully, under the direction, presumably, of the city manager or his, designates.

381
00:59:11.640 --> 00:59:17.369
Boardroom: That's an intentional violation of a court order. Now, nobody here wants

382
00:59:17.840 --> 00:59:31.580
Boardroom: people to live in squalor, please understand, we want that resolved in a real way. Not kicking it down, not to where people are gonna die on our streets, as has been happening, and the cold hasn't even set in yet.

383
00:59:32.000 --> 00:59:38.610
Boardroom: What's going to be happening is people are going to be dying, because those individuals Councilmember?

384
00:59:38.940 --> 00:59:58.780
Boardroom: Those people that have behavioral health issues, they're not sloppy because they're just casual. There are people who are disordered, there are people who are psychotic, there are people who are drug addicted, and that when you separate them from that little tiny bit of community and support that they have, and tell them to live on some traffic barrier.

385
00:59:58.950 --> 01:00:02.620
Boardroom: finds them. When they all get separated, what's gonna happen?

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386
01:00:03.290 --> 01:00:17.169
Boardroom: is they're gonna die, or they're gonna go to jail. You'll be able to get them caught up in the justice system, and they'll be sent to John George, or they'll be sent to Santa Rita's Psych Ward, or something like that. You won't have to worry about them anymore.

387
01:00:17.290 --> 01:00:24.169
Boardroom: You can set about the business of having festivals and, you know, this kind of thing, beautification projects.

388
01:00:24.910 --> 01:00:26.600
Boardroom: They'll be dead or in jail.

389
01:00:27.000 --> 01:00:43.799
Boardroom: And that will be on our conscience. That is not who Berkeley is. That's not who we're trying to be. And because some of us here think that racial disparities and marginalized people, if it's out of sight, then you don't have to worry about it. But the rest of us do.

390
01:00:44.080 --> 01:00:53.929
Boardroom: And we would like you to worry about it with us. I'm upset because I'm concerned. Where is the commitment to warming? I hear you talking about the challenges of housing.

391
01:00:54.450 --> 01:00:56.260
Boardroom: We've got a triage problem.

392
01:00:56.800 --> 01:00:59.029
Boardroom: Where are they gonna go when the rain…

393
01:00:59.480 --> 01:01:06.430
Boardroom: I have one more minute, didn't I? I had… I was… I only got 3 minutes, I want one more minute.

394
01:01:06.570 --> 01:01:19.869
Boardroom: No, I don't… I need my minute. Thank you. Go ahead. And so what I'm trying to say is that I don't… if it's there in the budget, please alert me. Show me where… when the rains come.

395

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01:01:20.300 --> 01:01:26.769
Boardroom: And somebody is sleeping under a tent, in a tent, and they're soaking wet. Can you tell me where to send them?

396
01:01:27.420 --> 01:01:33.459
Boardroom: Where do they go? Because hypothermia is a death sentence in some cases.

397
01:01:34.300 --> 01:01:36.450
Boardroom: So, what's your plan?

398
01:01:36.560 --> 01:01:45.820
Boardroom: And that's what I'm not seeing in all this, in the budget. And I'm seeing this kind of casual, like, congratulating your city staff when they willfully

399
01:01:46.170 --> 01:01:59.810
Boardroom: violate a court order, that's a great job done. When they… when they intentionally obstruct the… the rights of the people to document what their police… what the police that we pay for are doing.

400
01:02:00.280 --> 01:02:19.239
Boardroom: How can you congratulate that? How can you pat yourself on the backs? So we want to see a commitment. Give us the Vets Memorial Building. We'll take it, make it real nice, and we'll do a good job. But nobody wants to live in squalor, and please don't pat yourself otherwise. Thank you. Thank you. Thanks, Andrea.

401
01:02:23.990 --> 01:02:27.339
Boardroom: I have a minute from… from Russ and from Paul Blake.

402
01:02:28.570 --> 01:02:37.599
Boardroom: So I should have 3 minutes. And… 3 minutes, please? Yeah, I also, I'm speaking on 15 and also 1. I…

403
01:02:37.840 --> 01:02:46.999
Boardroom: It hurt my heart to hear all of you defend and say what a great job your staff did. Not one of you was there.

404
01:02:47.060 --> 01:03:00.980

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Boardroom: Not one of you was there, so what are you talking about? You know who was there? Moni G, who's running for District 1 to replace Rashi. May it be so? And she was there, and she was witnessing the failure, okay?

405
01:03:01.340 --> 01:03:12.009
Boardroom: I… we have that empty lot I mentioned. I've surveyed my neighbors. They're all down to have a safe, stay-sanctioned encampment. The ones I've talked to, everyone is really open to it.

406
01:03:12.420 --> 01:03:19.200
Boardroom: Let's… Be imaginative, let's be creative, let's reweave the social safety net instead of

407
01:03:19.680 --> 01:03:33.170
Boardroom: bringing in bulldozers, and I too felt like I was sort of in Gaza. It was traumatizing. Okay, that's my first thing I wanted to say. The second thing, of course we don't want coal in Oakland, and I just find it…

408
01:03:33.550 --> 01:03:41.309
Boardroom: Interesting that there are some council members who will likely vote for tear gas, who are on this dais, who are sponsoring that item.

409
01:03:41.420 --> 01:03:58.530
Boardroom: Wow! Curious. Hypocrisy, perhaps. I don't know. The next thing, the final thing I want to talk about is the Renaissance. Clearly, we need to revitalize the downtown, and it's been a couple years, it's been years and years, and we have more empty storefronts, not less.

410
01:03:58.650 --> 01:04:08.180
Boardroom: There are still an open, gaping pit on Harold Way. There are blocks and blocks on Shattuck that are vacant, that are bladed.

411
01:04:08.640 --> 01:04:16.730
Boardroom: And so this is, yes, less than 2 months before there's an election. And so I just want to say, great, yes.

412
01:04:16.890 --> 01:04:29.630

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Boardroom: Do… give the city manager more work to do and more studies. We don't need more studies. We need pop-ups. We need creativity. We need events. We need not paid-for events.

413
01:04:29.630 --> 01:04:39.760
Boardroom: Pride was paid for here. Berkeley Pride was a paid thing, and then the next weekend, there was another paid thing in Civic Center Park? How are we gonna rejuvenate and have

414
01:04:39.760 --> 01:04:48.299
Boardroom: like, public space that we can bring the community into if we're having people pay for everything. So.

415
01:04:48.970 --> 01:05:03.770
Boardroom: there are many things that could have been done over the past couple years, and certainly should be done, not more studies, to vivify and bring our downtown into, like, a lively place.

416
01:05:04.600 --> 01:05:07.680
Boardroom: I, I still have 30 seconds left.

417
01:05:08.280 --> 01:05:11.779
Boardroom: Thank you for listening, and we can do better.

418
01:05:11.780 --> 01:05:33.899
Boardroom: We can do better, and we will do better. We are going to be voting in November 3rd. Everybody, if you don't know about Flip the Berkeley City Council, check it out. We've got great candidates, and these are candidates that are going to be centering the needs of those of us who live here, who work here, who study here, as opposed to the developers, which is, this item,

419
01:05:33.970 --> 01:05:40.369
Boardroom: on housing rel… Thanks, Alana. That's, that's for the developers. Thank you.

420
01:05:41.820 --> 01:05:48.889
Boardroom: Okay, next person, come on up. The person with the mask, the black mask, yep, thank you.

421
01:05:49.850 --> 01:05:52.410

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Boardroom: Okay, and folks, just a reminder, this is…

422
01:05:52.500 --> 01:06:12.489
Boardroom: public comment for consent calendar, or information items only. So, we have an action calendar, but that will come later, and that has the item that's on to your guests. Go ahead. Good evening, I mean, it camps. I think I have 3 additional minutes from people in attendance. Okay, hold on. 1, 2, one second.

423
01:06:13.060 --> 01:06:14.910
Boardroom: I didn't see.

424
01:06:16.730 --> 01:06:18.260
Boardroom: Oh, thank you.

425
01:06:19.360 --> 01:06:20.649
Boardroom: Good in your night pouch?

426
01:06:24.690 --> 01:06:27.699
Boardroom: I'm here to speak to Item 5.

427
01:06:27.850 --> 01:06:32.140
Boardroom: The, $410,000 fireside contract.

428
01:06:32.490 --> 01:06:38.589
Boardroom: And, briefly to that urgency measure that's before you on the letter to the governor.

429
01:06:38.800 --> 01:06:45.750
Boardroom: As to the fireside contract, First, I support fire safety, but just because a contract

430
01:06:45.920 --> 01:06:49.240
Boardroom: Is arguably relevant to fire issues.

431
01:06:49.390 --> 01:06:54.609
Boardroom: In the hills doesn't mean that the contract should be on the consent calendar.

432

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01:06:55.040 --> 01:07:01.830
Boardroom: And rubber-stamped in short order, notwithstanding your, you know, passionate Defense of it.

433
01:07:02.020 --> 01:07:07.520
Boardroom: But at a time when the Council is really looking at closing Fire Station 4,

434
01:07:08.110 --> 01:07:13.809
Boardroom: And asking for really massive amounts of money for the city.

435
01:07:13.940 --> 01:07:18.609
Boardroom: I think the Council should be showing it can ask tough fiscal questions.

436
01:07:18.860 --> 01:07:22.389
Boardroom: And not be rubber-stamping big contracts like that.

437
01:07:22.950 --> 01:07:26.960
Boardroom: Second, let's talk about the fireside contract itself.

438
01:07:27.130 --> 01:07:32.149
Boardroom: Show of hands, how many of you have actually read the contract with Fireside? I have.

439
01:07:33.070 --> 01:07:38.140
Boardroom: And, for those who haven't, it's essentially a contract, again, for the software that tracks

440
01:07:38.250 --> 01:07:47.280
Boardroom: each property owner's, compliance with fire mandates. And whether you've read the fireside contract or not.

441
01:07:47.830 --> 01:07:54.989
Boardroom: I also hope that you've read Article 1, Section 1 of the California Constitution, the so-called Privacy Amendment.

442
01:07:55.520 --> 01:07:59.540
Boardroom: of the Constitution and the cases that interpret it.

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443
01:08:00.100 --> 01:08:12.980
Boardroom: I'll boil it down. An intent of Article 1, Section 1 is to prevent the government from stockpiling information of your private information of the, you know, people of the state of California.

444
01:08:13.680 --> 01:08:18.520
Boardroom: In Fireside, not only do you have the government stockpiling the information.

445
01:08:18.710 --> 01:08:24.900
Boardroom: But you have the government stockpiling information in a database that's managed by a private entity.

446
01:08:25.279 --> 01:08:32.099
Boardroom: And a private entity, Fireside, is interoperable with a whole bunch of other private entities.

447
01:08:32.240 --> 01:08:36.230
Boardroom: Who are apparently making money off of our information, too.

448
01:08:36.450 --> 01:08:47.740
Boardroom: So that looks like it could be one big constitutional violation, so even if you're enthusiastic about it, it does have other ramifications that I think you should look at.

449
01:08:48.200 --> 01:08:53.890
Boardroom: And yes, The fireside contract does pay Little bit of lip service.

450
01:08:54.000 --> 01:08:56.180
Boardroom: To privacy, but hardly the kind

451
01:08:56.490 --> 01:09:02.310
Boardroom: Of express use restrictions and confidentiality protections

452
01:09:02.439 --> 01:09:06.450
Boardroom: That you would expect to see in a database.

453
01:09:06.680 --> 01:09:22.919

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Boardroom: law of this kind, if you're serious about informational privacy. So I'd ask that you take this item off the consent calendar and read that contract really carefully with someone who really understands Article 1, Section 1 of the California Constitution, and the cases that

454
01:09:23.109 --> 01:09:24.140
Boardroom: interpreted.

455
01:09:24.470 --> 01:09:27.669
Boardroom: I'm going to briefly address the urgency letter.

456
01:09:28.160 --> 01:09:32.540
Boardroom: To the governor. And what's missing in this packet

457
01:09:32.890 --> 01:09:39.139
Boardroom: is… are the bills themselves. What are you voting on? Have you read each of those bills?

458
01:09:39.970 --> 01:09:41.519
Boardroom: I've read a bunch of them.

459
01:09:41.979 --> 01:09:43.609
Boardroom: You know, quickly.

460
01:09:44.040 --> 01:09:55.639
Boardroom: And it seems like the City of Berkeley is already on record in support of some of these bills, as is Fireside, which stands to make some additional money off of

461
01:09:55.820 --> 01:09:59.550
Boardroom: this whole… industry here.

462
01:09:59.750 --> 01:10:03.549
Boardroom: And, you know, the question is, do you know what you're voting on? Because some of these bills.

463
01:10:04.670 --> 01:10:07.180
Boardroom: Are really good, and it's a whole packet.

464

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01:10:07.790 --> 01:10:15.740
Boardroom: So, do you really know what's in each one of them? And they really do impact 1,400 residents, like me.

465
01:10:16.500 --> 01:10:25.520
Boardroom: And the question is whether they all meet your criteria that you know about, and really evolving fire science and what it is

466
01:10:25.660 --> 01:10:29.710
Boardroom: And… or is it just… In the past. Thank you very much. Thank you.

467
01:10:40.240 --> 01:10:41.749
Boardroom: Have a minute.

468
01:10:41.960 --> 01:10:47.779
Boardroom: And can I get 2? Okay, I have 3 minutes. So that makes 4 total.

469
01:10:51.790 --> 01:10:55.160
Boardroom: So… Again.

470
01:10:56.310 --> 01:11:02.870
Boardroom: Well, I'll start with the no call. Yes, no call. There's so much asthma.

471
01:11:03.130 --> 01:11:11.210
Boardroom: And, we still have COVID, and all these other illnesses, and can you pay attention? Like, I'm over here.

472
01:11:14.100 --> 01:11:31.660
Boardroom: that we don't need to have coal coming through Berkeley, Oakland, Richmond, anywhere. We don't need coal. We need to get away from fossil fuels. Climate and fossil Fuels is on Friday, 9 a.m. to noon, CEMTF.org, join us.

473
01:11:32.350 --> 01:11:37.609
Boardroom: And, again, the encampment.

474
01:11:38.670 --> 01:11:40.670

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Boardroom: That was a travesty.

475
01:11:41.290 --> 01:11:44.140
Boardroom: Really, you should all be ashamed.

476
01:11:44.460 --> 01:11:50.639
Boardroom: The trauma-induced. I mean, me, I wasn't… I'm not unhoused.

477
01:11:52.130 --> 01:12:03.530
Boardroom: But, you know, a lot of people are one paycheck away, or one Social Security check away from being unhoused. And what are you gonna do? To one of the consent calendar items? I am.

478
01:12:06.260 --> 01:12:11.649
Boardroom: And I have my… don't take up my freakin' time, okay? I didn't authorize that.

479
01:12:12.130 --> 01:12:14.600
Boardroom: I want my time back that she took.

480
01:12:14.970 --> 01:12:23.199
Boardroom: So… People need services, help. They don't need to be enforced and traumatized.

481
01:12:23.370 --> 01:12:26.200
Boardroom: They were supposed to be given tents.

482
01:12:26.630 --> 01:12:28.380
Boardroom: They were supposed to not…

483
01:12:29.470 --> 01:12:41.370
Boardroom: You were supposed to obey the court order, which was violated. Ragu just did whatever he wanted to do, just swept the whole street, and they're supposed to go back tomorrow.

484
01:12:41.730 --> 01:12:43.480
Boardroom: You can call that off.

485
01:12:44.710 --> 01:12:48.790

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Boardroom: Why can't you just go there and help clean up and get people

486
01:12:49.510 --> 01:12:58.530
Boardroom: visited once a week to help them with whatever help they need. Do you even know who lives there and what their needs are?

487
01:12:58.650 --> 01:13:05.020
Boardroom: Jessica does, and a lot of people that were down there this morning did. They knew the people that needed

488
01:13:05.190 --> 01:13:07.450
Boardroom: ADA compliance.

489
01:13:08.120 --> 01:13:11.940
Boardroom: And they tried to tell people, but they did not listen.

490
01:13:13.080 --> 01:13:20.309
Boardroom: They were preventing folks from… Being up close and personal to witness and record.

491
01:13:20.930 --> 01:13:24.340
Boardroom: What kind of crap is that? That sounds like fascism.

492
01:13:25.240 --> 01:13:27.440
Boardroom: That's what's going on in Gaza!

493
01:13:28.990 --> 01:13:37.549
Boardroom: The same thing! They live in tents, there's no trash pickup, you could remedy it by having dumpsters and regular pickups.

494
01:13:38.700 --> 01:13:41.410
Boardroom: You could remedy it by having showers!

495
01:13:41.550 --> 01:13:42.700
Boardroom: Down there.

496
01:13:42.870 --> 01:13:44.779
Boardroom: Once or twice a week.

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497
01:13:45.510 --> 01:13:49.699
Boardroom: There's lots of things you could do to help people.

498
01:13:52.190 --> 01:13:53.730
Boardroom: But you don't care!

499
01:13:53.940 --> 01:13:55.180
Boardroom: We know that.

500
01:13:56.090 --> 01:14:01.039
Boardroom: You should try to make it look like you do.

501
01:14:02.140 --> 01:14:06.010
Boardroom: Because we care! None of you were there!

502
01:14:07.190 --> 01:14:08.350
Boardroom: I was there!

503
01:14:09.010 --> 01:14:10.740
Boardroom: I've been there before!

504
01:14:11.620 --> 01:14:15.770
Boardroom: How many times have you gone down there and tried to talk to people?

505
01:14:16.590 --> 01:14:18.440
Boardroom: Or fed people.

506
01:14:18.610 --> 01:14:24.140
Boardroom: I went down there a couple weeks ago with a tray of food, and gave it to folks.

507
01:14:26.120 --> 01:14:27.960
Boardroom: That's what they need!

508
01:14:28.520 --> 01:14:31.949
Boardroom: They need water, they need showers, they need services.

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509
01:14:32.530 --> 01:14:35.350
Boardroom: They need compassion and empathy.

510
01:14:35.500 --> 01:14:37.080
Boardroom: They need love!

511
01:14:39.240 --> 01:14:41.390
Boardroom: They are our community.

512
01:14:42.430 --> 01:14:52.870
Boardroom: Free Palestine, free us all from the evil and white supremacy that all of… Many people are… Holding.

513
01:15:02.380 --> 01:15:12.900
Boardroom: Good evening, my name's Ariella Grinnett, District 3 Berkeley resident, and speaking on behalf of the Berkeley 350 Hub, tonight about the,

514
01:15:13.580 --> 01:15:27.010
Boardroom: consent calendar item number 19. Thank you so much for authoring and sponsoring the resolution against coal in the East Bay. It's really insane to think about mile-long train

515
01:15:27.010 --> 01:15:36.660
Boardroom: Trains trundling through dense urban areas, exposing hundreds of thousands of people to pollution. It's also really insane to think about

516
01:15:36.750 --> 01:15:45.740
Boardroom: The… the greed and, the greed at this time of the corporations,

517
01:15:45.940 --> 01:15:59.859
Boardroom: trying to expand, coal production and shipment. We, we just can't burn any more fossil fuels if we're gonna have a livable future. And in particular in Berkeley, we have so many,

518
01:15:59.990 --> 01:16:05.010
Boardroom: very special, recreational areas, our, our community…

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519
01:16:05.550 --> 01:16:12.649
Boardroom: Neighbors live near the train tracks. Thank you so much. Parks and businesses, so… Appreciate it, your time as well. Thank you. Thank you.

520
01:16:21.140 --> 01:16:36.890
Boardroom: Hi, my name is Glenn Turner, I'm in District 5 and on the Berkeley Behavioral Health Commission, and I want to thank you for sponsoring the No Coal, because we know that's poison, poison, poison. However,

521
01:16:37.350 --> 01:16:45.990
Boardroom: I'm deeply distressed about the lack of a safety net. I'm seeing more and more money going towards,

522
01:16:46.290 --> 01:16:59.650
Boardroom: prisons and jails and police activities, and not to the safety net that we are sadly lacking. I'm very concerned that this winter, we're gonna have a disaster.

523
01:16:59.650 --> 01:17:12.489
Boardroom: You know, where are the shelters? Where are the people? Is it okay to just throw them in jail like they said it was okay? And so Berkeley is just gonna arrest people and throw them in jail? You know what they do in jail?

524
01:17:12.600 --> 01:17:23.380
Boardroom: There's no John George for the mentally ill. They just go to jail, they put violent people together to punish each other, so jail is not the answer, and how…

525
01:17:23.880 --> 01:17:29.100
Boardroom: Thank you. Citywide… Thank you very much. Your time's up, thanks.

526
01:17:31.870 --> 01:17:42.950
Boardroom: Good evening, Madam Mayor, City Council members, Aola La Verde, D5. I am commenting on item 20, the Renaissance Part 2. Not sure what happened to Part 1.

527
01:17:43.030 --> 01:17:51.379

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Boardroom: This is a referral. It is a no action, it's all talk and no action, just more burden to the city manager.

528
01:17:51.380 --> 01:18:14.200
Boardroom: There's no accountability mechanism, or deadline, you know, the referral doesn't specify when the city manager must report back, what the metrics of success might meet. There's nothing there. There's no meat. No meat. A talk, a list of nothing, of nothing. But hey, you're congratulating yourselves because you can claim now that you've done something during an election season.

529
01:18:14.200 --> 01:18:27.849
Boardroom: So, I just feel kind of upset that the city manager, the city has a lot of work to do, and here's just another pile of stuff to look on, and maybe come up with a recommendation. That's just a joke. Thank you.

530
01:18:28.810 --> 01:18:30.170
Boardroom: Thank you.

531
01:18:32.700 --> 01:18:39.160
Boardroom: Hi, everybody. My name is Donald Simon. I'm the president and co-founder of Save Berkeley Shops.

532
01:18:39.240 --> 01:18:44.219
Boardroom: Appreciate you providing some time here to speak. I'm here to speak on the Renaissance Measure.

533
01:18:44.220 --> 01:19:02.370
Boardroom: Definitely applaud the investigation of those issues. It obviously would have been a lot more preferable if that investigation would have been done before the circumstances that gave rise to the current blight situation that we're experiencing downtown and elsewhere. But nevertheless, I do applaud the fact that you are referring this to the city manager.

534
01:19:02.680 --> 01:19:10.999
Boardroom: But, I think it's important to realize… oh, and I have one more minute from Mr. Alpert there, so apologies, I should have said that at the outset.

535
01:19:11.220 --> 01:19:12.190

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Boardroom: there…

536
01:19:12.600 --> 01:19:21.120
Boardroom: This problem happened because the city encouraged upzoning without having measures in place to deal with these very predictable outcomes.

537
01:19:21.350 --> 01:19:30.820
Boardroom: And there are some things that we think you guys already should know what you can do. We spent the last year talking to development attorneys and to developers.

538
01:19:30.820 --> 01:19:42.450
Boardroom: To understand the dynamic that gives rise to these cold shells, these vacant storefronts, and just to touch on a couple items, because you guys have to deal with the whole city, and don't expect you to have all these things in mind.

539
01:19:42.670 --> 01:19:51.460
Boardroom: Stall projects, the best way to deal with that is don't issue a demolition permit until the developer provides proof that they have the money and the contractor lined up to proceed.

540
01:19:51.780 --> 01:20:09.030
Boardroom: Regarding warm shell, as Jordan Klein will tell you, and he acknowledged with us when we spoke with him recently, the warm shell requirements are unenforceable to any project that uses a state density bonus. It can be waived. The solution we've given you, which is our community zoning proposal, it…

541
01:20:09.030 --> 01:20:28.060
Boardroom: grants upzoning only to projects that agree to do the things that are in the public interest, beginning with avoiding this downtown-type ghost town, but also dealing with things like affordable housing, family housing, and beyond. The most important thing, however, is let's learn from the mistakes of the past.

542
01:20:28.170 --> 01:20:35.959
Boardroom: Do not upzone any more neighborhoods until you've gotten information back on this referral and incorporated those solutions to…

543
01:20:36.850 --> 01:20:38.499

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Boardroom: Ms. Donald. Thank you very much.

544
01:20:45.590 --> 01:20:59.999
Boardroom: Good evening. Ann Marks, I'm with PG&E. I wanted to comment on a few things. First of all, the Renaissance, work, I think, is a really interesting project, and has a lot of technical pieces, and so I want to say how much I appreciated having an open

545
01:21:00.000 --> 01:21:10.509
Boardroom: Conversation to figure out some of those pieces, because it, they can be very complicated in terms of how we think about undergrounding, electrical, distribution lines.

546
01:21:10.510 --> 01:21:35.470
Boardroom: Second thing I want to talk about is the, decarbonization pilot project. I really hope that happens, and PG&E would be delighted to partner with you. I think, you know, decarbonization, electrification, is the future, and so, whatever we can do to support it, we will. And then finally, I wanted to, to thank, Councilmember Blackaby for bringing forward these, wildfire bills. Wildfire is obviously a huge concern of PG&E,

547
01:21:35.470 --> 01:21:41.300
Boardroom: It is not just a humanitarian and environmental crisis, but it threatens the viability of the utility itself.

548
01:21:41.300 --> 01:21:48.430
Boardroom: And our ability to do any construction on new service projects, like the ones that we hope to do when we connect all those businesses in downtown Berkeley.

549
01:21:49.410 --> 01:21:50.430
Boardroom: You am.

550
01:21:56.270 --> 01:22:19.620
Boardroom: Hi, my name is Megan Waxpress, I'm a Berkeley resident in District 1, and I'm speaking on item 19. I want to thank the Council for adopting this resolution opposing the handling of coal in Berkeley and along the length of the East Bay. I'm proud to say that there recently ended a rally with about 200 people outside at University in Bonar of opponents of this coal terminal.

551

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01:22:19.620 --> 01:22:36.529
Boardroom: which is a blatant attempt to hijack our port to prop up a failing coal industry. I'm the parent of two children. One attends camp and birthday parties at brushstrokes, and the other plays soccer, only a few hundred feet where these tracks where the coal trains are likely to pass.

552
01:22:36.530 --> 01:22:58.229
Boardroom: If the terminal is built and the trains are routed through Berkeley, as they likely will be, these trains will cause my children to breathe increased toxic dust and particulate matter, and those effects will only be worse for the children and family of West Oakland who live in proximity to the terminal where the terminal will actually be built. This is an act of solidarity with those individuals who have suffered from environmental injustice.

553
01:22:59.350 --> 01:23:01.920
Boardroom: Thank you. Thank you.

554
01:23:04.420 --> 01:23:07.129
Boardroom: And thank you to all the supporters that are here.

555
01:23:09.330 --> 01:23:18.240
Boardroom: Okay, hi, I am Julie McRae. I am the Acting Secretary of the District Merchants Association. We are a group of…

556
01:23:18.380 --> 01:23:31.419
Boardroom: individuals who've been working together for the past 10 years to get our district up and running, help support our businesses, and I am not the best speaker, so our fabulous treasurer wrote a nice letter, and I'm going to read that.

557
01:23:32.630 --> 01:23:52.740
Boardroom: I'm writing as treasurer of the Gilman District Merchants Association, and as someone who has been part of the district for several years, now on the GDMA board, I've watched the impact this district has had on Berkeley, and over the past four years, I've seen the Street Fair develop into an anchor for the district, bringing neighbors, artists, and businesses together in an incredibly positive way.

558
01:23:53.120 --> 01:23:58.150
Boardroom: I'm asking you to pass item 15, because this investment will do something important.

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559
01:23:58.630 --> 01:24:06.880
Boardroom: It puts substantial capacity behind a young organization that is already proving what it can do with very little. Very, very little.

560
01:24:07.010 --> 01:24:17.660
Boardroom: just people, really. The GDMA is small, but it carries an outside… Okay. Thank you. Feel free to send the letter if you haven't already.

561
01:24:21.110 --> 01:24:25.500
Boardroom: Hello, City Council. My name is Paul, I am a resident of District 2.

562
01:24:25.600 --> 01:24:41.730
Boardroom: I'm here to speak to Item 3. We're gonna move the RLF under the City Manager's control. I think maybe we need to do something similar, I'm kind of raising the alarm on this, with the Shelter Plus Care program. I don't know if any of this has been brought to your attention. A very good friend of mine

563
01:24:41.910 --> 01:24:48.720
Boardroom: formerly homeless, at the here-there encampment, has his housing through the Shelter Plus Care program. Actually, like.

564
01:24:49.310 --> 01:24:51.910
Boardroom: very close to your guy's office.

565
01:24:52.410 --> 01:24:58.060
Boardroom: Shelter Plus Care has not paid his portion of the rent this past month, so now he's facing a 3-day notice to vacate.

566
01:24:58.110 --> 01:25:17.379
Boardroom: I would like to say that this is the first time this happened. This is my friend who's a senior, he's overcome addictions, incredible artist, just a great guy. He informed me that this happened in the past. For 6 months straight, the Shelter Plus Care program didn't pay their portion of the rent, and then it was back paid all at once, so I don't know who's administering Shelter Plus Care, but…

567
01:25:17.490 --> 01:25:29.170

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Boardroom: the amount of stress when you've been on the streets to then finally be housed by this city that claims to care for you and then can't even administer… Just please, guys, can someone get on this? Thank you. Yeah, thanks, we'll look into it. Thank you.

568
01:25:38.710 --> 01:25:57.669
Boardroom: Council members, my name is Aiden Hill. I'm a candidate for Berkeley City Council District 7. First, happy birthday, Mary Shee. I want to thank you for your supporting Berkeley Food Network. They have helped us tirelessly since People's Park community members were displaced, and I am grateful that you have supported the work, so thank you.

569
01:25:58.070 --> 01:26:03.029
Boardroom: City Council, city manager, who is not listening.

570
01:26:03.200 --> 01:26:13.089
Boardroom: Waking people up violently at 6 AM is a human rights violation. Period. It is cruel. It's inhumane. It has no place in this city.

571
01:26:13.390 --> 01:26:28.630
Boardroom: I'm speaking on the consent calendar as a whole because these items are about governance. They're about resilience and public safety. You have aging services, climate emergency responses, and basic care infrastructure. But on 8th and Harrison.

572
01:26:28.630 --> 01:26:37.059
Boardroom: The city's still choosing to manage an unsheltered crisis. Real quick, do I have 3 more minutes? Thank you. I should have asked in the beginning, I apologize.

573
01:26:37.610 --> 01:26:43.129
Boardroom: But the city's still choosing to manage an unsheltered crisis without a sanctioned encampment.

574
01:26:43.350 --> 01:26:46.470
Boardroom: That's cruel. That's a policy failure.

575
01:26:46.650 --> 01:26:52.879
Boardroom: I led the People's First Sanctuary Encampment model on the Homeless Commission at the height of the COVID-19 pandemic.

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576
01:26:53.020 --> 01:27:01.720
Boardroom: We worked with encampments from 10th Street, to the RV encampments at the marina, to People's Park, the Here-there encampment, all across the city.

577
01:27:01.850 --> 01:27:10.190
Boardroom: I made sure community voices were heard at the table. I yielded my time so people living outside could speak for themselves.

578
01:27:10.380 --> 01:27:20.000
Boardroom: A version of that framework was later passed by Council Members Kesarwani and Bartlett. It's part of the public record. The People's First Sanctuary Encampment Model, thank you.

579
01:27:20.630 --> 01:27:29.399
Boardroom: So, this is not an abstract idea. Berkeley already has a record. It already has a framework. It already has a path to act.

580
01:27:29.450 --> 01:27:46.960
Boardroom: And I've been with the People's Park community members every single step of the way, through disinvestment, police brutality, ecological destruction, displacement, and the long aftermath. I was there on day one, helping people move their belongings into the roadway inn, now University Homes.

581
01:27:47.080 --> 01:27:51.929
Boardroom: So when I speak about sanctioned encampments, I'm not speaking from theory.

582
01:27:52.100 --> 01:28:01.469
Boardroom: I'm speaking from years of direct work with people who were displaced, criminalized, and forced to survive your policy failures as the public.

583
01:28:02.280 --> 01:28:18.560
Boardroom: If we can coordinate departments for climate resilience and senior services, wildfire preparedness and transportation, then we can coordinate a humane sanctioned encampment response with sanitation, safety, services, and clear accountability.

584

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01:28:18.690 --> 01:28:28.780
Boardroom: This is a climate emergency. And in a climate emergency, shelter, sanitation, food access, and public space are basic dignity.

585
01:28:28.940 --> 01:28:30.750
Boardroom: They're not site issues.

586
01:28:31.160 --> 01:28:35.870
Boardroom: They are the work you choose to do when you take these seats of power.

587
01:28:36.890 --> 01:28:53.140
Boardroom: Berkeley can't talk about resilience in one item and then tolerate displacement, denial, and delay in another. I'm asking this Council to act on the record, use the tools already developed in this city, set the standard for human dignity.

588
01:28:54.020 --> 01:28:58.169
Boardroom: And if Berkeley is going to talk about renewal, let it be real.

589
01:28:59.000 --> 01:29:10.349
Boardroom: Let's have a real renaissance, not just renaissance, not just with new buildings and new plans, but a city that protects people before crisis happens, not after harm is already done.

590
01:29:11.050 --> 01:29:21.859
Boardroom: I look forward to working with the city government, our staff, our commission members, and community members to make Berkeley's policy match the values it claims.

591
01:29:22.440 --> 01:29:24.609
Boardroom: Thank you for your time. I appreciate it.

592
01:29:24.850 --> 01:29:26.080
Boardroom: Thank you.

593
01:29:32.800 --> 01:29:33.950
Boardroom: Hello.

594

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01:29:35.920 --> 01:29:41.303
Boardroom: Speaking on item 16… I mean…

595
01:29:42.000 --> 01:29:45.169
Boardroom: Oh, yes, I have an extra minute. Yes.

596
01:29:45.760 --> 01:29:51.360
Boardroom: Thank you. Thank you. So…

597
01:29:52.490 --> 01:29:59.239
Boardroom: Another information report for housing.

598
01:30:02.220 --> 01:30:05.469
Boardroom: I feel like you could have just asked the,

599
01:30:06.300 --> 01:30:12.590
Boardroom: residents of the 8th and Harrison, community for, information.

600
01:30:12.810 --> 01:30:17.960
Boardroom: I'm sure it wouldn't have been as, neat and,

601
01:30:18.570 --> 01:30:24.479
Boardroom: You know, quantifiable in a spreadsheet, but it would have been informative nonetheless.

602
01:30:24.810 --> 01:30:35.370
Boardroom: It's… Insane to me that we're still… that we're, you know, putting money towards all these things,

603
01:30:35.670 --> 01:30:40.820
Boardroom: And we're like, oh, we don't have any money, we don't have… but, and, like.

604
01:30:40.940 --> 01:30:47.669
Boardroom: Most of these things are worth funding. Most of the stuff on the… Consent calendar is worth funding.

605
01:30:48.600 --> 01:30:52.319
Boardroom: It would be a lot easier to fund all of them

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606
01:30:52.640 --> 01:31:00.699
Boardroom: If you weren't spending so much of the city's budget on an out-of-control police department that violates court orders.

607
01:31:01.290 --> 01:31:09.859
Boardroom: Control police department that violates court orders and eats up an inordinate percentage of the city's budget.

608
01:31:10.520 --> 01:31:15.110
Boardroom: And when the city has to pay out for…

609
01:31:16.530 --> 01:31:26.290
Boardroom: lawsuits due to the police department's actions. It seems to always come out of the general fund rather than the police budget, which is where it should come from.

610
01:31:28.760 --> 01:31:32.939
Boardroom: I don't think you see the unhoused as our neighbors.

611
01:31:33.360 --> 01:31:44.770
Boardroom: I… I don't, because if… You did, you wouldn't… Be able to stomach Having them violently…

612
01:31:45.270 --> 01:31:48.049
Boardroom: uprooted at 6 AM,

613
01:31:49.460 --> 01:32:01.859
Boardroom: Sweeping homeless encampments doesn't actually fix the squalor that they live in Kesarwani. You don't actually care about this. You don't care about them. You have crocodile tears, that's all.

614
01:32:02.450 --> 01:32:08.649
Boardroom: They're not going to be any safer, you know, pushed out, scattered to the four winds.

615
01:32:08.760 --> 01:32:12.160
Boardroom: I work for BUSD, we have homeless students.

616

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01:32:12.960 --> 01:32:16.679
Boardroom: Imagine if you were a family living

617
01:32:16.850 --> 01:32:19.299
Boardroom: an encampment, and at 6 AM,

618
01:32:19.620 --> 01:32:23.480
Boardroom: The police busted down your tent, threw away your belongings.

619
01:32:23.640 --> 01:32:31.520
Boardroom: Threw away your belongings. Police… the police supposedly care about, violations of property rights, but not if you're homeless.

620
01:32:31.800 --> 01:32:44.470
Boardroom: So, cut the police budget, and we could probably afford to house our neighbors, and pay for all the other things we want to do. And, that would prevent crime instead of always reacting…

621
01:32:52.800 --> 01:33:15.220
Boardroom: Good evening, my name is Daria Rubel, I'm a resident of District 1 and a candidate for City Council there. I want to thank, Igor Chirub for authoring the no coal resolution, and I encourage all of you to approve it. Sounds like it's gonna happen, but I'm just so proud to live in a city that stands up for our environmental rights, for, the,

622
01:33:15.780 --> 01:33:27.720
Boardroom: for, an end to a fossil fuel destruction of our planet, and, I think it's a wonderful resolution, well worth supporting. Thank you very much. Thank you, Dario.

623
01:33:30.130 --> 01:33:32.510
Boardroom: Are you waiting in line for comment?

624
01:33:33.000 --> 01:33:34.220
Boardroom: With the hat?

625
01:33:34.490 --> 01:33:35.310
Boardroom: Come on up.

626
01:33:36.470 --> 01:33:41.510

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Boardroom: This person is waiting to speak on the action calendar. Thank you.

627
01:33:41.590 --> 01:33:42.360
Boardroom: Aye.

628
01:33:42.360 --> 01:34:07.040
Boardroom: I want to comment that we want all toxic dust out of the East Bay. That means coal and internationally banned chemical warfare agents. It doesn't matter whether toxic particulates… Sorry, we're actually, yes, this is about the coal. Oh, the coal. I know that these are different on the agenda, which is really funny, but they actually do pose the same risks. Yes. So, it doesn't actually matter whether toxic particulates are produced by corporations or wielded by our own cops against our residents.

629
01:34:07.040 --> 01:34:27.069
Boardroom: Your cops flooded the streets with tear gas in retaliation for the BLM protests to the point where people couldn't open their windows. There is no way to use it in a controlled way, or to prevent the spread of an aerosol. No coal, no toxins in our air, no tear gas. And folks who are here for the coal, please stay to give comment on the item on tear gas chemical weapons in favor of 21B, keeping the ban on tear gas.

630
01:34:31.710 --> 01:34:36.370
Boardroom: Thank you. Carol, are you here to speak on the consent calendar? Okay.

631
01:34:37.050 --> 01:34:54.159
Boardroom: Yes, I applaud you on the consent item, and I want to say as to the Renaissance item, I think Paula made a really excellent point about there are really good points here. This is really laid out really well, but there are no target dates.

632
01:34:54.160 --> 01:35:05.760
Boardroom: for it to return back to Council. And I think Council should really think about, sometimes, when we put these items, or you put these items forward, that there really be some dates set for it to return.

633
01:35:05.760 --> 01:35:15.839
Boardroom: Because, as you all know, the city manager's office is piled up with referrals. And as you all know, you annually discuss

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634
01:35:15.840 --> 01:35:40.090
Boardroom: all these referrals, and how are you going to prioritize them, but they all sound very important when they're first raised. And so I think that's something that actually those objectives are something you should keep in mind, that something should return so that the public knows, and you all know you're moving forward on your item, and it isn't just lost in the pile of items. And I've experienced that from commissions, too.

635
01:35:41.200 --> 01:35:44.090
Boardroom: Thank you, Carol. Thanks, Carol!

636
01:35:45.030 --> 01:35:56.070
Boardroom: Okay, we've got, 6 hands raised online, so I'd like to take these and hopefully finish our consent calendar before we take break.

637
01:35:56.270 --> 01:36:02.060
Boardroom: Okay. The first speaker is Allison.

638
01:36:05.000 --> 01:36:06.820
Allison Granzella: Hi, yes, can you hear me?

639
01:36:07.090 --> 01:36:07.970
Boardroom: Yes.

640
01:36:08.160 --> 01:36:20.179
Allison Granzella: Okay, give me one second… sorry, I'm calling in from my phone. Okay, my name is Allison, I'm a PRW Commissioner, but not speaking on behalf of the Commission. I'm commenting on item number 12.

641
01:36:21.160 --> 01:36:33.150
Allison Granzella: First and foremost, I want to state that I support ferry service, and I support authorization to apply for this grant. What I do not support is building large surface area parking lots on prime waterfront land.

642
01:36:33.350 --> 01:36:40.949
Allison Granzella: Instead, we should build a multi-level parking structure in a less prime and more central location with funding from WETA to serve its riders.

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643
01:36:41.160 --> 01:37:00.619
Allison Granzella: This grant program is designed to reduce greenhouse gas emissions and increase clean transportation. Construction of a 450 capacity large surface area parking lot is not in alignment with that. Even if some portion are EV charging, this parking plan will not reduce emissions. It incentivizes car use and affirms resilience on fossil fuels.

644
01:37:01.810 --> 01:37:10.110
Allison Granzella: decisions to make today will shape how residents experience the shoreline for generations, and my hope is that Berkeley chooses a future that prioritizes reputation.

645
01:37:10.110 --> 01:37:10.450
Boardroom: it.

646
01:37:10.860 --> 01:37:12.840
Boardroom: is up. Thank you for your comment.

647
01:37:13.620 --> 01:37:15.690
Boardroom: Next is John Kaner.

648
01:37:19.490 --> 01:37:23.309
John Caner: Hello, Mayor and Council. Happy birthday, Madam Mayor.

649
01:37:23.400 --> 01:37:36.660
John Caner: I am speaking, for number one, the grant application for Civic Center as… for the community for a Cultural Civic Center, thanking staff for doing that work. We need to keep that project moving and going.

650
01:37:36.660 --> 01:37:44.610
John Caner: were part of the grant… the application. Number two, want to thank Councilmember Trega-Robbers and the City Manager and staff.

651
01:37:44.610 --> 01:38:02.480
John Caner: for the catenary lighting project, it's really going to make a big difference on Addison Street, and it takes a village. We're working with all the property owners. I really want to thank the fire department for working with us on that also. And then on item 20, the Renaissance Project, thanking particularly Councilmember Trego.

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652
01:38:02.510 --> 01:38:15.450
John Caner: And I think we all agree, we don't want to have a repeat of what happened on Center Street, with the boarded-up, buildings. We're hoping they break ground very soon. We also don't want a repeat of empty pits, like on Harold Way.

653
01:38:15.450 --> 01:38:22.900
John Caner: So, thank you, for that measure. Also, we need to fill and activate our storefronts and our…

654
01:38:23.410 --> 01:38:24.590
John Caner: Thank you, bye.

655
01:38:24.590 --> 01:38:25.120
Boardroom: on.

656
01:38:25.480 --> 01:38:26.480
Boardroom: Okay.

657
01:38:27.180 --> 01:38:29.739
Boardroom: Next is Della Luna.

658
01:38:36.260 --> 01:38:38.170
Della Luna (she/her) Huichun: I guess I wanted to speak about some…

659
01:38:38.170 --> 01:38:57.920
Della Luna (she/her) Huichun: Something that I'm noticing tonight, there were two, at least, council members on the dais that spoke about the encampments, and they weren't interrupted or redirected, and then when the public attempts to speak about that issue, we then get redirected. So it's a little confusing, also since the city manager spoke about it.

660
01:38:57.960 --> 01:39:14.389
Della Luna (she/her) Huichun: it's not clear when the public would comment on that city manager's report, but I just wanted to follow up on some of those comments made on the dais tonight, speaking about the status quo, and I just wanted to say that you all are the status quo that you are condemning.

661
01:39:14.580 --> 01:39:24.619

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Della Luna (she/her) Huichun: And then another council member brought up, in regards to the encampment, about rats and rodents. But again, the City of Berkeley was in charge of rodent control, I believe, for the past few decades.

662
01:39:24.620 --> 01:39:36.280
Della Luna (she/her) Huichun: And the responsibility was only passed to Alameda County July 1st, 2026. So again, those problems that you all were trying to highlight about the encampments actually lead directly back to you.

663
01:39:36.360 --> 01:39:38.290
Della Luna (she/her) Huichun: And I just wanted to say that. Thank you.

664
01:39:42.970 --> 01:39:45.510
Boardroom: Next is, Jesse.

665
01:39:50.150 --> 01:39:59.789
Jerry’s iPad: Yes, hello, thank you. I'd like to, comment on, on 20. The, you know, the renaissance and revitalization of our commercial districts.

666
01:39:59.940 --> 01:40:02.649
Jerry’s iPad: you know, this is what I've been trying to do.

667
01:40:02.910 --> 01:40:13.770
Jerry’s iPad: on telegraph out of the pandemic. And, you know, and I was attacked repeatedly by Peter Radieux, throwing away my furniture.

668
01:40:13.770 --> 01:40:27.389
Jerry’s iPad: fining the business owner and the building owner that we were sitting in front of, fining Ken Serrakhan, an icon in this town. He would fine him for letting us sit in front of his building. Peter Verdu.

669
01:40:27.580 --> 01:40:32.889
Jerry’s iPad: Get rid of that guy. Off of this city staff, Miss Ishii. Thank you.

670
01:40:35.580 --> 01:40:44.109
Boardroom: Okay… Next is, caller with a phone number ending in 385.

671

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01:40:49.710 --> 01:40:51.799
Boardroom: Press star 6 to unmute.

672
01:40:58.690 --> 01:41:02.680
Boardroom: Person calling in with a phone number ending in 385.

673
01:41:03.660 --> 01:41:07.760
Boardroom: Press star 6 to unmute if you want to give public comments.

674
01:41:13.020 --> 01:41:15.819
Boardroom: Alright, well, we'll move on.

675
01:41:16.830 --> 01:41:21.179
Boardroom: Next is M. Jones.

676
01:41:24.660 --> 01:41:30.480
M Jones: Hello, I'm actually calling about something that's not on the agenda, so am I in the right.

677
01:41:31.360 --> 01:41:37.089
Boardroom: No, I'm sorry, we're currently only taking public comment on consent calendar and information items only.

678
01:41:37.470 --> 01:41:39.400
M Jones: For the whole night, or for just…

679
01:41:39.400 --> 01:41:49.180
Boardroom: So later on in this evening, after the action calendar, there is a section of the agenda that also takes public comment for items not listed on the agenda.

680
01:41:49.440 --> 01:41:50.280
M Jones: Okay.

681
01:41:50.280 --> 01:41:51.340
Boardroom: Thank you!

682
01:41:52.550 --> 01:41:55.650
Boardroom: Alright, well that, that concludes the…

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683
01:41:56.090 --> 01:41:59.909
Boardroom: The, public comments for item, people on those.

684
01:42:00.570 --> 01:42:04.089
Boardroom: Thank you. Is there a motion to approve the consent counsel?

685
01:42:04.380 --> 01:42:13.650
Boardroom: Madam Mayor, real quick, could I add two other co-sponsors, which I didn't get a chance to do, on the wildfire item? Councilmember Humbert and Councilmember, O'Keefe.

686
01:42:13.930 --> 01:42:16.700
Boardroom: For, for which item? For the wildfire Emergency Act.

687
01:42:17.410 --> 01:42:20.260
Boardroom: So moved with that change. Now second.

688
01:42:20.670 --> 01:42:24.440
Boardroom: Thank you. Is there any… Who are the co-sponsors again?

689
01:42:24.910 --> 01:42:26.090
Boardroom: O'Keefe and Humbert.

690
01:42:28.770 --> 01:42:29.630
Boardroom: Thank you.

691
01:42:29.880 --> 01:42:47.429
Boardroom: Sorry, Councilmember Bartlett, did you have something you wanted to add? Very quickly, just, I wanted to mention, incentive a prayer for the Loan Administration Board. It's dissolving. It's been around for decades, and it was originally set up to deploy federal funds to loan to small businesses and underrepresented communities.

692
01:42:47.430 --> 01:43:00.130
Boardroom: Like South Berkeley and West Berkeley, and it was really, really great. I served on it years ago, with Ms. Hollander, and it's sad to see it go. But apparently, no one showed up to join the commission, and they didn't meet for 2 years.

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693
01:43:00.440 --> 01:43:11.420
Boardroom: And so, this is a call out to the community, I love your passion around the issues, I support everything you believe in, but I wanted to do a step further and join commissions.

694
01:43:11.420 --> 01:43:25.380
Boardroom: Because we need people to be really involved, and it's important for this to go on, and as a result, we're losing this board. Although I do want to recommend the group we're giving it to, it's good, Working Solutions, but it is not us.

695
01:43:25.830 --> 01:43:27.010
Boardroom: So, thank you.

696
01:43:27.320 --> 01:43:37.230
Boardroom: Thank you. Okay, so is there any objection to approving the consent calendar with the changes that we've made this evening?

697
01:43:37.940 --> 01:43:41.510
Boardroom: Okay, the consent calendar has passed. Thank you all very much.

698
01:43:42.450 --> 01:43:52.729
Boardroom: Thank you all so much for coming, and for your comments this evening. We are gonna take a 15-minute break before our action calendar. Thank you.

699
02:01:01.080 --> 02:01:11.369
Boardroom: We're ready. Yes. Okay, alright. Hi, everyone. Thank you so much for your patience.

700
02:01:11.530 --> 02:01:29.209
Boardroom: All right. Oh, okay. You all are welcome to line up if you want to, but just be aware it might be a minute, so… because we're gonna have Councilmember Kessarwani present her item, and then, George, if you also want to present the letter for 21B, and then we have,

701
02:01:29.380 --> 02:01:49.110
Boardroom: We have online Kathy from our… who is our Interim Director of Police Accountability, and then also, online is Josh, who is our, chair

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of the Police Accountability Board, and they're both available to answer questions, but if we could just, bring them…

702
02:01:49.110 --> 02:01:51.610
Boardroom: up, Mark, just so I can…

703
02:01:51.610 --> 02:01:55.359
Boardroom: Just so you can have them at the ready, that would be great.

704
02:01:57.220 --> 02:01:59.950
Boardroom: Kathy Lee and, yeah, Josh Kayatai.

705
02:02:02.010 --> 02:02:16.489
Boardroom: Perfect. Thanks, Josh, that was helpful to have you raise your hand. And ODPA must be Kathy. Wonderful, thank you both. Okay, alright, so, we are gonna go… presentations, questions for all parties involved.

706
02:02:16.520 --> 02:02:39.009
Boardroom: And then we will take public comment, and then we will do Council comments, and then, any further deliberations, so… Okay, go ahead, Councilmember. Thank you very much, Madam Mayor. I want to thank the members of the Public Safety Committee who heard this item earlier this year, and the members of the public who came and gave public comment at that meeting. I want to thank

707
02:02:39.010 --> 02:02:41.179
Boardroom: Members of the public who are here tonight.

708
02:02:41.180 --> 02:02:52.309
Boardroom: and on Zoom to give public comment, and I want to thank our police chief, our deputy chief, and our captain, who are here to answer questions and provide more detail on this item.

709
02:02:52.730 --> 02:02:59.929
Boardroom: I want to explain the circumstances under which this ban was put in place. I think only two of us on the dais

710
02:02:59.930 --> 02:03:19.329
Boardroom: Today, we're here at the time. It was June 2020, at the height of the COVID-19 pandemic, when no vaccine was available, and Black Lives Matter protests and marches were happening, and there was concern about

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the respiratory impacts of COVID-19 combined with tear gas, pepper spray, or smoke.

711
02:03:19.390 --> 02:03:33.570
Boardroom: Six years later, we now have a vaccine that is widely available with high uptake. I believe it is important for this Council to reconsider the limited use of these less lethal tools

712
02:03:33.590 --> 02:03:52.889
Boardroom: I believe the reason why is because they can keep both civilians and police safer. I want to be clear about how narrow this is in practice. Over more than 40 years, BPD's Special Response Team has used tear gas exactly once.

713
02:03:52.890 --> 02:04:06.599
Boardroom: during a barricaded subject incident in the early 2000s. This item authorizes by the Special Response Team, and only for barricaded subject operations.

714
02:04:06.960 --> 02:04:29.709
Boardroom: High-risk warrant service where a subject is… suspect is actively presenting a threat of death, or serious injury or hostage situations. Those are the only potential uses. Crowd control is expressly banned. And this is intended to prevent the loss of life in these low-probability, high lethality events.

715
02:04:29.850 --> 02:04:45.209
Boardroom: For instance, an armed suspect barricaded or firing from a position of cover, so our officers have every less lethal tool available to avoid an armed confrontation and save as many lives as possible.

716
02:04:45.210 --> 02:05:09.610
Boardroom: Our police chief has told me that she is not aware of any other agency with a ban on the use of tear gas for an armed, barricaded suspect, which is the only use we are asking for tonight. We are also asking the Council to lift the moratorium on smoke and OC spray for use only in violent crowd situations, to interrupt active violence

717
02:05:09.680 --> 02:05:32.629
Boardroom: Create distance between opposing groups or allow officers to respond to a specific act of violence from a single individual, for example. Where these tools can prevent injury or death to civilian or

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officers, again, by offering a less lethal tool. All three tools remain governed by Policy 300 on use of force.

718
02:05:32.670 --> 02:05:40.069
Boardroom: Policy 303 on Control Devices and Techniques, and Policy 428 on First Amendment Assemblies.

719
02:05:40.070 --> 02:06:04.100
Boardroom: These policies and state law under Penal Code Section 13652 write real limits into how these tools may be used. They cannot be deployed against individuals engaged only in passive resistance, and they cannot be used solely because of a curfew violation, a verbal threat, or noncompliance with a directive. De-escalation must be attempted first.

720
02:06:04.100 --> 02:06:11.609
Boardroom: Expressly written into the use policy. And use must be targeted at individuals engaged in violence.

721
02:06:11.770 --> 02:06:22.840
Boardroom: Never fired indiscriminately into a crowd. I want to thank the Police Accountability Board for their engagement on this item. I understand that they are online.

722
02:06:22.840 --> 02:06:32.579
Boardroom: and available, and I want to speak to the concerns that they raised about the infrequency of past use and the liability associated with chemical agents.

723
02:06:32.590 --> 02:06:57.579
Boardroom: I'd suggest that infrequency actually supports this narrow reinstatement rather than the status quo. A tool used once in 40 years, restricted to a specially trained team, is not a tool that invites casual or frequent use, and that is our department's history on this. Those are the facts. Okay, folks, you're gonna have an opportunity to speak.

724
02:06:57.580 --> 02:07:19.559
Boardroom: beyond what existed before 2020, and I'm going to make that more clear with an amendment to the resolution, but what we have stated in this report is that whenever a public summary of a deployment is posted, the department must now notify the city manager, who will bring that information to both the Council and the Police Accountability Board within 10 days.

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725
02:07:19.690 --> 02:07:32.120
Boardroom: I do want to acknowledge the fear that these tools could be used outside the specific and limited purposes proposed here. I believe in police accountability, and we have real mechanisms to enforce it.

726
02:07:32.120 --> 02:07:43.050
Boardroom: There are supervisor authorization requirements, mandatory use of force reporting and review by the chief of police, and the reporting and public posting requirements I just described.

727
02:07:43.050 --> 02:07:47.049
Boardroom: Those mechanisms exist precisely… precisely so that…

728
02:07:47.080 --> 02:07:58.139
Boardroom: So that any use outside our strict policies can be identified and addressed. Thank you very much, and I look forward to, comments and questions from my colleagues.

729
02:07:58.920 --> 02:08:14.449
Boardroom: Thank you. I'm so sorry, I meant to say that the supplemental will then be presented by Councilmember Blackaby Soko. And I can say for the record, I'm in full support of the supplemental amendments. Thank you. Great, thank you. I'll be brief. I also wanted to thank,

730
02:08:14.780 --> 02:08:25.510
Boardroom: the department leadership and the Police Accountability Board for working together on compromise language that would bring more clarity to these very limited situations where we are

731
02:08:25.520 --> 02:08:43.129
Boardroom: the department should have the ability to consider the use of tear gas in these very limited, circumstances. My supplemental tries to add that clarity to the language of the resolution. So we've… I'm just gonna kind of make some, I'll show you those changes.

732
02:08:43.310 --> 02:08:57.130
Boardroom: we sort of eliminated the other potential high-risk situations. It's just at suspects shooting at officers during warrant service, hostage rescue situations, and armed-baricated suspects. We made that more clear. And then in the resolution itself.

733

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02:08:57.290 --> 02:09:10.510
Boardroom: This is the language that had jointly been worked out with the department and with the Police Accountability Board. Again, thanks to the Chair and Vice Chair of the Accountability Board, the director of the ODPA, and the department leadership.

734
02:09:10.520 --> 02:09:24.939
Boardroom: So this is the language that they had kind of worked on together, that says, be it for the resolve that tear gas shall only be used upon approval by the incident commander, the special response team, here are the three very specific situations when it could be authorized.

735
02:09:24.970 --> 02:09:38.829
Boardroom: If feasible, before it's deployed, issuing verbal warnings, taking steps to ensure that the suspect's in a controlled area. And then we added in… we removed this sort of other tear gas piece, because we've…

736
02:09:38.830 --> 02:09:58.460
Boardroom: made it clear up here, and then continued to define the circumstances for smoke and OC spray. Directed to report on the use of tear gas as defined in Policy 300 and Policy 428, and then directed to update policies, as necessary to reflect these new requirements. So this is, really just codifying

737
02:09:58.460 --> 02:10:07.200
Boardroom: the agreement that had been… had been reached between the PAB and the department, putting it in the resolution, so it's here for our consideration. And that's, I think, the summary.

738
02:10:07.200 --> 02:10:23.239
Boardroom: Thank you very much. Yes, and I do really appreciate our police department working with our police accountability board. I think that's exactly the kind of partnership that I know the council really wants to see, so thank you all, and thank you online, those of you that are online. Okay, George, would you like to come up?

739
02:10:24.560 --> 02:10:36.650
Boardroom: I'm giving George 5 minutes to speak on this, to present his letter, yeah. Thank you. I'm appearing on behalf of the, and at the request of our chair, Pastor.

740
02:10:36.770 --> 02:10:40.790

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Boardroom: Dwayne Phillips, who's… I apologize, he couldn't be here tonight.

741
02:10:41.470 --> 02:10:45.210
Boardroom: This is something that we voted on 6 months ago, so…

742
02:10:45.460 --> 02:11:04.139
Boardroom: some things have changed. You've passed some of the other items we were talking about. I want to lay the groundwork for, why, good policies, well-attended policies, and oversight are not enough, and why we just don't…

743
02:11:04.550 --> 02:11:18.000
Boardroom: want to go there with these, chemical weapons. So, our recommendation is, number one, retain the existing 2020 bans on chemical weapons, CS and OC, tear gas and pepper spray.

744
02:11:18.510 --> 02:11:34.050
Boardroom: Request the city manager, and this is our positive suggestion, engage in academic institutions such as UC Berkeley, UCSF, or Stanford to study the health impacts of tear gas and other chemical weapons, potential short… Sorry.

745
02:11:34.140 --> 02:11:51.659
Boardroom: potential short- and long-term impacts on vulnerable populations and possible alternatives to the use of chemical weapons that provide officer safety, suspect safety, and safety to the general public. So this was all voted on, and supported, by the full commission.

746
02:11:51.780 --> 02:11:59.959
Boardroom: So, speaking directly to tear gas, pepper spray, and smoke.

747
02:12:00.060 --> 02:12:08.489
Boardroom: The Commission recommends the Council retain the ban on CS and the moratorium on OC and smoke for four reasons.

748
02:12:08.730 --> 02:12:19.009
Boardroom: One, CS and OC are dangerous weapons that are properly considered less lethal, not non-lethal, and we should use the correct language. They can kill people.

749

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02:12:19.010 --> 02:12:32.039
Boardroom: CS and OC are particularly dangerous to the health of people with disabilities, especially respiratory or environmental sensitivities, and also those suffering from mental or behavioral, disorders.

750
02:12:32.770 --> 02:12:42.210
Boardroom: On, to go into a little depth on… Alright.

751
02:12:43.880 --> 02:12:47.619
Boardroom: On the… on… a little bit of,

752
02:12:47.960 --> 02:12:52.240
Boardroom: a little bit of science. Over decades of research.

753
02:12:52.990 --> 02:13:05.699
Boardroom: Scientists have shown a strong potential harm from CS use, tear gas, in policing, and Oakland Police Department policy warns chemical agents can produce serious injuries or even death.

754
02:13:05.810 --> 02:13:18.419
Boardroom: and officers are to use the minimum amount of chemical agent needed to obtain compliance. Further, the use of hand-thrown chemical agents or pyrotechnic gas dispersal devices may present a risk of…

755
02:13:18.540 --> 02:13:22.899
Boardroom: Permanent loss of hearing, or serious bodily injury from shrapnel.

756
02:13:23.340 --> 02:13:29.629
Boardroom: Where's my clock? You've got 2 minutes left, and a little more. This, the,

757
02:13:29.900 --> 02:13:39.139
Boardroom: Tear gas is an incorrect term, it makes the CS seem trivial. It's actually not even a gas, but an aerosol made up of ultra-fine particles, or UFPs.

758
02:13:39.590 --> 02:13:57.789
Boardroom: Aerosols are dangerous to lung health because, according to the U.S. National Library of Medicine, the small size of UFPs allows them to penetrate deep into the respiratory tract, causing mild… effects from

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mild respiratory issues to lung cancer, neurological diseases, and so forth.

759
02:13:57.930 --> 02:14:11.700
Boardroom: They provide, they link, in ultrafine particulate matter, exposure to increased hospital admissions and premature deaths among vulnerable populations.

760
02:14:11.810 --> 02:14:16.240
Boardroom: I want to jump to the issue about,

761
02:14:18.600 --> 02:14:22.389
Boardroom: The effect of, of hav… just having these…

762
02:14:23.060 --> 02:14:29.410
Boardroom: and relying on policies. In December 6th of 2014,

763
02:14:29.460 --> 02:14:41.470
Boardroom: BPD drove a largely peaceful march almost a mile down Telegraph from the UC campus to the Oakland City line. The direction from BPD command was… to the officers was, get them running. This is documented.

764
02:14:41.470 --> 02:14:52.880
Boardroom: To implement the direction, officers shot less lethal projectiles into the crowd, hit marches with batons, and launched some 50 cans of CS gas, such a large amount that they nearly exhausted their supply.

765
02:14:52.890 --> 02:15:00.809
Boardroom: I'm not making any aspersions against the department or the officers. It's just… it's just…

766
02:15:01.080 --> 02:15:08.869
Boardroom: human nature, when you have a tool, you're going to use it, and you're going to find ways to use it that are not necessarily within

767
02:15:08.960 --> 02:15:21.089
Boardroom: But it's inaccurate to say, we have a great record. There's real big problems with it, and it was in 1991, with the People's Park police action.

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768
02:15:21.310 --> 02:15:35.250
Boardroom: And they developed a rule that said no crowd could be forced to move faster than they were reasonably capable of moving, which is exactly what they did in 2014. The, Physicians for Human Rights…

769
02:15:35.520 --> 02:15:48.000
Boardroom: Okay, well, call me back if you have any questions. Thank you, George. Thanks. I appreciate it. Folks, they've already submitted a letter, so we also have the letter. Thank you. Okay.

770
02:15:48.030 --> 02:15:55.880
Boardroom: The letter is in the packet, and you're welcome to take a look at it. Okay, so, do… does anyone have…

771
02:15:56.660 --> 02:16:04.559
Boardroom: I'm not giving them 5 minutes right now, because they're here to answer questions. So, are there any questions from any of the council members?

772
02:16:05.060 --> 02:16:07.120
Boardroom: I'm not questioned for George.

773
02:16:07.800 --> 02:16:11.069
Boardroom: Yeah. Yes, Councilmember Bartlett.

774
02:16:13.110 --> 02:16:29.000
Boardroom: Thank you, Madam Mayor, and and thank you, Councilmakers, for wanting to bring this forward, and thank you, Commissioner Blackaby, for your, your, your work with the PAB on your alternatives. I guess just a couple operational questions, historically, for the, for the team here.

775
02:16:30.030 --> 02:16:41.879
Boardroom: I guess, you know, since the ban in 2020, can you think of an incident where the lack of tear gas resulted in injury, or some sort of harm, or prevented safe resolution?

776
02:16:42.540 --> 02:16:47.300
Boardroom: Or rather, or you were forced to use higher levels of force?

777

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02:16:48.770 --> 02:16:59.879
Boardroom: Thank you for your question. So, tear gas, as we've talked about, is intended for high-risk incidents that occur infrequently and, can have serious consequences. We've had 3 incidents

778
02:16:59.900 --> 02:17:14.929
Boardroom: Over the past couple of years, that could have resulted in the need for tear gas had we had it. The first one, we had an incident in May of 2024, where our special response team served a search warrant, on a, on a, residence.

779
02:17:15.010 --> 02:17:19.289
Boardroom: The individual inside was believed to be armed and refused to come out.

780
02:17:19.530 --> 02:17:34.760
Boardroom: The team, contained the area and attempted negotiations for more than an hour. Negotiations were unsuccessful, but the team ultimately used other tactics and were able to bring the person out safely without further incident. Had those tactics failed.

781
02:17:35.070 --> 02:17:54.800
Boardroom: tear gas could have been considered as a next option. Its use would not have been automatic. The tactical commander would still have needed to evaluate the threat, the urgency of the situation, the people who might be exposed in the physical environment, as to whether or not it would be reasonable or proportional.

782
02:17:56.629 --> 02:18:07.630
Boardroom: We also had, on, June 11th of 2024, SRT served a high-risk warrant for a shooting suspect who was believed to still be armed. When officers attempted to contact

783
02:18:07.879 --> 02:18:20.749
Boardroom: With the suspect, both over the phone and over a loudspeaker, the suspect did not respond or acknowledge officers. SRT utilized other tactics, and after 30 minutes, the suspect and other occupants exited.

784
02:18:20.790 --> 02:18:31.020
Boardroom: While this resolved peacefully, tear gas would have likely been one of the next tools considered. Ultimately, a firearm was recovered from inside that residence.

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785
02:18:31.170 --> 02:18:37.139
Boardroom: Shh, folks, come on. You will have time for your public comment. Please don't interrupt.

786
02:18:37.360 --> 02:18:39.020
Boardroom: Please come. Thank you, Mayor.

787
02:18:39.110 --> 02:18:56.930
Boardroom: On April 13, 2025, BPD responded to a domestic dispute where a female was heard saying that she couldn't breathe. Officers attempted to contain the occupants of the apartment who refused to exit the structure. XRT was activated and requested to the scene.

788
02:18:56.990 --> 02:19:04.630
Boardroom: Prior to their arrival, an officer-involved shooting took place, and the suspect was taken into custody, and the other person was recovered safely.

789
02:19:04.740 --> 02:19:16.160
Boardroom: If SRT had arrived, they would have had to manage an armed suspect inside with a potential hostage. For a variety of reasons, tear gas would have been considered as a tool to help safely resolve that situation.

790
02:19:16.219 --> 02:19:27.060
Boardroom: Okay. Thank you, Captain. And, I guess another question is, in terms of, these situations where a person is barricaded, right,

791
02:19:27.250 --> 02:19:34.050
Boardroom: And I guess you've alluded to what was done, but what are some alternatives we have, when someone is, barricaded?

792
02:19:36.469 --> 02:19:47.540
Boardroom: So when someone is barricaded, typically we, have a number of options. We'll contain the scene, attempt to negotiate, if the circumstances allow for that.

793
02:19:47.610 --> 02:20:00.089
Boardroom: Understand that the circumstances may not always allow for that. If there are acts of violence that are occurring, if a suspect is

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shooting at the moment that officers are there, they may not have the option to contain the scene or attempt negotiations.

794
02:20:00.280 --> 02:20:11.320
Boardroom: Aside from that, our tactics are very, very limited, besides actually going into the, into a structure, where we're going to.

795
02:20:11.320 --> 02:20:31.970
Boardroom: Reduce the distance between the officers and the suspect, and, go into an environment where we don't have, control of the inside of an environment, if we're going into a house, and you're talking about an armed barricade. And so we are, the level of danger is heightened, both for the suspect and the responding officers.

796
02:20:31.970 --> 02:20:35.949
Boardroom: And the likelihood of an armed, violent confrontation increases.

797
02:20:36.140 --> 02:20:44.410
Boardroom: Okay, and then how would you, how would you, in that situation, right, how would you deploy, the CS into the…

798
02:20:44.580 --> 02:20:46.430
Boardroom: The barricaded environment.

799
02:20:47.020 --> 02:20:51.250
Boardroom: Not… in terms of, like, so, I mean, the…

800
02:20:51.630 --> 02:21:07.259
Boardroom: I guess, you know, in my memory, the tear gas incident that we engaged on many years ago, before the 2020, was the marches, right, where they flooded the streets on Shattuck. And then there's the micro-use, where you spray in someone's face to disarm them.

801
02:21:07.260 --> 02:21:14.109
Boardroom: But what is the delivery mechanism for, you know, inside a barricaded room, or apartment, through a door?

802
02:21:14.210 --> 02:21:18.399
Boardroom: Sure, so typically that would be a hand-thrown device. Okay.

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803
02:21:20.260 --> 02:21:21.559
Boardroom: Okay, thank you.

804
02:21:22.930 --> 02:21:31.289
Boardroom: Thank you. Oh, our parliamentarian is sort of working. Maybe Councilmember Taplin is next?

805
02:21:31.490 --> 02:21:47.190
Boardroom: And then Councilmember Humbert. Thank you very much, and thanks everyone for being here. So during negotiations with, an armed barricade subject, could you walk us through the steps that you take during those negotiations, and at what point

806
02:21:48.140 --> 02:21:58.230
Boardroom: at what point do you realize or think that it's gonna escalate beyond a… Acceptable threshold.

807
02:21:59.410 --> 02:22:17.770
Boardroom: So we have, specially trained personnel that go to schools designed, to train our negotiator element. So our folks that have extensive training in that, and they would, those specially trained personnel, a group of them will work as a team to try to identify,

808
02:22:17.870 --> 02:22:33.559
Boardroom: what the key issues are and how we can safely resolve an issue. If they're able to establish communication with someone who's barricaded, they would work with them to identify what it would take to help get them to come out, identify what potential

809
02:22:33.560 --> 02:22:41.809
Boardroom: concerns they might have, and how we could safely resolve the situation. And then through that, through those efforts,

810
02:22:41.940 --> 02:22:49.469
Boardroom: set up a plan for that, suspect to safely come out and be taken into custody. Unfortunately, that…

811
02:22:49.470 --> 02:23:02.259
Boardroom: It doesn't always work out that way, and so if the negotiators are getting information that, things are escalating, or that it is, their efforts are not successful after.

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812
02:23:02.260 --> 02:23:17.710
Boardroom: The time… after a reasonable amount of time, and evaluating other risks, or potential risks, the instant commander would have to weigh a wide range of circumstances to make a decision about what the next, most appropriate tactic would be.

813
02:23:17.710 --> 02:23:24.740
Boardroom: Things they consider are, the threat and necessity, so is there a need to act immediately, or is there time?

814
02:23:24.740 --> 02:23:30.509
Boardroom: To… or are there other tactics that haven't been applied that might help resolve the situation?

815
02:23:30.570 --> 02:23:46.740
Boardroom: Identify, in terms of their calculus, persons at risk, both inside the building itself and surrounding the building, as well as risks that the situation may pose to officers, other involved community members, the suspect themselves.

816
02:23:46.860 --> 02:24:01.089
Boardroom: Alternative tactical operation… options, so identifying what other options they might have and what is most likely to resolve the situation peacefully and with, minimal or no harm to anybody involved.

817
02:24:01.290 --> 02:24:19.029
Boardroom: Environmental factors, in terms of if they're weighing the use of tear gas, and how that environmental factors would impact the, how effective that tool would be in resolving the situation. Support resources for mitigation, so ensuring that we have…

818
02:24:19.070 --> 02:24:37.769
Boardroom: Berkeley Fire Department and other resources available to address any potential harms, associated with the situation. And finally, a risk-benefit analysis, determining whether the proposed deployment is likely to improve the situation or create additional risk.

819
02:24:40.110 --> 02:24:43.610
Boardroom: Thank you very much. Councilmember Humbert, and then Councilmember Blackby.

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820
02:24:44.100 --> 02:24:57.629
Boardroom: Thank you, Madam Mayor, and I really just have one question. We heard earlier, an assertion that the 2014 march down Telegraph Avenue from Berkeley through to Oakland was

821
02:24:57.810 --> 02:25:12.890
Boardroom: was peaceful. And I don't remember that it was peaceful. My recollection was that there was significant violence involved in that mark. Please. Can you address that? This would be directed to BPD.

822
02:25:13.740 --> 02:25:15.210
Boardroom: Shame on you.

823
02:25:15.630 --> 02:25:31.199
Boardroom: Yeah, we would not classify it as, peaceful. There were, dispersal orders given, there were acts of violence where individuals had to be rescued, using a rescue task force with fire department personnel.

824
02:25:31.200 --> 02:25:55.270
Boardroom: There, there was extreme vandalism. So, to that end, I would not classify it as peaceful. Were there instances… Folks, it's very… Councilmember, Councilmember, can you give me a second? Folks, please, come on. We need to be able to hear the answers to these questions. I would really like to get to the public comments, so if we could let this part finish, we will get to you, and you will have time.

825
02:25:55.270 --> 02:25:57.580
Boardroom: to give your comments then. Thank you.

826
02:25:58.370 --> 02:26:12.319
Boardroom: Yes, there were also Molotov cocktails, as well as bricks, various other items thrown at officers. Thank you. Yeah, thank you. That's… that's what I recall from the reporting of that night. Thank you.

827
02:26:14.010 --> 02:26:21.400
Boardroom: Councilmember Blackaby. Thanks, Madam Mayor. Just to get to the nub of it, I think, we know, like, tear gas is…

828
02:26:21.610 --> 02:26:27.440
Boardroom: very, you know, harmful, dangerous, when misused. We… that's true.

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829
02:26:27.740 --> 02:26:43.660
Boardroom: But I think the whole question of this is, how does it materially change the risk? Because we're talking about safety of officers, of suspects, and to others in harm's way when you're in these sort of barricaded situations or hostage situations.

830
02:26:43.820 --> 02:26:54.439
Boardroom: when you have the possibility of using tear gas, or when you don't. Could you talk about how the risks change, and if you have to confront a suspect.

831
02:26:54.870 --> 02:27:08.839
Boardroom: with tear gas or without, how does that change the situation, potentially make it safer, again, for the suspect, as well as for the officer, as well as for other people who might be in that same proximity? Can you talk about, a little just about those trade-offs, and…

832
02:27:08.860 --> 02:27:21.300
Boardroom: how this makes it safer. Sure, I think I'll start, and then I'll pass it to Captain Okies. Generally, the individual, who we are attempting to communicate with has a say in what's happening.

833
02:27:21.300 --> 02:27:29.649
Boardroom: And where we have an armed individual who is refusing to come out, or for whatever reason, is committed to doing harm.

834
02:27:29.650 --> 02:27:45.040
Boardroom: It is a viable tool that we could use that we can get into very small spaces to encourage the individual to cooperate with whatever the directives are. So, absent that, our officers are forced to

835
02:27:45.350 --> 02:27:53.779
Boardroom: Potentially have a lethal encounter with an individual that we may not have otherwise had we had the tool.

836
02:27:55.270 --> 02:28:04.049
Boardroom: Yeah, so… Basically, this tool impacts the environment and makes, gives us the option, potentially, of…

837
02:28:04.300 --> 02:28:24.599

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Boardroom: creating an environment that the suspect wants to come out of, right? And we're in… the suspect has control of a… if they're barricaded in a structure, they have control of everything inside that structure. We may be able to contain it, but we have no control over what's going on in there. One way to influence a suspect's behavior to get them to come out on our terms is to use this tool.

838
02:28:24.600 --> 02:28:29.240
Boardroom: When they come out, we have the benefit of distance, and we're able to dictate some of the terms.

839
02:28:29.310 --> 02:28:49.030
Boardroom: of how that person is going to come out, or where they're going to come out, from a distance, from a position of cover, in a way that reduces the risk of all involved. With that greater distance, provides more time and decision-making, time to give direction to the suspect, and then time to be able to safely bring that person into custody.

840
02:28:49.030 --> 02:29:00.150
Boardroom: Conversely, if we don't have that tool, we have to go into the house, we're now compacting that distance, reducing the amount of time, and entering into an environment that's controlled by the suspect.

841
02:29:00.280 --> 02:29:08.220
Boardroom: greatly increasing the likelihood of a violent encounter in these kinds of circumstances. So this tool reduces

842
02:29:08.220 --> 02:29:25.290
Boardroom: the potential for a violent encounter and results in a more likely safe outcome for everybody involved. Again, this is a tool that's not designed to be used, except for, as outlined in our… in this, in this policy, under the most serious…

843
02:29:25.410 --> 02:29:31.000
Boardroom: Circumstances where, as police officers, we don't have the option of leaving.

844
02:29:31.040 --> 02:29:48.040
Boardroom: we have to resolve these… these situations. We are… we are required to resolve these situations. So, that's how it works. And in those situations, if you have… if you proceed into a situation where you have a confrontation, and on balance, the officers decide, hey, it's…

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845
02:29:48.410 --> 02:29:59.870
Boardroom: you know, we need to… we need to basically resolve this. We can't wait this out any farther. There are other issues here, there are other people, potentially, that are being held against their will. Like, we need to move to sort of close the situation down.

846
02:30:00.120 --> 02:30:03.840
Boardroom: In that case, they are relying on their…

847
02:30:04.240 --> 02:30:20.409
Boardroom: Right? They're sidearms, they're lethal… I mean, that's sort of the range that you head into at that point, when you're trying to defend yourself in that situation. And so, it feels like a lot of our policies, use of force and others, are trying to avoid, at all costs, having to resort to that kind of

848
02:30:20.740 --> 02:30:30.759
Boardroom: confrontation, that kind of conflict. And this is another tool that sort of is reducing the necessity of having to go to… I mean, you know, having to use lethal weapons, lethal force in these sorts of situations.

849
02:30:31.060 --> 02:30:41.399
Boardroom: Sorry, can we just, keep it on questions, if we can, as much as possible? Sure, sure. Thank you. Sure. Chief, can you talk to, and I know you can't predict the future, but…

850
02:30:41.580 --> 02:30:43.800
Boardroom: Speak a little bit to, kind of.

851
02:30:44.280 --> 02:30:56.979
Boardroom: what you would forecast in terms of infrequency of future use. I mean, looking at these situations we just identified of maybe 3 situations over the past number of years where maybe it would have been in the mix, but maybe it would not have.

852
02:30:57.200 --> 02:31:00.870
Boardroom: Can you talk a little bit about what you would anticipate? Again, we're not…

853

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02:31:01.050 --> 02:31:12.949
Boardroom: holding you to a number, but just to give people a sense of the frequency that we're talking about here. Right, I mean, if you look at, historically, how long we've had access to this tool, and how long the ban's been in place, it's a very infrequently used tool.

854
02:31:13.000 --> 02:31:32.100
Boardroom: We look at, around the region, we see a handful of times a year where these tools are used. You know, we can't predict the future, and as the Deputy Chief and the Captain shared, we don't have complete say in how these incidents unfold. The other individuals involved didn't have a lot of say about where we end up.

855
02:31:32.100 --> 02:31:54.330
Boardroom: And so I don't anticipate significantly increased uses beyond what we've seen for the last 40-plus years, and, you know, based on the very limited situation that we're looking at in the return to this language. Okay. Last question. Can you remind us, what would the process be in the moment for when it's actually authorized? How does that decision-making process work? Who's authorized to sort of make that call?

856
02:31:54.610 --> 02:32:02.640
Boardroom: So, that would be the incident commander who's on scene and working with the tactical operators. Okay, great, thank you.

857
02:32:04.090 --> 02:32:06.799
Boardroom: Thank you. Councilmember O'Keefe, do you have questions?

858
02:32:07.220 --> 02:32:09.109
Boardroom: Yes, thank you.

859
02:32:09.930 --> 02:32:23.050
Boardroom: My question… I had this question earlier, but I'm, I'm gonna ask it anyway, even though I think the, new language from Councilmember Blackaby actually, addresses most of my concern, but I think the,

860
02:32:23.730 --> 02:32:30.370
Boardroom: The issue is, you know, we want to allow this, or we're asking to allow this for a very specific

861
02:32:30.540 --> 02:32:38.529

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Boardroom: hostage, violent, barricaded situation, and we very much do not want to allow this for crowd control. And so, the…

862
02:32:39.080 --> 02:32:47.480
Boardroom: The thing we want to make really clear, as clear as possible, is, is there any hypothetical scenario where the two things could be, those two…

863
02:32:47.580 --> 02:32:49.650
Boardroom: Principles could be in opposition.

864
02:32:49.820 --> 02:33:01.100
Boardroom: And so, my question is, is there anything you can imagine where, let's say, somebody has taken a hostage in a crowd, and the crowd is maybe expressing, you know, First Amendment

865
02:33:01.270 --> 02:33:17.219
Boardroom: having some First Amendment activity, or something like that. Is there… is there, can you speak to that possible nexus? I know it's unlikely, but I think this is… this is the main concern, that a lot of us have up here, so if you could help us understand, like, where is that boundary between the situation that this is…

866
02:33:17.380 --> 02:33:36.799
Boardroom: we're trying to allow it for, and other situations where we don't. So, I think the key distinction is why, tear gas is being used and who it's directed at. So, to that end, in the situation that you described, it can't be used to disperse or move

867
02:33:36.850 --> 02:33:39.180
Boardroom: Or for crowd control.

868
02:33:39.330 --> 02:33:49.189
Boardroom: So, just because the crowd is, is there, there's disorderly behavior, or isolated criminal conduct, that wouldn't justify it in itself.

869
02:33:49.330 --> 02:33:51.410
Boardroom: So…

870
02:33:51.660 --> 02:34:01.580

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Boardroom: If we're talking about a clearly defined critical incident that is near a crowd, we would still have to go through, our…

871
02:34:01.580 --> 02:34:18.939
Boardroom: checks of when can it be used. So we have a barricaded suspect or a hostage situation that happens to be near a crowd. In that case, tear gas would be considered, and it would only be considered as a tactic directed at the specific and dangerous person, not the crowd.

872
02:34:19.040 --> 02:34:24.899
Boardroom: So, the presence of uninvolved people would obviously heavily weigh in that decision.

873
02:34:27.140 --> 02:34:32.219
Boardroom: Okay, thank you, and I think there is… it does say that there's, verbal warnings

874
02:34:32.570 --> 02:34:36.990
Boardroom: et cetera, like, people wouldn't be caught unawares that this was happening. Is that… is that right?

875
02:34:37.030 --> 02:34:48.679
Boardroom: Okay, thank you. And I know that's kind of a really specific thing, but I think that's where we need to really, like, get as much clarity as possible when those two things are potentially in conflict. If I could… if I could just add… Oh, please, please.

876
02:34:48.680 --> 02:35:07.280
Boardroom: So, in those circumstances, if we're dealing with an armed, barricaded suspect, then there's going to be danger, and we're not… we're going to want to get the crowd away from that. And so, the likelihood of those two events overlapping is… I don't see that happening. Beyond that, then, if you look at the proposed language.

877
02:35:07.280 --> 02:35:13.609
Boardroom: There's language that specifically says, reasonable steps to ensure the suspect is in a controlled, contained area.

878
02:35:13.610 --> 02:35:30.620
Boardroom: And that non-suspects are provided the opportunity to leave the area. So, between that and the specific language that addresses not use for crowd control, I think the language is pretty tight, and it's

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very clear in terms of what the expectations are. Thank you, yeah, I agree.

879
02:35:30.620 --> 02:35:46.340
Boardroom: I agree, it's a big improvement, anyway. My other question is, has to do with mutual aid. I believe, I remember this coming up, I think, in the Public Safety Committee meeting, that this, our current, tear gas policy being out of step with other.

880
02:35:46.340 --> 02:35:53.319
Boardroom: jurisdictions. Is that causing any problems with relying on mutual aid, or is there any tension there that you could speak to?

881
02:35:58.510 --> 02:36:23.510
Boardroom: So, what we've shared is, and what I've learned from surrounding agencies, is that absent them being able to use, in a crowd control situation, what they think are necessary tools to safely, engage in crowd control, they don't intend to come and support us in that manner via mutual aid. They would come and probably do other tasks that were unrelated to actually managing the crowd, leaving the direct crowd management to the Berkeley Police Department.

882
02:36:23.510 --> 02:36:30.600
Boardroom: and our policies applying. Pursuant to AB481, another jurisdiction can't come in

883
02:36:30.600 --> 02:36:34.909
Boardroom: And use one of these tools in a manner that is not prescribed by local government.

884
02:36:36.270 --> 02:36:43.430
Boardroom: Meaning our local policies as we've written them, yeah. Correct. Thank you very much. Those are my questions. Thank you. Any other questions from my Council colleagues?

885
02:36:43.660 --> 02:36:56.169
Boardroom: Yes, Councilmember Lenapara. Thank you. I have one question, and I don't know if this is for the police department or for the city manager, but can, can you define how homeless encampment abatements

886
02:36:56.310 --> 02:37:03.510

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Boardroom: are defined? Is this… if there are multiple tents, or one tent, how does that affect…

887
02:37:05.250 --> 02:37:09.170
Boardroom: the definition of the term. As far as the use of tear gas?

888
02:37:10.120 --> 02:37:13.879
Boardroom: Yes, in the use of tear gas, but in this recommendation.

889
02:37:14.170 --> 02:37:20.869
Boardroom: that tear gas should not be… shall not be used during homeless encampment abatements. Do you have a definition of homeless encampment abatements?

890
02:37:21.010 --> 02:37:45.979
Boardroom: Yeah, so there's a citywide response, to an identified, homeless encampment, and an abatement is set where you have, partners from working via neighborhood services. So you have Public Works, Parks and Rec, and Berkeley Police Department out there. That's how we would identify a homeless encampment abatement process. If you had an individual who was barricaded in a tent that happened to live in a tent, and a barricade situation

891
02:37:45.980 --> 02:37:59.449
Boardroom: heard that fit one of the other criterias, and it was not part of a homeless encampment abatement, then as long as those other, things occurred, the other pieces of the policy were being followed, then that could be a viable tool for that kind of response.

892
02:37:59.630 --> 02:38:04.730
Boardroom: So just to clarify, so as long as the…

893
02:38:04.910 --> 02:38:21.039
Boardroom: the person sleeping outside is not being forced to move out of that, like, if the goal is not to get that person to move? That's correct. So, tear gas would not be used as a tool to get someone to vacate an area. Thank you.

894
02:38:22.950 --> 02:38:34.310
Boardroom: Thank you very much. I just thought of a question. How are we considering people with disabilities when we're giving verbal warnings, particularly people in the deaf community?

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895
02:38:35.370 --> 02:38:59.929
Boardroom: Yeah, that's a great question, and it's one of the really important jobs of our negotiator team. So, as we begin an operation like this, we have a whole team of detectives and negotiators who are working to try to obtain information. What do we know about this address? Is this someplace, you know, what do we know about the individual we're in contact with? We use both LRAD, so very loud speakers, we do phone calls into the residents, we do the research to get local phone numbers and try to get cell phone

896
02:38:59.930 --> 02:39:05.430
Boardroom: and do a couple different methods of communicating, before we move into that. So…

897
02:39:06.390 --> 02:39:18.020
Boardroom: texting situation, yeah, so… and we will try to throw a phone in with texting capabilities and things like that. So yeah, there's a lot of attempts made to, engage that individual and gather information about that residence.

898
02:39:18.190 --> 02:39:30.130
Boardroom: Thanks, Chief. Okay, those were our questions, and so we will now take public comment on, items 21A and 21B. So if you have any comments.

899
02:39:30.130 --> 02:39:39.749
Boardroom: Please come on up. And if you are getting a minute seeded to you from someone else, please try and organize that beforehand so we can move through our process.

900
02:39:39.750 --> 02:39:55.559
Boardroom: And I'll invite our next speaker up, and as always, you're welcome to encourage, define, to clap and applaud for folks, but please don't boo. It's just… it's disrespectful. Russell, come on! Alright, thank you, everyone. Go ahead.

901
02:39:55.560 --> 02:40:10.550
Boardroom: Hello, my name is Abbott, I live in District 6, and I'm here to support 21B and ask that 21A, the ban on chemical weapons, is not lifted. My intuition tells me that when we lift a ban on chemical weapons, we are going to be using

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902
02:40:10.650 --> 02:40:28.790
Boardroom: more violent weapons against our neighbors here, which just does not seem right. But I do respect the nuance and complexity of the situation. I understand that many of you who may want to lift the ban see that there are, like, complicated times where we may need to use these chemical weapons. Thus, as a student at UC Berkeley, I ask us to support the idea

903
02:40:28.790 --> 02:40:53.219
Boardroom: that knowledge is a prerequisite to just action. Therefore, I think 21B should come before 21A, because it allows academic institutions to understand the effects of chemical weapons before we lift this ban. Even if you can make a clear, concise argument in the future that the ban must be lifted after the study is done, I think understanding the harm that can be done more deeply, and how it will affect the community is very important.

904
02:40:53.220 --> 02:40:59.990
Boardroom: And please consider the UCs able to do this study and, like, help… Safe. Thank you. Thank you.

905
02:41:06.090 --> 02:41:15.000
Boardroom: Good evening, Madam Mayor and Council. My name is Jason Martins. I don't think I really have anything to say that you haven't heard already.

906
02:41:15.170 --> 02:41:25.120
Boardroom: I'm just here to be another voice of dissent. Chemical weapons are banned by 193 countries, including tear gas.

907
02:41:25.260 --> 02:41:37.429
Boardroom: But we're considering allowing them in Berkeley, and that is just really deeply shocking to my conscience, and I think it's a very immoral thing for us to do. Thank you. Thanks, Jason.

908
02:41:42.270 --> 02:42:04.359
Boardroom: Greetings, good evening. My name's Leah Martins, I'm a local parent of three, I'm a resident of District 3. I'm also the pastor of Haven Berkeley Faith Community here in Berkeley, and I'm here to support the proposal from the Peace and Justice Commission, encourage you to retain the ban on chemical weapons. Last January, I had the opportunity to travel to Minneapolis.

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909
02:42:04.360 --> 02:42:17.890
Boardroom: as part of a coalition of hundreds of faith leaders who traveled from around the country, we were there to learn, bear witness, participate in the citywide general strike and the day of action during the height of the ice surge in Minnesota.

910
02:42:17.890 --> 02:42:23.329
Boardroom: And on the day of the general strike, our small group had multiple encounters with tear gas.

911
02:42:23.330 --> 02:42:41.810
Boardroom: being deployed throughout residential neighborhoods in Minneapolis. At one point, I actually got out of a car that was probably about half a block from where the tear gas had just been deployed, and I was so overwhelmed by the intensity of the experience and its effect on my body that lasted for several hours, I was amazed.

912
02:42:41.890 --> 02:42:48.260
Boardroom: Incidentally, within 24 hours of experience… Thank you. Sorry, Cardi was dead. Thank you very much.

913
02:42:48.540 --> 02:42:53.729
Boardroom: I'm sad you didn't bring a song for us today. Thank you.

914
02:42:58.230 --> 02:43:02.499
Boardroom: There is a mic coming your way. Thank you for your patience.

915
02:43:02.660 --> 02:43:05.079
Boardroom: I'm Nicholas Elizabeth Savey.

916
02:43:05.420 --> 02:43:08.400
Boardroom: I'm very concerned…

917
02:43:11.420 --> 02:43:12.190
Boardroom: True.

918
02:43:12.740 --> 02:43:17.049
Boardroom: I'm Nicholas Elizabeth Davy.

919

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02:43:19.080 --> 02:43:22.459
Boardroom: He's turning it up so that we can hear you better.

920
02:43:26.240 --> 02:43:28.570
Boardroom: Give it up for Keith. Thanks, Keith.

921
02:43:29.280 --> 02:43:32.580
Boardroom: Okay. I'm Nicholas Elizabeth Baby.

922
02:43:32.750 --> 02:43:37.060
Boardroom: I'm very concerned about the use of chemical weapons by the police.

923
02:43:37.590 --> 02:43:46.299
Boardroom: I mean, I support 21B. There needs to be a full understanding of the harms it can cause, especially to disabled people.

924
02:43:48.960 --> 02:43:51.470
Boardroom: Someone who has multiple disabilities.

925
02:43:51.730 --> 02:43:59.469
Boardroom: I don't attend protests generally, because I'm afraid of the use of chemical weapons. I know that they're not…

926
02:43:59.640 --> 02:44:04.550
Boardroom: That this policy would not allow the use of tear gas for crowd control.

927
02:44:05.310 --> 02:44:10.070
Boardroom: But… If the police have a tool, they're going to be tempted to use it.

928
02:44:11.180 --> 02:44:16.309
Boardroom: And something that they… if they feel threatened, they might…

929
02:44:17.180 --> 02:44:20.169
Boardroom: Decide that there's imminent risk of

930
02:44:20.270 --> 02:44:23.389

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Boardroom: Injury or death, when there really isn't.

931
02:44:24.320 --> 02:44:25.620
Boardroom: Additionally.

932
02:44:25.880 --> 02:44:34.269
Boardroom: A specific example of domestic violence. I've experienced domestic violence, and being tear gassed along with my assailant would not have helped.

933
02:44:35.400 --> 02:44:36.430
Boardroom: Thank you.

934
02:44:45.440 --> 02:44:46.870
Boardroom: Thank you. Come on up!

935
02:44:47.370 --> 02:44:49.339
Boardroom: Our next speaker.

936
02:45:02.710 --> 02:45:07.040
Boardroom: Hello, I'm Sally Nelson, District 4. Happy birthday.

937
02:45:09.440 --> 02:45:14.480
Boardroom: Why are we even thinking about allowing the spraying of harsh chemicals on people?

938
02:45:14.670 --> 02:45:21.879
Boardroom: Along with the harsh chemicals is enough lead that is likely 80 times the amount considered to be normal.

939
02:45:22.930 --> 02:45:30.680
Boardroom: Aren't the laws and ordinances passed in Berkeley supposed to be in line with the U.S. Constitution, including the First Amendment?

940
02:45:31.250 --> 02:45:36.260
Boardroom: I urge you to vote no on removing the ban on the use of tear gas.

941
02:45:36.500 --> 02:45:38.400

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Boardroom: Pepper spray and smoke.

942
02:45:38.680 --> 02:45:42.430
Boardroom: And while there was some comment that there had been no

943
02:45:42.820 --> 02:45:47.439
Boardroom: Tear gas sprayed on any peaceful protesters.

944
02:45:47.880 --> 02:46:05.350
Boardroom: My memory is that sometime since the year 2020, the students at UC Berkeley who were sitting… UC Davis were sitting peacefully in protest, and they got pepper sprayed, or, you know, pepper sprayed tear gas, I'm not sure which.

945
02:46:05.810 --> 02:46:12.519
Boardroom: That's just something to consider. Thank you. That has been happening. Okay, thank you, and thank you for voting no.

946
02:46:16.290 --> 02:46:20.840
Boardroom: I have 2 extra minutes, can you raise your hand?

947
02:46:21.510 --> 02:46:28.549
Boardroom: There was somebody else. I see one minute. Well, can someone else give me a minute? Thank you. Oh, a second person in the back, okay.

948
02:46:29.280 --> 02:46:38.310
Boardroom: So… In 2020, I made the friendly amendment to ban outright tear gas.

949
02:46:38.770 --> 02:46:41.310
Boardroom: It was a unanimous!

950
02:46:41.650 --> 02:46:45.829
Boardroom: Do you know what that word means? Unanimous!

951
02:46:46.690 --> 02:46:47.680
Boardroom: Vote!

952
02:46:48.620 --> 02:46:50.140

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Boardroom: to ban it.

953
02:46:50.700 --> 02:46:53.490
Boardroom: It wasn't just because it was COVID.

954
02:46:54.600 --> 02:46:58.199
Boardroom: Although that did… that was why it was on the agenda.

955
02:46:58.430 --> 02:47:12.710
Boardroom: But when I said, let's ban it outright, it was because everyone in the room wanted to ban it. Who wants to ban tear gas and pepper spray?

956
02:47:13.720 --> 02:47:16.659
Boardroom: Most of the people in this room want to.

957
02:47:18.430 --> 02:47:24.110
Boardroom: I can recall the last time, most of the people wanted to then, too.

958
02:47:25.350 --> 02:47:26.390
Boardroom: So…

959
02:47:26.550 --> 02:47:46.330
Boardroom: We have COVID, people have COPD, people have asthma, and it's kind of hypocritical if you're in support of not having coal and the dust and the particulate matter come through Berkeley, yet you want this particulate matter?

960
02:47:46.500 --> 02:47:49.240
Boardroom: To be in our lungs, too?

961
02:47:49.480 --> 02:47:51.529
Boardroom: What sense does that make?

962
02:47:52.170 --> 02:47:53.810
Boardroom: Absolutely none.

963
02:47:55.480 --> 02:48:12.729

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Boardroom: We don't need that. People are immune compromised. There's all kinds of reasons, and once that gets into the air, you cannot control it, even if it is a contained area. It seeps through the walls, it seeps through… and it gets on people's clothing.

964
02:48:15.030 --> 02:48:16.820
Boardroom: This is not okay.

965
02:48:17.460 --> 02:48:19.689
Boardroom: It was a unanimous vote.

966
02:48:20.590 --> 02:48:29.749
Boardroom: That I understood, and when Wayne Graff tried to ask the chief, what did he say, she asked, what would you use if you didn't have tear gas?

967
02:48:30.220 --> 02:48:36.409
Boardroom: I guess we'll have to shoot people. That's what he said.

968
02:48:37.120 --> 02:48:38.600
Boardroom: They're armed!

969
02:48:40.610 --> 02:48:42.979
Boardroom: And I don't mean this kind of arm.

970
02:48:43.960 --> 02:48:45.550
Boardroom: They have weapons.

971
02:48:45.710 --> 02:48:47.500
Boardroom: They don't need tear gas.

972
02:48:47.940 --> 02:48:50.549
Boardroom: They shouldn't be afraid, that's their job.

973
02:48:51.700 --> 02:48:53.790
Boardroom: They signed up to do that.

974
02:48:55.510 --> 02:49:01.539

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Boardroom: They don't need tear gas. We don't need to be harmed in any more ways that you are harming us.

975
02:49:02.920 --> 02:49:17.079
Boardroom: It's harm just to come to this council meeting and listen to all the bullshit that goes on. And to witness what I witnessed this morning was very traumatic. Not just for me, but for everyone that was there.

976
02:49:17.570 --> 02:49:19.180
Boardroom: You have no idea.

977
02:49:21.170 --> 02:49:26.600
Boardroom: And that's sad. You need to ban… keep the ban enforced.

978
02:49:26.920 --> 02:49:30.500
Boardroom: They don't need tear gas, they don't need any more weapons.

979
02:49:30.880 --> 02:49:34.570
Boardroom: They need to cut the budget, and… Right.

980
02:49:43.220 --> 02:49:59.669
Boardroom: Good evening, my name is Mari Mendonza, born and raised in Berkeley, candidate for City Council District 8. Ditto Sally, Jason, and Cheryl. Unfortunately, the officer's testimony just confirmed that they… had they had the use of tear gas in those examples given, they would have used it when they actually didn't need to.

981
02:49:59.670 --> 02:50:24.610
Boardroom: And if you choose to pass this item, those of you who support it will become responsible for this, and it will make it clear that you are operating in a lack of care and responsibility to the citizens of Berkeley. Nor will you be honoring or acknowledging and upholding the ethical duty to serve the diverse demographic of all Burkellians, which, ironically, you should have been made aware of during your mandatory ethics training as required at the… every… for every elected. The history of discrimination, specifically when it comes to policing in America.

982
02:50:24.610 --> 02:50:33.989
Boardroom: and in Berkeley, specifically, requires you to make a responsible and ethical decision to not place the discretion of the use of such harmful weapons in the hands of our police.

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983
02:50:33.990 --> 02:50:45.800
Boardroom: It is additionally concerning following the future of our city's leadership, to allow our Berkeley Voted Police Accountability Board to maintain autonomy to do their work in completing vital investigations around accountability and justice for our citizens.

984
02:50:46.130 --> 02:50:49.720
Boardroom: Thanks. Thanks, Mari. Thanks for your comment.

985
02:50:54.710 --> 02:51:04.879
Boardroom: So, this is just a word about how CES has been used in the past.

986
02:51:06.380 --> 02:51:13.020
Boardroom: Back when dinosaurs roamed the Earth, you know, there was this, in a place called Vietnam.

987
02:51:14.300 --> 02:51:17.609
Boardroom: People would take shelter from bombing.

988
02:51:18.100 --> 02:51:22.809
Boardroom: People would, be herded sometimes into enclosed spaces.

989
02:51:23.200 --> 02:51:29.330
Boardroom: See his gas would then be… Pumped in. Everybody died.

990
02:51:30.440 --> 02:51:32.679
Boardroom: There you go. Drop the mic.

991
02:51:34.920 --> 02:51:35.910
Boardroom: Thank you.

992
02:51:36.110 --> 02:51:38.629
Boardroom: I had a minute.

993
02:51:38.770 --> 02:51:48.840

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Boardroom: And I thought I had a second minute, but I didn't see the hand. They might have left. Oh, there's a second minute. Sorry, I'm, this was one, this was the second? Two. Oh, thank you.

994
02:51:49.010 --> 02:51:53.940
Boardroom: We have a maximum of 2 extra, correct? You can have 3. You can have up to 3?

995
02:51:54.140 --> 02:52:05.450
Boardroom: Because I have a song to sing, and I don't sing very well. Are you my third? Oh, this person is going to give up their comment for you, so… Oh, bless you, I hope… Thank you, person in the green sweatshirt. Thank you.

996
02:52:06.020 --> 02:52:08.700
Boardroom: My name is Moni Law.

997
02:52:09.720 --> 02:52:11.020
Boardroom: Calibum.

998
02:52:11.820 --> 02:52:26.469
Boardroom: peace activist since the 6th grade, and I'm here to speak up for the First Amendment and our constitutional right to protest without being clubbed, gassed, or shot at with bullets, the rubber bullets.

999
02:52:26.470 --> 02:52:31.980
Boardroom: Ella Baker was a freedom fighter, and she taught us how to fight.

1000
02:52:32.560 --> 02:52:38.319
Boardroom: We're gonna fight all day and night until we get it right.

1001
02:52:39.010 --> 02:52:59.719
Boardroom: What side are you on, good people? What side are you on? I'm on the freedom side. What side are you on, good people? What side are you on? Harriet Tubman was a freedom fighter, and she taught me how to fight.

1002
02:53:00.130 --> 02:53:13.829
Boardroom: We're gonna fight all day and night until we get it right. Now to my speech. Tear gas is a chemical agent that harms people's health.

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1003
02:53:13.980 --> 02:53:18.299
Boardroom: Many permanently and disproportionately Black people.

1004
02:53:18.800 --> 02:53:29.719
Boardroom: As I exercise, and I've learned this in law school and practiced law for 25 years, we do have this thing called the U.S. Constitution, and in the public square, we have the right to protest.

1005
02:53:30.010 --> 02:53:37.159
Boardroom: 99% of people were protesting peacefully in December of 2014, as was I.

1006
02:53:37.600 --> 02:53:47.079
Boardroom: Despite my peaceful protest under the student guide, I'm a student of Gandhi and Dr. King and other peace activists, I was clubbed in the back.

1007
02:53:47.880 --> 02:53:50.410
Boardroom: Flash bangs thrown at my feet.

1008
02:53:50.530 --> 02:53:53.690
Boardroom: Cal students who came up to me had been clubbed.

1009
02:53:54.110 --> 02:54:12.520
Boardroom: People were later gassed that night, and we filed a federal court class action lawsuit. The name of that case, you can look it up, is Law v. City of Berkeley. I did not ask to be the main party as the plaintiff, and someone else settled and law came up, is Law v. City of Berkeley.

1010
02:54:13.270 --> 02:54:27.980
Boardroom: December 6th, 2014, someone spoke, I think, erroneously, and maybe they weren't there. It was a peaceful march, starting at UC Berkeley, going down the street, going downtown, having a die-in downtown, very peaceful, very creative.

1011
02:54:27.980 --> 02:54:39.639
Boardroom: When the police made all the mistakes that they did, and mind you, they made many, they admitted, Berkeley, California Highway Patrol, Oakland, Alameda County Sheriff, and Pleasanton were our mutual aid.

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1012
02:54:39.880 --> 02:54:59.490
Boardroom: They brought the gas, large parts of it, and we used so much, they don't know how much in discovery. They used up all the tear gas there was in the public streets of Berkeley. They pushed students, mainly, who were on the street near the campus, going home to their dorm, back to Oakland.

1013
02:54:59.600 --> 02:55:12.599
Boardroom: They clubbed people, they clubbed an elder, they shot in the knee a tourist, and they clubbed a minister. When you escalate violence.

1014
02:55:13.760 --> 02:55:28.280
Boardroom: It is only going to get worse with tear gas filling the skies and the streets. So please don't vote for this, please do the right thing, and don't institute an additional weapon that will harm people more than it will help them. Thank you.

1015
02:55:32.160 --> 02:55:33.400
Boardroom: Thank you, Moni.

1016
02:55:36.950 --> 02:55:47.220
Boardroom: Councilmembers, I was also there, and I noticed that… oh, I'm sorry, I have a couple minutes. I'd like to get a minute, and I had a minute there, and

1017
02:55:47.340 --> 02:56:04.920
Boardroom: I got on the roll, somebody help me out, thank you, it's okay. Well, what I want to do is I want to correct a little bit of history, because I see you shaking your head, like, no, there was violence, there was violence, and I'll tell you how that happened. We at Copwatch, we did a really deep dive into that, the incidents of that night, primarily because I got…

1018
02:56:04.920 --> 02:56:08.010
Boardroom: tear gassed as well, and pushed down into Oakland.

1019
02:56:08.010 --> 02:56:09.339
Boardroom: And I was not violent.

1020
02:56:09.540 --> 02:56:19.019

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Boardroom: I'll tell you what happened. Earlier in the night. See, and this is, this is, this is endemic, this is indicative of what are some of our fears related to this are.

1021
02:56:19.450 --> 02:56:22.260
Boardroom: Earlier in the day, people had been marching around.

1022
02:56:22.540 --> 02:56:37.620
Boardroom: And they stopped in front of the public safety building. An elderly man, I can show you the video, was not… the officers were trying to move the crowd back, and some officer, BAM! They hit an old man. He fell over his dog. He hit the ground.

1023
02:56:37.870 --> 02:56:41.529
Boardroom: The crowd looked like, what the hell? Why are you beating up old people?

1024
02:56:42.250 --> 02:56:48.979
Boardroom: And so that escalated things. Something was thrown. Another something, another bottle was thrown.

1025
02:56:49.310 --> 02:57:00.260
Boardroom: Officers escalated. The whole situation escalated. There was violence. Then, when the police started, what can I say, clubbing and pushing and so forth.

1026
02:57:00.970 --> 02:57:02.440
Boardroom: things escalated.

1027
02:57:02.540 --> 02:57:20.380
Boardroom: And so that marched around and so forth. It got to Bancroft and Telegraph, and they stood there. That's where I joined the march. That's where I caught up with it. It was a completely different protest, because people were there for, like, half hour or an hour. And what happened is the helicopter overhead started to attract Cal students.

1028
02:57:20.720 --> 02:57:22.880
Boardroom: It was a completely different crowd.

1029
02:57:23.320 --> 02:57:32.800

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Boardroom: And that crowd was, like, sitting on the ground because they were kettled in the few blocks on Telegraph. People were laying around and waiting, and the cops were waiting, and so forth.

1030
02:57:33.300 --> 02:57:36.840
Boardroom: And when the cops finally got it together to, like, move, move!

1031
02:57:37.070 --> 02:57:45.569
Boardroom: That's when they started deploying tear gas. And that's when the fog of the tear gas was so thick, and then they started shooting munitions. And it was gross.

1032
02:57:45.990 --> 02:57:57.820
Boardroom: None of the cops have ever been held accountable for that. There was never any honest reflection about that. I do defy you to find any indication of a Molotov. That, that, really, I'd love to see if you had that, because we looked for it.

1033
02:57:58.240 --> 02:58:06.699
Boardroom: But what I also want to tell you is this, that BPD right now has a problem of not following its own policies, as evidenced by this very morning.

1034
02:58:07.060 --> 02:58:12.929
Boardroom: Well, we were trying to… and it wasn't even about a policy, it was about the constitutional right to observe.

1035
02:58:13.160 --> 02:58:14.649
Boardroom: We have that right.

1036
02:58:14.920 --> 02:58:26.109
Boardroom: And this department doesn't agree with that part of the Constitution, because over and over again, we're being prevented from watching. Now, that may seem like a small thing to you, I think it's a big thing.

1037
02:58:26.500 --> 02:58:37.040
Boardroom: But it is an indicator that if we cannot get that small thing from them, if we don't have consequences, or an accountability structure that actually works.

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1038
02:58:37.250 --> 02:58:43.659
Boardroom: What I see here sometimes is you guys kind of create this fiction of, like, well, we'll tell the police to do it, and they'll do it.

1039
02:58:43.970 --> 02:58:46.230
Boardroom: And they'll come here and tell you they did it!

1040
02:58:46.420 --> 02:58:51.479
Boardroom: But those of us who are out there actually watching, For years, for decades.

1041
02:58:51.730 --> 02:58:59.170
Boardroom: There's a very different story, where time and time again, these folks are not held accountable.

1042
02:58:59.260 --> 02:59:16.929
Boardroom: They come and tell you some happy story, and you guys seem to enjoy that, for the most part, because that fits your narrative, but I don't see you guys out there on the streets actually seeing what's actually happening. And if you did, I don't know that you could actually hold them accountable.

1043
02:59:17.020 --> 02:59:33.589
Boardroom: You know, we could go back to the drug… let's go back to when Carrie Kant was stealing drugs from the drug… from the drug locker. We didn't hold him accountable. Scandal after scandal with these folks. And now you want to put more chemical weapons in their hands?

1044
02:59:33.710 --> 02:59:42.049
Boardroom: And they're gonna come, and they're gonna come to our protest, and say somebody threw a bottle, and they're gonna pepper spray folks, and you're gonna believe their story.

1045
02:59:42.650 --> 02:59:53.749
Boardroom: So that's why we're here. We're trying to get you to understand there's a completely different reality that you're not engaging with. If you'd like to…

1046
02:59:54.810 --> 02:59:56.030
Boardroom: Thank you. Thank you.

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1047
03:00:06.800 --> 03:00:14.140
Boardroom: Hello, my name is Jules Anahuac. I'm a UC Berkeley student and a Chicana and Native American activist.

1048
03:00:14.280 --> 03:00:20.450
Boardroom: I participate in demonstrations because I believe protest is an important part of our democracy.

1049
03:00:20.450 --> 03:00:44.260
Boardroom: This isn't just about expanding police authority to use chemical agents. This now has to do with what can this lift mean for people who are exercising their rights to protest, and for communities that have historically experienced discriminatory policing? If the Council authorizes this lift, our community deserves and demands clear limits, transparency, and strong accountability

1050
03:00:44.260 --> 03:00:46.209
Boardroom: If those limits are violated.

1051
03:00:46.290 --> 03:00:52.709
Boardroom: My concern is giving police the discretion to determine whether a crowd is considered a threat.

1052
03:00:53.000 --> 03:01:01.890
Boardroom: I don't want the ability for us to protest to depend on whether an officer decides that our presence as a crowd has become threatening.

1053
03:01:02.330 --> 03:01:09.019
Boardroom: Also, I'm not sure if it's a part of your job to be scrolling on your phone instead of listening to your…

1054
03:01:10.880 --> 03:01:12.280
Boardroom: Thank you.

1055
03:01:19.300 --> 03:01:23.019
Boardroom: I might need, a second minute.

1056
03:01:23.240 --> 03:01:24.720

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Boardroom: Okay.

1057
03:01:25.760 --> 03:01:29.870
Boardroom: My name's Glenn Turner, and…

1058
03:01:29.870 --> 03:01:49.620
Boardroom: Listening to the police, respond to your questions, City Council members, I realized that they kept talking about this situation where, not crowd control, because they've got some sort of cleanup for that, but what they're looking at is somebody barricaded inside.

1059
03:01:49.670 --> 03:02:04.689
Boardroom: And so, when would this ever happen? That they couldn't, you know… I would much rather see crisis intervention training, I'd like to see a specialized care unit that we got rid of, I'd like to see some

1060
03:02:04.690 --> 03:02:17.879
Boardroom: other tools than, oh, some tear gas will keep us from being trigger-happy and shooting these people, or piling on them and killing them with a crowd of people like they did Caleb Orr.

1061
03:02:17.910 --> 03:02:29.699
Boardroom: I'm wondering, like, why are we spending this money on this? The… guess what? What is the probability of this situation, of somebody barricaded in, blah blah blah.

1062
03:02:30.000 --> 03:02:33.660
Boardroom: That it's likelihood of .01

1063
03:02:33.760 --> 03:02:41.409
Boardroom: Or less. You know, this… so what is all this money, you know, all these trainings, all this stuff.

1064
03:02:41.410 --> 03:03:03.800
Boardroom: All this hoopla, when actually that time and money and interest should be sent into crisis intervention training, it should be sent in specialized care units, it should be sent in on settlements and helping the people who, say, might be under some delusional situation where they feel like they're paranoid, and

1065
03:03:03.890 --> 03:03:28.249

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Boardroom: You know, seniors can get paranoid dementia, too. They take seniors away very carefully when they get paranoid dementia. But when other people get paranoid dementia, they throw them in jail. That's the answer. Bam. We want them in jail, we want them handcuffed, we want to throw them down. We don't want to give them any medical treatment. We should be aiming for support and treatment, crisis intervention.

1066
03:03:29.620 --> 03:03:30.530
Boardroom: Thank you.

1067
03:03:36.070 --> 03:03:38.569
Boardroom: I think I have one minute from… thank you.

1068
03:03:38.620 --> 03:03:58.479
Boardroom: So, I just want to emphasize again that these are aerosolized chemical agents. So, they are super concentrated particulate chemicals. They are designed to spread rapidly through the air. They are compressed into tanks in order so that when they explode, they can more effectively spread throughout the immediate and far-reaching environment.

1069
03:03:58.640 --> 03:04:14.130
Boardroom: They are… they're made to obstruct breathing, inflame lung tissue, eyes, and other mucous membranes. They're chemicals, and they have unclear long-term health and environmental effects. Your definition in writing may say limited use or barricaded individuals, but these are airborne.

1070
03:04:14.320 --> 03:04:33.469
Boardroom: You can't impose rhetorical limits on chemicals manufactured to explode from a compressed canister or a tank. Pepper spray and tear gas settle on closed walls and surfaces. These cause long-term reproductive damage. There is no reason to release specious chemicals into the environment or expose people to chemical warfare agents.

1071
03:04:34.110 --> 03:04:47.470
Boardroom: Also, I just want to add, I think it is very, very shocking in this year of 2026, with a BLM flag hanging behind you, to let the cops call Black Lives Matter protests violent.

1072
03:04:47.790 --> 03:04:54.610
Boardroom: I can't believe that. We are in 2026, we already had hundreds Endless protests.

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1073
03:04:54.780 --> 03:05:01.849
Boardroom: about police brutality. And yet this city council is sitting here, and nobody called that racist out. Not a single person.

1074
03:05:01.950 --> 03:05:16.960
Boardroom: I was there all night, getting tear gassed, treating people who were tear gassed, who were on the street, bleeding because cops had beat the crap out of them, random students who were trying to go home, who got caught up in the gas, and then were beaten, and had nowhere to go.

1075
03:05:17.090 --> 03:05:30.180
Boardroom: Then I got home in the morning, and there were all these news outlets reporting on the violence of protesters. Not a single one, not a single one reported on all the people who were injured in the streets and left.

1076
03:05:30.320 --> 03:05:43.540
Boardroom: Not a single one. And they all made up these same lies about the Molotov cocktails. I want you to know there were none. I was there all night, all week. I was your guest every night. There were none.

1077
03:05:44.640 --> 03:05:45.580
Boardroom: Span it!

1078
03:05:51.900 --> 03:05:57.909
Boardroom: Good evening again. My name is Daria Rubel. I'm District 1 candidate for City Council.

1079
03:05:59.810 --> 03:06:08.699
Boardroom: And I want to thank, Madam Mayor, for spending today, your birthday, and so many days in service to the city.

1080
03:06:08.900 --> 03:06:24.590
Boardroom: But I'm very concerned, so, you know, I believe in compromise. I believe in listening to all sides and moving forward with solutions. I believe that it is important to listen deeply and to think about compromise.

1081
03:06:24.590 --> 03:06:30.059

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Boardroom: But in this instance, I have listened, and I hear no reason for compromise.

1082
03:06:30.060 --> 03:06:44.849
Boardroom: The police department has not demonstrated a real need for these chemical weapons, and as many speakers before me have said, there are many documented reasons not to move forward with this lift. So please.

1083
03:06:45.800 --> 03:06:48.889
Boardroom: This is not a place to compromise.

1084
03:06:53.820 --> 03:06:54.930
Boardroom: 1B!

1085
03:06:55.090 --> 03:07:00.070
Boardroom: Can I get a minute from anyone who hasn't given one already?

1086
03:07:00.640 --> 03:07:03.199
Boardroom: A lot of people have given minutes.

1087
03:07:03.570 --> 03:07:06.160
Boardroom: Okay. Person with a yellow baseball cap?

1088
03:07:09.470 --> 03:07:16.379
Boardroom: So, first of all, Every single protest that I've been to that turned violent.

1089
03:07:17.300 --> 03:07:20.300
Boardroom: The police were the ones who instigated the violence.

1090
03:07:20.740 --> 03:07:28.190
Boardroom: And I believe that people… Have a right to resist state violence.

1091
03:07:29.290 --> 03:07:31.229
Boardroom: Believe they have that right.

1092
03:07:31.780 --> 03:07:35.530

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Boardroom: To resist state violence, with force, if necessary.

1093
03:07:36.220 --> 03:07:40.580
Boardroom: You know who didn't go to a whole lot of protests, though? My dad.

1094
03:07:41.290 --> 03:07:43.380
Boardroom: Didn't save him from being tear gassed.

1095
03:07:44.110 --> 03:07:48.520
Boardroom: Over 50 years ago, there was a protest right here in Berkeley.

1096
03:07:49.660 --> 03:07:51.369
Boardroom: Against the Vietnam War.

1097
03:07:53.110 --> 03:07:54.900
Boardroom: Tear gas was used.

1098
03:07:56.690 --> 03:07:58.780
Boardroom: But that's the thing about tear gas.

1099
03:07:59.130 --> 03:08:15.540
Boardroom: Gas weapons, by definition, can't target individuals. They're gas. Once they're deployed, the wind decides where they go and who they target. My dad wasn't part of the protest. He was standing in line to register for classes at Cal.

1100
03:08:15.540 --> 03:08:24.749
Boardroom: And so he and a bunch of other students who were also standing in line to register for classes at Cal, which you had to do in person in those days.

1101
03:08:25.840 --> 03:08:29.900
Boardroom: Had a chemical weapon deployed against them.

1102
03:08:30.100 --> 03:08:32.609
Boardroom: Because they just happen to be in the area.

1103
03:08:32.960 --> 03:08:35.710

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Boardroom: And that's the thing. It doesn't, it doesn't…

1104
03:08:35.860 --> 03:08:42.230
Boardroom: These are chemical agents, they don't just dissipate as soon as the incident's done, they remain, they linger.

1105
03:08:43.870 --> 03:08:51.629
Boardroom: As for hostage situations, you know what the most famous hostage situation in which tear gas was deployed was?

1106
03:08:51.780 --> 03:08:53.129
Boardroom: It was Waco.

1107
03:08:53.580 --> 03:08:57.290
Boardroom: The hostages ended up dead, too.

1108
03:08:58.180 --> 03:09:12.470
Boardroom: Other people have already… can I get another minute? Thank you. From… other people have already gone into the long-term lingering health effects on respiratory as well as reproductive health.

1109
03:09:13.790 --> 03:09:17.739
Boardroom: But… This police department.

1110
03:09:18.210 --> 03:09:24.350
Boardroom: This police department, which… We've heard about the various incidents.

1111
03:09:25.770 --> 03:09:28.939
Boardroom: TaxGate was never resolved.

1112
03:09:29.530 --> 03:09:32.960
Boardroom: They violated a court order this morning.

1113
03:09:33.120 --> 03:09:40.060
Boardroom: They violate people's rights all the time. They threw me to the ground for arguing with one of them.

1114
03:09:41.730 --> 03:09:44.459

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Boardroom: You want to give them chemical weapons?

1115
03:09:44.570 --> 03:09:49.490
Boardroom: the first chemical weapon used in World War I, in fact.

1116
03:09:50.350 --> 03:09:52.390
Boardroom: Banned from use?

1117
03:09:53.500 --> 03:09:56.379
Boardroom: In war under international law?

1118
03:09:57.960 --> 03:10:06.429
Boardroom: with only paper policies preventing them from using them when they're not supposed to? This police department?

1119
03:10:07.520 --> 03:10:10.539
Boardroom: Are we living in the same reality?

1120
03:10:11.280 --> 03:10:14.060
Boardroom: You know who protests? Students.

1121
03:10:14.290 --> 03:10:17.200
Boardroom: Including high school students. If you vote for the…

1122
03:10:17.720 --> 03:10:23.570
Boardroom: Fascists choosing to deploy chemical weapons against our kids. Thank you.

1123
03:10:32.680 --> 03:10:41.510
Boardroom: Hi, my name is Mimi, and I live in District 8. I was in this room on July 28th for the entire public comment about Hopkins Street.

1124
03:10:41.640 --> 03:10:49.290
Boardroom: You could cut the tension in this room with a knife. Almost everyone felt strongly that they were on the right side of that issue.

1125
03:10:50.510 --> 03:10:58.330

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Boardroom: I was struck by how difficult your jobs as council members are, making decisions on issues like that, where our community is divided.

1126
03:10:58.750 --> 03:11:09.979
Boardroom: This issue is not that. I joined the committee meeting and a council meeting on this topic earlier this year, and 100%,

1127
03:11:10.290 --> 03:11:15.659
Boardroom: Every single Berkeleyan who spoke, hundreds of comments.

1128
03:11:15.860 --> 03:11:21.320
Boardroom: They spoke passionately and eloquently against reinstituting tear gas.

1129
03:11:21.800 --> 03:11:26.069
Boardroom: The people of Berkeley are begging you not to reinstate these tools.

1130
03:11:26.210 --> 03:11:33.300
Boardroom: I do not understand how you can rationalize acting in total opposition to your constituency. Thank you.

1131
03:11:35.750 --> 03:11:37.069
Boardroom: Thank you. Come on up.

1132
03:11:39.600 --> 03:12:04.579
Boardroom: I'm speaking in support of 21B. Hello Council, my name is Raina Wagner, I'm a fourth year at UC Berkeley. As an active member of community, both on campus and off campus, the thought that I would leave this city without looking out for the future students, community members, and unhoused people did not sit right with me, so I am here. The police have used undue violence in so many instances for so long, and no matter what we do, there's no clear intention for change. If they sprayed us in the 90s.

1133
03:12:04.580 --> 03:12:16.080
Boardroom: 2014 and 2017, they'll spray us again. The parameters given around intended violence slash fear for life. This will not stand up if this action is allowed. Once authorized, this will be used out of policy.

1134

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:12:16.370 --> 03:12:28.929
Boardroom: We are not violent protesters. We never have been. We are students and friends and parents and loved ones, old and young. We are people trying desperately to make change for the betterment of our collective future.

1135
03:12:29.020 --> 03:12:38.259
Boardroom: Please, the police will find a reason to use it. If you let this pass, please at least think of the permanent scars on students' lungs and eyes that you are allowing to happen.

1136
03:12:43.420 --> 03:12:44.120
Boardroom: Hannah.

1137
03:12:45.220 --> 03:12:46.160
Boardroom: Permitted.

1138
03:12:47.020 --> 03:12:48.799
Boardroom: Okay, thank you.

1139
03:12:50.230 --> 03:12:54.950
Boardroom: Tear gas is a chemical weapon. It's designed to induce pain.

1140
03:12:55.400 --> 03:13:13.089
Boardroom: Calling it a tool is a euphemism. It's sort of like calling an enslaved person a ranch hand. Pain compliance is the deliberate use of pain to force a person to obey an order, and this meets the definition of torture.

1141
03:13:13.250 --> 03:13:25.079
Boardroom: So whenever anybody says tool, we should say tool for torture, because that's really… and I'd ask the rest of the audience, if you hear somebody use the word tool, say for torture out loud. That's what it is.

1142
03:13:25.260 --> 03:13:43.659
Boardroom: And if torture is not wrong, nothing is wrong. If torture is not wrong, any degradation of human beings in the name of security is permitted. The logic of torture not only reflects, but promotes the acceptance of whatever-it-takes paradigm of police power.

1143
03:13:43.660 --> 03:13:55.490

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Boardroom: Once torture's accepted, anything goes, and we should not underestimate the power that the city council… of the City Council's blindness to the suffering of the enemy, which is us.

1144
03:13:55.830 --> 03:14:03.809
Boardroom: The 20th century cultural myth that the police first concern is the protection of the public, as opposed to its original, which was property rights.

1145
03:14:03.940 --> 03:14:20.110
Boardroom: has in recent decades slowly morphed to a policy where their first concern is protecting the lives of the police. This transformation has become embedded in police best practice policies, which are used to justify needless killings because a police officer felt threatened.

1146
03:14:20.110 --> 03:14:29.069
Boardroom: The excuse for assaults on suspects designed to provide the optimal protection of police from imagined threats. And I stress that, imagined.

1147
03:14:29.920 --> 03:14:52.049
Boardroom: to rationalize pain compliance inflicted on protest crowds views as potential threats to police authority. It doesn't even have to be a threat, just to their authority. Along with this change in priority, it's a change in verbiage, where we start calling them a first responder, a transformation initiated by the ruling class to engender a high degree of police loyalty to the rulers and property…

1148
03:14:52.880 --> 03:15:00.569
Boardroom: Can you give another minute to somebody? Thanks for your comment. Went back there. Okay. Grace?

1149
03:15:01.160 --> 03:15:16.480
Boardroom: This transformation was initiated by the ruling class to engender a high degree of police loyalty to the rulers and property owners. By establishing via policy that general public… that the general public are second-class citizens to the police.

1150
03:15:16.480 --> 03:15:24.759
Boardroom: Who are free to act with impunity, whose actions are always justified by their fear for their own safety.

1151

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03:15:24.810 --> 03:15:43.689
Boardroom: or that they maintain order established by the ruling class, police actions, no matter how racist, sexist, homophobic, or brutal, are justified. And this was the same bargain originally given to the slave patrols to sanctify their use of torture and lynching of slaves.

1152
03:15:51.030 --> 03:16:08.859
Boardroom: Good evening, Councilmembers, Mayor. My name is Audrey, I'm a District 6 resident, and I'm a Cal Berkeley Democrat, speaking to you on behalf of them today. What I love about this city is that we are a city of activists, and I am proud to go to protests in this city, and I am proud that I see almost all of you there every time.

1153
03:16:08.860 --> 03:16:15.689
Boardroom: So you know just as well as I that we are not threats, the students, the old people, sorry, we… none of us are threats.

1154
03:16:15.690 --> 03:16:37.439
Boardroom: And so I agree with the Police Accountability Board that you should not be giving them more weapons to use against us. At every protest, it's not the protesters, I fear, it's the police. Also, additionally, earlier this month, I tested positive for COVID, despite being fully vaccinated, and the city of Berkeley texted me a guide from the CDC telling me to follow it.

1155
03:16:37.660 --> 03:16:54.650
Boardroom: This guide reads, at the very top, in bold, this guidance is no longer in effect and for historical purposes only. We… our city is in a budget deficit, and the City of Berkeley texted me a historical document. When I had COVID, maybe put some money there. Thank you for listening to me, thank you for your time.

1156
03:17:00.460 --> 03:17:12.890
Boardroom: Good evening, everybody. I became involved with Berkeley Copwatch 49 years ago as a result of what happened in the Sproul Hall at the UC campus, of all things.

1157
03:17:13.130 --> 03:17:29.000
Boardroom: students there were pepper sprayed, they were beaten with clubs. I said, no, I'm not gonna stand for that shit, so I joined Berkeley Copwatch. 2014, 11 years ago, I was a participant in…

1158
03:17:29.660 --> 03:17:35.130

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Boardroom: the… Rock Lights Matter matches that were going on, and

1159
03:17:36.000 --> 03:17:46.310
Boardroom: As a result of what happened in 2014 and 2015, I became a legal observer for the National Lawyers Guild as well. Now.

1160
03:17:46.700 --> 03:17:49.789
Boardroom: The result of what happened today,

1161
03:17:49.920 --> 03:17:53.559
Boardroom: at Nathan Harrison, when I was brutally attacked by,

1162
03:17:53.680 --> 03:18:02.629
Boardroom: Berkeley cop. I will be legally observing by the judge's orders Within the protests tomorrow…

1163
03:18:03.490 --> 03:18:09.130
Boardroom: I'm getting sick of that shit. Fuck you. Thank you.

1164
03:18:09.690 --> 03:18:27.299
Boardroom: I have a minute from Melissa in the back, and I have a minute from Gordon Gilmore. Sorry, Melissa… oh, thank you, and… A minute from Gordon Gilmore. Oh, okay. So Mayor, thanks for the question about the death.

1165
03:18:27.310 --> 03:18:33.449
Boardroom: To the BPD response, the deaf can't hear loudspeakers. As far as, texts.

1166
03:18:33.680 --> 03:18:49.720
Boardroom: In Deaf culture, the deaf frequently communicate differently in writing, and so in a crisis situation, you actually need someone to be on call who can communicate in the language and communicate culturally.

1167
03:18:49.720 --> 03:18:55.879
Boardroom: The… and the response should have been an ASL interpreter on call, familiar with,

1168
03:18:55.880 --> 03:19:17.529

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Boardroom: deaf culture. I'd like to share a San Francisco police department video that I saw at the 2025 CAG International Conference. It was an actual video of a situation where they had to spend an incredibly long time de-escalating a man who was holding a knife to his 80-year-old father.

1169
03:19:17.980 --> 03:19:36.489
Boardroom: Holding him hostage. They were able to get him outside, continued to de-escalate while they continued to hold the knife. De-escalation often takes hours. It takes skills. It takes… One of those skills that CIT officers are trained is to show empathy.

1170
03:19:36.850 --> 03:19:45.910
Boardroom: And it takes a CIT-certified commanding officer to be commanding the shift. Now, had that man that…

1171
03:19:45.910 --> 03:20:04.960
Boardroom: man that was holding his 80-year-old father, been tear-gassed inside, his 80-year-old father, who was medically fragile, would have also been tear gassed. So we have to consider that in hostage situations. We could be tear gassing a child that's nearby, an elder that's nearby that's medically fragile.

1172
03:20:05.490 --> 03:20:20.990
Boardroom: And I came before Council in 2014 from the Mental Health Commission, when, similar to this situation where you're considering reinstating tear gas, they were considering the use of tasers. And at that point.

1173
03:20:21.040 --> 03:20:28.159
Boardroom: Council was pretty enthusiastic about, we need to give our police department the tools they need, and that includes tasers.

1174
03:20:28.260 --> 03:20:39.330
Boardroom: And when I appeared at that time in 2014 on behalf of the Mental Health Commission, I presented that the studies I had researched

1175
03:20:39.330 --> 03:20:56.390
Boardroom: Showed that the most vulnerable, medically, mental health-wise, people on both recreational and psychotropic substances, were the most disproportionately likely to be tased, and they were also the most likely to be harmed.

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1176
03:20:56.390 --> 03:21:01.200
Boardroom: And at that meeting, they… council decided

1177
03:21:01.250 --> 03:21:05.220
Boardroom: to send it out to Stanford for a study.

1178
03:21:05.410 --> 03:21:15.379
Boardroom: And Stanford came back to a future meeting, where there was a target date, with the exact same findings. And…

1179
03:21:15.810 --> 03:21:22.120
Boardroom: Council did not implement tasers. Tasers are banned to this day. And so I'm hoping we'll do the same.

1180
03:21:22.290 --> 03:21:25.110
Boardroom: Just consider sending it out to study.

1181
03:21:26.770 --> 03:21:28.250
Boardroom: No.

1182
03:21:31.670 --> 03:21:41.269
Boardroom: Can I just get a sense, so there's 1, 2, 3, 4, 5, 6, 7 of you, 8, 9, anyone else?

1183
03:21:41.960 --> 03:21:57.679
Boardroom: 9 or 10? Okay. We are gonna take a break after all of you who are in person speak. Go ahead. Hi there, I'm a resident of District 1. As people who write policy, I'm guessing you're familiar with Eugene Bardak's Eightfold Path.

1184
03:21:58.080 --> 03:22:02.879
Boardroom: If you aren't familiar, the first step is identify a problem.

1185
03:22:03.890 --> 03:22:22.629
Boardroom: What's the problem? You're creating one. There's no problem to be solved here. You also mentioned violent crowds. Who gets to define violence? Is shouting pigs constituting violence? They will get to decide that.

1186

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03:22:24.560 --> 03:22:33.640
Boardroom: When the police violate the rules you outlined, will the settlement come out of their budget, or will it continue to come out of the general budget?

1187
03:22:45.570 --> 03:22:50.730
Boardroom: Hi, my name is Micah, and I live in District 6.

1188
03:22:51.020 --> 03:23:15.779
Boardroom: And I'm here to tell y'all that it really doesn't make sense for us to empower an organization that repeatedly does us wrong. Year after year, almost every allegation of police misconduct, every complaint sent in by the Police Oversight Board is ignored, dismissed, and rejected by the BPD. This shows they don't hold themselves accountable

1189
03:23:15.780 --> 03:23:18.859
Boardroom: Accountable, and they don't care about abusing their power.

1190
03:23:18.860 --> 03:23:20.120
Boardroom: Which makes sense.

1191
03:23:20.340 --> 03:23:34.890
Boardroom: Because police have always abused their power. Ever since they were established as slave catchers here in America, in the birth of policing, ever since 1969, when the queer rights movement was born, after they brutalized

1192
03:23:35.270 --> 03:23:40.590
Boardroom: queer and trans black and brown people in, stonewall?

1193
03:23:40.990 --> 03:23:47.280
Boardroom: To the murders of black people, represented by the BLM flag behind y'all, to this morning.

1194
03:23:48.190 --> 03:23:50.820
Boardroom: Alright, good comparison. Thank you.

1195
03:23:54.340 --> 03:23:55.570
Boardroom: Got 2 minutes.

1196

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03:23:55.750 --> 03:24:06.420
Boardroom: Over there. Thank you. Thank you. Good evening, mayors and members of the City Council. My name is Solly Alpert, Chair of the Berkeley Brent Board, speaking in my own capacity.

1197
03:24:06.420 --> 03:24:19.560
Boardroom: We do not need the Berkeley Police Department to have every single piece of equipment. We haven't had a hostage situation in Berkeley in decades, and in the unlikely scenario that we have another, I would hope the department would call a higher, more specialized agency for support.

1198
03:24:19.920 --> 03:24:25.929
Boardroom: I don't want the Berkeley Police Department to have or be trained to use tear gas. Period.

1199
03:24:26.360 --> 03:24:34.489
Boardroom: During the Black Lives Matter uprising in 2020, we watched as cops in Minneapolis and across the country brutalized peaceful protesters.

1200
03:24:34.570 --> 03:24:46.499
Boardroom: One of those Minneapolis protesters lost an eye when police shot him against their own policies with a less-than-lethal piece of equipment in his face. He now serves on the Minneapolis City Council.

1201
03:24:46.610 --> 03:24:48.569
Boardroom: The protester, not the cop.

1202
03:24:48.820 --> 03:25:08.069
Boardroom: During that same period in Berkeley, our city manager, not this city manager, thankfully, without consulting the city council, instituted… declared a state of emergency and instituted a curfew, restricting people's rights to protest. It was multiple days until the mayor and council intervened and forced the curfew to be lifted.

1203
03:25:08.420 --> 03:25:17.980
Boardroom: What is to prevent a future city manager from declaring a state of emergency during a protest, suspending these regulations, and using the tear gas that they have in their possession on protesters?

1204
03:25:18.950 --> 03:25:29.259

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Boardroom: We see time after time across our history and across this country that when police have tools, whatever their intended use is, they use them on peaceful protesters.

1205
03:25:29.480 --> 03:25:36.099
Boardroom: And you can't use smoke and pepper spray against a specific person in a crowd. That is not how physics works.

1206
03:25:36.760 --> 03:25:46.280
Boardroom: Tear gas and smoke are used in protests. It increases the chaos and violence, not decreases them. Protests become violent when police escalate them.

1207
03:25:46.910 --> 03:26:04.580
Boardroom: And it is entirely insufficient to give discretion to individual officers to determine whether an individual at a protest is violent. We know what happens because we see it happen every time there is a protest in this country. Cops lie, invent a threat that does not exist, and then deploy

1208
03:26:05.060 --> 03:26:08.290
Boardroom: Less-than-lethal weapons on peaceful protesters.

1209
03:26:08.900 --> 03:26:18.369
Boardroom: We are told by you all and by our community that our department is better, that our department is less racist and less violent than the actions we see across the country.

1210
03:26:18.370 --> 03:26:32.679
Boardroom: To the extent that that is true, it is true because of the policies we have implemented, that we have fought for as Berkeley residents for decades through protests and actions and elections. Do not take us back to the way it was.

1211
03:26:33.720 --> 03:26:45.620
Boardroom: Councilmember Humbert, you and I have spoken a number of times about… I know. About the threat of the fascist administration in this country, and I know you take that very seriously. I don't want…

1212
03:26:45.620 --> 03:26:56.879

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Boardroom: our police, when our protesters in Berkeley are protesting Trump, and his agents make it violent, I don't want our protesters to be tear gassed by our own department. Thank you very much.

1213
03:27:04.860 --> 03:27:06.190
Boardroom: I have a minute.

1214
03:27:07.840 --> 03:27:08.880
Boardroom: Think about this.

1215
03:27:09.220 --> 03:27:17.349
Boardroom: Yeah… Oh, wait, I can't… sorry, I can't see who that person is. Thank you! Okay. Appreciate you. Okay.

1216
03:27:19.820 --> 03:27:30.420
Boardroom: Madam Mayor and Council, Nathan Meisel, running for re-election on the Berkeley Ramp Board, along with my slate, but I will get to the topic at hand here.

1217
03:27:31.220 --> 03:27:32.830
Boardroom: This is about trust.

1218
03:27:33.410 --> 03:27:36.959
Boardroom: And it is about our confidence in the department's judgment.

1219
03:27:38.280 --> 03:27:41.110
Boardroom: I don't trust the department. I've said so…

1220
03:27:41.270 --> 03:27:46.570
Boardroom: Many times, for many reasons, many documented reasons, and…

1221
03:27:46.780 --> 03:27:50.279
Boardroom: Among that, what I will speak to tonight is…

1222
03:27:50.890 --> 03:28:00.530
Boardroom: Well, first, I appreciate that you did… you're incorporating what the PAB sent you back, but of course the PAB sent you that back because you said you wanted to go through with this policy.

1223

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03:28:01.200 --> 03:28:06.459
Boardroom: So, they had to craft something with the department. So, but thank you for putting that in.

1224
03:28:06.630 --> 03:28:08.169
Boardroom: But getting back to the point here.

1225
03:28:08.950 --> 03:28:20.439
Boardroom: This is the department that ignores the law all the time. This is the department that, when it comes to public records, they ignore the law. This is a department that, when it comes to our charter that the voters passed, they ignore

1226
03:28:20.570 --> 03:28:21.490
Boardroom: The baby's request.

1227
03:28:21.690 --> 03:28:28.679
Boardroom: This is a department as a chief that couldn't follow the sexual harassment policy. This is a department that over and over shows us they will step over the…

1228
03:28:31.890 --> 03:28:33.290
Boardroom: And there's no threats!

1229
03:28:34.000 --> 03:28:41.219
Boardroom: The department says they use it… oh, we use it once in 40 years. Why are we giving it back to them? Why are we getting it back to them?

1230
03:28:41.930 --> 03:28:48.859
Boardroom: No one can give me a good answer. Well, there could be this hypothetical, magical scenario where we… come on.

1231
03:28:49.000 --> 03:28:50.300
Boardroom: This is the real world.

1232
03:28:50.510 --> 03:29:03.649
Boardroom: If some serious thing happens, as somebody just said, go call the sheriff, okay? If some crazy thing happens, I'm sure your manager will suspend policy anyway. Don't hand them back these weapons of war. That is what they are.

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1233
03:29:03.730 --> 03:29:12.069
Boardroom: And my real sincere hope is we keep in mind this is one vote, folks, but a lot more is coming before the Council on Public Safety.

1234
03:29:12.300 --> 03:29:24.250
Boardroom: And you will have to decide, do you reflexively trust this department, or will you trust the voices of your community and the evidence that has shown police can't be trusted with these types of weapons? Thank you.

1235
03:29:35.850 --> 03:29:48.710
Boardroom: Good evening, Council and Mayor. My name is Sir Ak, I'm a Southside resident. There are a lot of things that we can do to make the police's job easier that we don't do, because it compromises our human rights.

1236
03:29:49.060 --> 03:29:58.509
Boardroom: We could put in every living room, and warrant requirements, and make everyone wear a GPS tracker, and that would make the job of the police a lot easier.

1237
03:29:58.760 --> 03:30:01.289
Boardroom: That'll make our community less safe, obviously.

1238
03:30:02.060 --> 03:30:06.389
Boardroom: Weapons might be useful for the police, but they're dangerous for our community.

1239
03:30:06.870 --> 03:30:13.119
Boardroom: The police incidents? The police say these incidents that might require tear gas uses are very rare.

1240
03:30:13.330 --> 03:30:28.150
Boardroom: And I agree, they are so rare that we don't need tear gas. Because even though these incidents are very rare, we will always have tear gas, and this will be a risk when we could potentially have it on protesters, on people who…

1241
03:30:28.310 --> 03:30:38.020

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Boardroom: could literally die from these lethal weapons that are banned in international law. Please reject these changes that undermine our human rights and pass the Peace and Justice Commission's recommendation. Thank you.

1242
03:30:44.100 --> 03:31:02.019
Boardroom: Alright. Go ahead, you're two. Good evening. Hi, I've been an analytical chemist for 13 years. I wanted to highlight two papers I provided this council regarding capsaicin weapons that should point to a no on 21A.

1243
03:31:02.250 --> 03:31:19.569
Boardroom: In More Than Tears, from Hassan et al, it was shown statistically that women exposed to tear gas have elevated chance to suffer reproductive health issues. The authors suggest that metabolism of capsaicin and a cyanide induced hypoxia, along with adrenal and thyroid dysregulation may be the root cause of this.

1244
03:31:19.990 --> 03:31:32.409
Boardroom: In Paris et al. from our own San Francisco-based American Academy of Ophthalmology, ER visits and injuries from tear gas were described. Corneal scarring, corneal epithelial defects.

1245
03:31:32.410 --> 03:31:51.959
Boardroom: Total loss of vision and death in cases of people with underlying respiratory disease, or in closed spaces, just like described by the captain here, are reported. Please trust the scientists and reject this ordinance. I'd be very interested to see some of the quality records on these. I kind of doubt that they were tested to any standard that would be considered safe. Thank you.

1246
03:31:57.740 --> 03:31:59.859
Boardroom: If there's any chance that there's a minute out here…

1247
03:32:02.800 --> 03:32:17.519
Boardroom: Alright, I'm gonna wing it then. I'll be playing about the situation facing us. It's easy to cast the first stone when you're the last person who would be impacted by this change in policy. It is people like me, it's the student population, who will face the brunt of these attacks.

1248
03:32:17.620 --> 03:32:25.389

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Boardroom: My name is Derek Rodriguez. I'm not only a student at UC Berkeley, a community leader, but I'm also an Army veteran, and a part-time National Guardsman.

1249
03:32:25.510 --> 03:32:37.909
Boardroom: If you resume use of chemical weapons, perhaps I'll have no choice but to educate my fellow students on how to neutralize CS gas, or tear gas. All you are doing is wasting time and money on resources that aren't foolproof.

1250
03:32:37.910 --> 03:32:50.969
Boardroom: Just putting the public in unnecessary danger. And I know how fiscally irresponsible it is to buy contracted equipment like this. It's a racket from the private sector to overcharge military and law enforcement on inflated contracts.

1251
03:32:51.000 --> 03:33:11.059
Boardroom: Let's see you try and pull this shit on a peaceful demonstration, because I will be there, and we will be undeterred. You wanna waste money? That's your prerogative. Use it against harmless civilians, we will truly make sure that money is wasted. This is not a method to keep us safe. This is a method to keep us down. You can try and shut our demonstrations down with weapons of war…

1252
03:33:12.110 --> 03:33:14.170
Boardroom: Voice of the people. Thank you.

1253
03:33:21.900 --> 03:33:36.540
Boardroom: Kelly Hammergram, I sent you an article, which I hope you read, from the Minneapolis Star Tribune, where people are told in Minneapolis not to put plants in the ground, they need to have elevated

1254
03:33:36.540 --> 03:33:43.190
Boardroom: Planting, because they are finding 1,300 parts per million of lead.

1255
03:33:43.420 --> 03:33:48.509
Boardroom: from the tear gas and chemicals used in Minneapolis.

1256
03:33:49.150 --> 03:34:06.190
Boardroom: But there's something else that I've been thinking about, especially as I heard the, example given tonight, and that was of a book

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I read earlier this year by David Epstein, and it's called Inside the Box.

1257
03:34:06.320 --> 03:34:09.190
Boardroom: How constraints make us better.

1258
03:34:09.550 --> 03:34:24.000
Boardroom: And I think the constraint of not allowing these chemicals makes our police department better, and so I would ask you to keep those constraints in place, because they took the time to solve the problem.

1259
03:34:24.930 --> 03:34:26.820
Boardroom: Thank you. Thanks, Kelly.

1260
03:34:32.750 --> 03:34:44.959
Boardroom: Mayor Council members, my name is Aidan Hill, I'm a candidate for Berkeley City Council 7 in this November 2026 election, and I'm asking you plainly, keep Berkeley's ban on tear gas in place.

1261
03:34:45.460 --> 03:34:50.099
Boardroom: I'm grateful for all the District 7 residents who have come tonight to make their voices heard.

1262
03:34:50.220 --> 03:35:09.289
Boardroom: Students deserve clear answers from their leaders, and all of us deserve a real voice in the governance of a city that we all call our home. I oppose item 21A, and I support item 21B. I believe Council should strengthen that one. Berkeley's faced this question before.

1263
03:35:09.430 --> 03:35:19.649
Boardroom: In August 2022, during the conflict over People's Park, the City Council scheduled a special meeting to consider suspending Berkeley's prohibition on tear gas.

1264
03:35:19.870 --> 03:35:27.559
Boardroom: The issue included concerns about mutual aid, and then Mayor Jesse Aragin canceled that meeting, and the prohibition remained in place.

1265
03:35:28.170 --> 03:35:34.910

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Boardroom: People's Park showed what can happen, and how quickly events can escalate in one neighborhood.

1266
03:35:36.320 --> 03:35:38.580
Boardroom: 2 minutes? 3 minutes?

1267
03:35:38.820 --> 03:35:42.840
Boardroom: I thought I asked earlier, sorry. No. Okay. Okay.

1268
03:35:43.290 --> 03:36:06.690
Boardroom: People's Park showed how quickly events in one Berkeley neighborhood can escalate, and the University of California Police is not exempt. They do, in fact, use chemical weapons. But tonight, Council is being asked to change its course. 21A would authorize the Berkeley's Police Department Special Response Team to use tear gas in circumstances involving risk of injury and death. I understand that.

1269
03:36:07.070 --> 03:36:16.870
Boardroom: I understand the gravity of those situations. Hostage situations, armed barricades, and threats of serious bodily injury. Everyone involved should come out alive.

1270
03:36:17.560 --> 03:36:35.749
Boardroom: Council also has to consider what powers become part of Brooklyn's policy once the resolution passes. This item would not only allow a precedence for regional actors and state actors to continue using tear gas in our city, but understand that the constituencies I represent

1271
03:36:35.810 --> 03:36:48.789
Boardroom: They're often just 21-year-olds, and many of them don't know the policies in place, and to see tear gas like we did at People's Park, you have to understand the precedence that creates, so I urge you to go…

1272
03:36:49.700 --> 03:36:51.800
Boardroom: Yes, on 21B. Thank you.

1273
03:36:57.160 --> 03:37:04.970
Boardroom: Okay, we are gonna take a… Mmm… maybe, like, a… 8-minute break.

1274
03:37:05.250 --> 03:37:18.419

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Boardroom: So that we can come back, because I really want to… I really want to get to the public comment online. And if you are online, and you would like to give public comment, please raise your hand, so we can get a sense of how many folks are online. Thank you!

1275
03:37:21.870 --> 03:37:29.349
Boardroom: Talk to your neighbors, you can talk to your neighbors outside, or you can have a seat. Okay, I'm gonna start calling people's names in a second.

1276
03:37:29.980 --> 03:37:47.450
Boardroom: Okay. Andrea, please sit down. Thank you, Glenn. Have a seat. Okay, thank you, everyone. We are gonna now start taking… okay, Councilmembers, we're gonna now start taking, comments online.

1277
03:37:48.000 --> 03:37:56.530
Boardroom: Okay. The first commenter, has a screen name of Virtual Meetings. You should be able to unmute.

1278
03:38:01.690 --> 03:38:16.219
Virtual Meetings: My name is Wendy Alfsson from District 4 Long-Term Resident, speaking on behalf of the Berkeley Friends meeting, unanimously in support.

1279
03:38:16.590 --> 03:38:20.759
Virtual Meetings: Of maintaining the current ban in the current form.

1280
03:38:21.010 --> 03:38:26.459
Virtual Meetings: the, support… 21B being interrupted.

1281
03:38:27.440 --> 03:38:28.739
Virtual Meetings: the,

1282
03:38:30.900 --> 03:38:44.090
Virtual Meetings: If you do pass the Police Accountability Board definition, please also apply it to the pepper spray and smoke, as well as to the

1283
03:38:44.450 --> 03:38:48.840
Virtual Meetings: Tear gas, better yet, leave the ban in place.

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1284
03:38:49.290 --> 03:38:50.220
Virtual Meetings: Thank you.

1285
03:38:56.570 --> 03:39:01.229
Boardroom: Caller with a phone number ending in 211.

1286
03:39:05.790 --> 03:39:15.299
1510****211: Hi. Well, I lived here during the Beaver Park, and not only the police, our county sheriff used it, they even have a helicopter, a National Guard as well.

1287
03:39:15.560 --> 03:39:17.819
1510****211: My beautiful wife almost died.

1288
03:39:18.020 --> 03:39:27.519
1510****211: Yeah, this gas is extremely toxic. It can cause permanent damage, it also can cause lung damage as well. It can cause blindness.

1289
03:39:27.630 --> 03:39:36.210
1510****211: And, I had to take my ex-wife to Alto Bay several times when the gas was spinned. Also, in this occasion, I'd like to pay tribute.

1290
03:39:36.390 --> 03:39:47.179
1510****211: to Chief Butler, Miracle Expo Police Chief, who saved my family, and my life, and my family life, when one of our store managers in San Francisco embezzled over a million dollars

1291
03:39:47.400 --> 03:39:57.220
1510****211: He appointed two Berko policemen in front of my house in Euclid for 2 years, at the cost of $6,000 a month, and with that, I have a lot of respect and regard to Berko police.

1292
03:39:57.350 --> 03:40:01.659
1510****211: But we have to keep the ban on tear gas. It is deadly.

1293
03:40:01.980 --> 03:40:10.050
1510****211: It's deadly. I lived through it. I only lived in Channing Away and… and, elsewhere, only a couple of blocks from Beaver Park.

1294

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03:40:10.050 --> 03:40:10.889
TELEPHONE_USER: And it was dead.

1295
03:40:11.590 --> 03:40:12.850
Boardroom: Your time's up.

1296
03:40:13.910 --> 03:40:17.480
Boardroom: Next is, Steven… Roble?

1297
03:40:19.800 --> 03:40:21.819
Boardroom: Wait a second. Oop, hold on.

1298
03:40:23.030 --> 03:40:24.899
Boardroom: Name's jumped around here.

1299
03:40:25.560 --> 03:40:26.729
Boardroom: Steven, go ahead.

1300
03:40:28.660 --> 03:40:45.939
Steven Wrobel: Yes, I'm Steven Robold, District 1. I was actually at Berkeley during the 2014 protests, and guess what I got to experience after leaving lab after 12 hours? There was red eyes, itchy throat, and guess what?

1301
03:40:46.110 --> 03:40:49.050
Steven Wrobel: I don't think I was… Protesting in the lab.

1302
03:40:49.370 --> 03:40:54.619
Steven Wrobel: So, all this chemical… Toxins that are just in the air.

1303
03:40:55.090 --> 03:40:58.410
Steven Wrobel: They hit everyone, and they linger for days.

1304
03:40:58.640 --> 03:41:00.290
Steven Wrobel: And I experienced that.

1305
03:41:00.940 --> 03:41:08.380
Steven Wrobel: And… As the police even said, they don't need this. There were 3 incidents in 6 years.

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1306
03:41:08.680 --> 03:41:17.859
Steven Wrobel: Where they claimed they needed it, but they resolved it without having tear gas. So why are we pushing for something that's not even used? Just because they want to use it.

1307
03:41:18.200 --> 03:41:20.969
Steven Wrobel: Cause if they'll have it, if they have it, they'll use it.

1308
03:41:21.600 --> 03:41:32.629
Steven Wrobel: And if those protests are any indication, they want to use it because they feel good using it. Because it's easier to use it, and that you do use it for crowd control.

1309
03:41:40.090 --> 03:41:41.140
Boardroom: Clara?

1310
03:41:43.040 --> 03:41:44.440
clara: Hello, can you hear me?

1311
03:41:46.520 --> 03:42:04.090
clara: When I first read the headline, Berkeley City Council voting to Reinstate the Use of Tear Gas, I thought to myself, that sounds like something that a cartoon supervillain would do, and the fact that it's coming to a vote in a city that prides itself on its progressive reputation is beyond laughable.

1312
03:42:04.160 --> 03:42:20.120
clara: As is common when it comes to the Berkeley Police Department, they ask us to hand them the weapons they will use to harm us, while claiming it is all for our safety. We've already given far too much of our budget to Berkeley Police Department. We don't need to give them access to chemical weapons, too.

1313
03:42:20.280 --> 03:42:37.279
clara: If you claim to care about your constituents, and then turn around and vote to authorize the use of chemical warfare against civilians, you are a hypocrite, and I'll be waiting to see you voted out of office. Vote no on 21A and support 21B. Thank you.

1314
03:42:40.580 --> 03:42:42.730

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Boardroom: Next, margarita.

1315
03:42:48.030 --> 03:42:49.299
Margarita Fedorova: Hello, can you hear me?

1316
03:42:52.100 --> 03:42:53.040
Margarita Fedorova: Hello?

1317
03:42:55.260 --> 03:42:57.120
Margarita Fedorova: Just, I don't know if I'm being heard.

1318
03:42:59.480 --> 03:43:00.490
Margarita Fedorova: Hello?

1319
03:43:04.110 --> 03:43:05.820
Margarita Fedorova: I'm sorry, can anyone hear me?

1320
03:43:08.800 --> 03:43:10.010
Margarita Fedorova: Hello?

1321
03:43:11.320 --> 03:43:23.409
Margarita Fedorova: I see the timer going, but I'm not sure if anyone… Okay, well, okay. Okay, so I am a student, I left class to come here, and I… thank you.

1322
03:43:23.600 --> 03:43:26.860
Margarita Fedorova: So I'm a student here at Berkeley, and I'm in District 7.

1323
03:43:27.180 --> 03:43:33.189
Margarita Fedorova: I would like to add that, Rocky and Rohan did give me their time, so I have 3 minutes.

1324
03:43:34.210 --> 03:43:38.249
Margarita Fedorova: So, the present… yeah, thank you.

1325
03:43:38.410 --> 03:43:47.740

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Margarita Fedorova: Okay, yeah, thanks for bearing with me. So, the presentation for 21A said that they were keeping… like, the purpose of this was to keep communities safer.

1326
03:43:47.740 --> 03:44:06.680
Margarita Fedorova: But I don't think that's the case, as many other community members and council members insinuated, because the risk is higher than the reward of having something like this, and as stated before, only 3 instances in 6 years is not worth all the money and time to deliberate on these things. Thank you for being here and listening to all of us.

1327
03:44:06.820 --> 03:44:12.770
Margarita Fedorova: The instance that they did want to use this for was in threat of death or hostage situations.

1328
03:44:13.100 --> 03:44:21.899
Margarita Fedorova: But all I heard was putting tear gas into a closed building, and from everything we've heard so far, is that the first thing you want to do when you have

1329
03:44:21.900 --> 03:44:41.430
Margarita Fedorova: this chemical weapon on or near you is to get away. You're supposed to take off all your clothing, try to rinse your eyes with saline. People have been desperate enough to use milk. It can lead to blindness and just a lot of damage. It's less lethal, as stated by the presentation from 21B.

1330
03:44:41.530 --> 03:44:56.169
Margarita Fedorova: it was talked about, like, a way to prevent harm would be to use police accountability, but as we have known, that police accountability after the fact does not prevent harm, and I don't think police officers want to be writing more reports

1331
03:44:56.170 --> 03:45:01.689
Margarita Fedorova: And justifying themselves, and someone's… like, it's just a waste of resources.

1332
03:45:02.080 --> 03:45:18.449
Margarita Fedorova: I don't think we want to build a community and have these police officers resort to chemical weapons as an alternative when we can already use de-escalation and these other practices. Happy birthday, Mayor, by the way, my birthday's on Friday also.

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1333
03:45:18.600 --> 03:45:21.280
Margarita Fedorova: Yeah, just…

1334
03:45:22.220 --> 03:45:40.929
Margarita Fedorova: police presence increases violence, as we've seen before. Using a chemical weapon against someone in the purpose that this is intended for, not on crowd control, but to people in a closed building, when we have skilled negotiators to de-escalate, just does not make sense. It's really inhumane.

1335
03:45:41.130 --> 03:45:54.989
Margarita Fedorova: I just, like, can't imagine someone being sprayed, like, tear gassed in a closed building, running out. What if the police officer says they're running out in a threatening manner, and then shoots them, and then has to write this whole report? Like, all of this could be avoided.

1336
03:45:55.000 --> 03:46:02.920
Margarita Fedorova: And it's… I don't think it's keeping communities safe, even though 21A's presentation said that was the purpose, and

1337
03:46:03.710 --> 03:46:23.119
Margarita Fedorova: Yeah, I mean, the instances that we're… like, this is not needed. They're specialized negotiators. Like, we… we could do so much other things with our time. Yeah, I skipped class to be here, so, a class that I really enjoy, by the way, so I'm already sure that y'all are gonna vote to oppose this one. I also don't think 21B is helpful.

1338
03:46:23.520 --> 03:46:24.330
Margarita Fedorova: Enough.

1339
03:46:26.240 --> 03:46:33.840
Boardroom: Go back to class. Next is Marilyn.

1340
03:46:38.630 --> 03:46:39.860
Marilyn C: Thank you.

1341
03:46:40.450 --> 03:46:53.510

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Marilyn C: My name is Marilyn Cleveland, I'm a resident of District 4, a member of the Berkeley Friends Meeting, its Social and Environmental Action Committee, and Racial Justice Action Team.

1342
03:46:54.280 --> 03:47:07.840
Marilyn C: And I also speak for the meeting in that we support the Peace and Justice Commission proposal to retain the ban on tear gas and the moratorium on OC and smoke.

1343
03:47:08.070 --> 03:47:17.640
Marilyn C: And we oppose 21A and support 21B, authorizing a study of the impacts of allowing

1344
03:47:17.850 --> 03:47:22.570
Marilyn C: The domestic use of these military weapons.

1345
03:47:23.320 --> 03:47:31.759
Marilyn C: I'm an 81-year-old retired attorney. I have feared the use of tear gas, OC, and or smoke at times when I…

1346
03:47:31.970 --> 03:47:37.050
Marilyn C: wanted to exercise my free speech rights. The use of these tools

1347
03:47:37.280 --> 03:47:47.410
Marilyn C: not only creates the health and emotional damages that have been discussed, but it inhibits free speech. Thank you.

1348
03:47:49.630 --> 03:47:50.370
Boardroom: Mmm.

1349
03:48:10.470 --> 03:48:11.270
Boardroom: In fact.

1350
03:48:52.270 --> 03:48:53.999
Riya Vyas: Hi, my name is Ria.

1351
03:48:54.310 --> 03:49:07.260

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Riya Vyas: I'm a student at UC Berkeley. This morning, the city and the police cleared another homeless encampment, taking away belongings from unhoused people and, like.

1352
03:49:07.320 --> 03:49:22.819
Riya Vyas: displacing them from the only pla- one of the only places that they had to be. That is a form of violence. People protesting against fascism, protesting against ICE, protesting against genocide is not violence.

1353
03:49:22.820 --> 03:49:31.169
Riya Vyas: shame on the city, and shame on the Berkeley Police Department for continuing to sweep homeless encampments, and the concept that

1354
03:49:31.350 --> 03:49:39.579
Riya Vyas: giving that same police department chemical weapons will protect community safety. Laughable.

1355
03:49:39.870 --> 03:49:49.419
Riya Vyas: And that's why I haven't heard a single public comment that's in favor of removing a ban on chemical weapons. Vote, no on 21A.

1356
03:49:53.040 --> 03:49:55.039
Boardroom: Thank you. Okay.

1357
03:49:56.350 --> 03:49:59.800
Boardroom: Paola.

1358
03:50:03.130 --> 03:50:22.470
Paola d5: Hi, Paola D5. I ask you to vote no on 21A, vote yes on 21B, maintain the ban. We're gonna be watching, lots of people are watching, to see who votes and how they vote, because we do definitely plan to flip the Berkeley City Council.

1359
03:50:22.610 --> 03:50:39.870
Paola d5: We will flip you this year, and we will flip you in two years. The community is speaking. The community is telling you what it wants. Many, many times, the City Council does not listen to us. We're asking you to vote no on 21A, and vote yes on 21B. Thank you.

1360
03:50:43.650 --> 03:50:45.199

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Boardroom: Let's try.

1361
03:51:30.980 --> 03:51:31.880
Veronika Fukson: Hello?

1362
03:51:39.330 --> 03:51:41.499
Veronika Fukson: I don't know if I can be heard.

1363
03:52:20.810 --> 03:52:22.719
maria sol: Hi, did you call on Maria?

1364
03:52:23.950 --> 03:52:26.909
maria sol: The, the, audio goes in and out.

1365
03:52:30.960 --> 03:52:33.420
maria sol: I can't hear you. Can you hear me?

1366
03:52:36.820 --> 03:52:38.989
maria sol: Something's wrong with the audio.

1367
03:52:42.860 --> 03:52:43.870
maria sol: Hello?

1368
03:52:47.480 --> 03:52:50.670
maria sol: Hello, hello! Come on now.

1369
03:52:55.830 --> 03:52:57.249
maria sol: Hi, can you hear me?

1370
03:52:59.770 --> 03:53:02.070
maria sol: I can't hear you, can you hear me?

1371
03:53:06.210 --> 03:53:10.159
maria sol: Okay, sorry. So, I'm really scared.

1372
03:53:10.800 --> 03:53:16.699
maria sol: We used to have a Department of Defense, which has now morphed into a Department of War.

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1373
03:53:17.180 --> 03:53:27.069
maria sol: Because we want to protect ourselves, and that is best exemplified by just eliminating any possible threat, which certainly is up for…

1374
03:53:27.330 --> 03:53:31.210
maria sol: Yeah. We are…

1375
03:53:31.340 --> 03:53:40.500
maria sol: needing to come together and not increase militarization. We don't need more weapons. We really don't. We need more peace.

1376
03:53:40.660 --> 03:53:42.970
maria sol: And even on the best day.

1377
03:53:43.420 --> 03:53:54.430
maria sol: All of your thoughtful, very thoughtful, very elegant, Lee… Explained plans and procedures

1378
03:53:55.450 --> 03:53:59.339
maria sol: Mean, there's no panic, there's no fear, and there's no…

1379
03:53:59.430 --> 03:54:17.509
maria sol: you know, upset. But there's going to be upset. We are looking at a very dangerous transitional time, and I'd rather Berkeley be a community of unity and peace and harmony. Please vote no on any weapons. Thank you.

1380
03:54:47.450 --> 03:54:48.830
Cary Sanders: Hi, can you hear me?

1381
03:54:52.530 --> 03:54:53.350
Cary Sanders: Great.

1382
03:54:53.380 --> 03:55:12.800
Cary Sanders: My name is Carrie Sanders, I'm a District 3 resident, and I'm just… I'm calling to urge you to support 21B, the study, and vote no on 21A, the exception. I've been a Berkeley resident for over 25 years, and have seen what can happen when tear gas is used indiscriminately.

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1383
03:55:13.010 --> 03:55:22.519
Cary Sanders: I know people who are personally harmed by the use of these weapons during peaceful protests. The Berkeley Police are here tonight to ask you to make an exception

1384
03:55:22.550 --> 03:55:35.200
Cary Sanders: And yet, these are the same people who asked the City Council to allow them to circumvent reporting requirements, very important reporting requirements, on the use of other types of similar weapons.

1385
03:55:35.320 --> 03:55:50.359
Cary Sanders: We need accountability, we need trust, and that just doesn't… that's just not here, and I'm not hearing that from anyone who is speaking tonight, that there's a feeling of trust in terms of how these resources or weapons would be deployed.

1386
03:55:50.360 --> 03:55:59.180
Cary Sanders: That's a start… that's a starting point. A study is a starting point. That's where we are right now, in this city. Thanks.

1387
03:56:14.840 --> 03:56:15.560
Winston Ordona: Hi.

1388
03:56:15.750 --> 03:56:23.399
Winston Ordona: Berkey, and I would like to urge you guys to please

1389
03:56:23.540 --> 03:56:32.339
Winston Ordona: to keep the ban on tear gas, there is no reason why a ban should be able to do it. I think it's kind of heinous, I think it's absurd, it's my problem.

1390
03:56:32.810 --> 03:56:38.649
Winston Ordona: does have to vote on this, because True Gas is the man. TrueGass has no place.

1391
03:56:38.820 --> 03:56:43.190
Winston Ordona: in America, because if we did, T-birth, please.

1392

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03:56:43.400 --> 03:56:46.359
Winston Ordona: access to tear gas, it is like giving me bazooka to a bee.

1393
03:56:46.560 --> 03:56:54.180
Winston Ordona: And it's definitely insane. These cops, and I'm talking about the ones who did stand the ones who were teargassing for this earlier and speeding them.

1394
03:56:54.260 --> 03:57:12.889
Winston Ordona: They do not care about human life, they do not care about protesters' lives. You are giving them a tool to torture, a tool for torture, and frankly, in an era where authoritarian fashion is on the rise, if you give them exclusive access to your desk, you are directly contributing to authoritarian fashion.

1395
03:57:13.060 --> 03:57:18.849
Winston Ordona: Now, we will remember who voted no and who voted yes, so please make the right toll. Do your jobs. Please.

1396
03:57:54.080 --> 03:57:58.809
Boardroom: Alright, folks, two slides, take the rest of our public comment.

1397
03:57:59.400 --> 03:58:01.810
Boardroom: Okay. Sasha?

1398
03:58:14.560 --> 03:58:17.260
Sasha: Hi, did you call Sasha?

1399
03:58:19.120 --> 03:58:20.430
Sasha: I can't hear.

1400
03:58:20.710 --> 03:58:21.450
Sasha: Yay.

1401
03:58:22.470 --> 03:58:24.270
Sasha: And I don't know if you can hear me.

1402
03:58:24.690 --> 03:58:25.520

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Sasha: Whatever.

1403
03:58:26.270 --> 03:58:31.450
Sasha: This, this is the one thing that people would hear. Yeah.

1404
03:58:31.720 --> 03:58:41.050
Sasha: You still have your sign saying that you're experiencing technical difficulties? Okay. I think we might… I think we…

1405
03:58:59.910 --> 03:59:05.619
Boardroom: I don't… I… I should be… what I'm saying should be coming up on the caption.

1406
03:59:07.240 --> 03:59:09.099
Boardroom: Okay. Jordan, are you there?

1407
03:59:16.510 --> 03:59:17.030
Boardroom: Sure.

1408
03:59:18.740 --> 03:59:20.040
Jordan: Hi, can you hear me?

1409
03:59:27.660 --> 03:59:31.930
Jordan: Okay, I'm just gonna hope you guys can hear me, and if the clock starts, then I know that you can hear me.

1410
03:59:32.420 --> 03:59:36.510
Jordan: My name is Jordan Harger.

1411
03:59:36.620 --> 03:59:45.829
Jordan: I was born and raised in Berkeley, I love the city of Berkeley, but I'm very concerned about the direction that the City of Berkeley is headed in at this time.

1412
03:59:46.050 --> 03:59:59.490
Jordan: using chemical weapons against your own community is absolutely horrifying, and one of the reasons that the use of chemical weapons was banned was the fact that we were in a respiratory pandemic, but I think it…

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1413
03:59:59.490 --> 04:00:13.110
Jordan: bears repeating, other people have already said this, that we are still in the midst of a respiratory pandemic. People are still getting COVID every day, so if the logic of the ban was to protect people's lungs during a medically vulnerable time, that time is still ongoing.

1414
04:00:13.430 --> 04:00:19.339
Jordan: I'd also like to point out the fact that tear gas is literally an abortiscent. It can cause

1415
04:00:19.390 --> 04:00:34.509
Jordan: you to lose a pregnancy, and there's a reason why chemical weapons are banned under international law. So, I highly, highly recommend that you do not allow for the proliferation of chemical weapons in this city. Thank you.

1416
04:00:52.180 --> 04:00:53.060
Eleanor Cawthon: Hello!

1417
04:00:55.490 --> 04:01:06.419
Eleanor Cawthon: as someone else already pointed out, if there's a hostage situation, then tear gas is of course going to affect the hostage, so it's not a realistic option then. Moreover.

1418
04:01:06.690 --> 04:01:23.280
Eleanor Cawthon: the police have stated that in the times they thought about using tear gas, that they would have used it if they'd had the option. Not only did they not need to, but they did not actually resort to more, escalatory

1419
04:01:23.560 --> 04:01:24.360
Eleanor Cawthon: technique.

1420
04:01:25.400 --> 04:01:32.270
Eleanor Cawthon: techniques, as an alternative. So that is a complete red herring.

1421
04:01:32.380 --> 04:01:38.890
Eleanor Cawthon: don't… don't greenlight chemical weapons, even if they're following their own rules, it's not…

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1422
04:01:39.030 --> 04:01:55.839
Eleanor Cawthon: safe, it… it's not safe to people in the surrounding area, and we… we… time has shown us time and time again that we cannot trust them to follow their own rules. So, please vote down 21A and vote for 21B. Thank you.

1423
04:02:33.430 --> 04:02:35.459
City Clerk: Moni, you can go ahead.

1424
04:02:37.010 --> 04:02:41.039
Moni: Hello, I'm not sure if anyone can hear me, but I'm gonna try.

1425
04:02:41.400 --> 04:02:51.010
Moni: My name is Moni Gonkopathai, I am a resident of District 1, and candidate for City Council. I don't see the timer going down, so…

1426
04:02:51.570 --> 04:02:53.460
Moni: I don't think you can hear me.

1427
04:02:53.820 --> 04:02:55.980
Moni: Oh, there we go. Okay.

1428
04:02:56.660 --> 04:03:04.309
Moni: My name is Moni Gonkopathai, I'm a resident of District 1 and candidate for City Council. Happy birthday, Mayor Ishii.

1429
04:03:04.980 --> 04:03:08.429
Moni: I found the public comment tonight very enlightening.

1430
04:03:08.700 --> 04:03:13.689
Moni: I hope that these comments and facts are carefully considered by the Council.

1431
04:03:14.040 --> 04:03:18.879
Moni: The extreme harms of tear gas, the fact that gas cannot be contained.

1432
04:03:18.980 --> 04:03:38.039

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Moni: The misuses of these weapons against peaceful protesters in our own city, and the dozens of countries that have banned these types of chemical weapons should be more than enough to lead us to the right decision. Please reject Item 21A and maintain the ban on tear gas in Berkeley.

1433
04:03:38.300 --> 04:03:43.079
Moni: Thank you also to those who spoke up on behalf of the homeless residents of Harrison Street.

1434
04:03:43.280 --> 04:03:55.410
Moni: I urge council members to be present to see the consequences of these decisions, and the devastation that occurs when bulldozers tear apart people's only shelter and belongings. We can do so much better.

1435
04:03:56.140 --> 04:03:57.050
Adena Ishii: Thank you.

1436
04:04:12.150 --> 04:04:14.709
1510****211: Yeah, just to mention that,

1437
04:04:15.110 --> 04:04:19.059
1510****211: My ex-wife and beautiful lady, she had asthma.

1438
04:04:19.620 --> 04:04:21.720
1510****211: That is deadly sentence.

1439
04:04:23.340 --> 04:04:24.439
1510****211: When you…

1440
04:04:25.100 --> 04:04:25.890
TELEPHONE_USER: Dear God.

1441
04:04:26.900 --> 04:04:28.190
Adena Ishii: I think that's fantastic.

1442
04:04:50.230 --> 04:04:54.760
Boardroom: Okay… Focus.

1443

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04:04:56.230 --> 04:05:07.339
Boardroom: So, we, we shut off that last speaker because they had already spoken on this topic, but if you have not yet spoken on this topic and you would like to give a public comment, please raise your hand.

1444
04:05:10.410 --> 04:05:13.320
Boardroom: Okay.

1445
04:05:14.080 --> 04:05:15.449
Boardroom: It's just going in and out, so…

1446
04:05:17.750 --> 04:05:20.549
Boardroom: Okay, we're gonna switch to the owl and hope.

1447
04:05:21.110 --> 04:05:23.260
Boardroom: That the audio works there.

1448
04:05:40.780 --> 04:05:43.779
Owl: Okay, fair, that's so very, very, very…

1449
04:05:46.890 --> 04:05:49.380
Owl: No. No, no, they're under mute.

1450
04:05:49.900 --> 04:05:52.577
Owl: Turn on…

1451
04:06:00.010 --> 04:06:00.710
Owl: Okay.

1452
04:06:32.250 --> 04:06:34.240
Owl: Yeah, it tested.

1453
04:06:52.480 --> 04:06:53.410
Owl: So.

1454
04:11:28.560 --> 04:11:30.479
Paul Buddenhagen: Test, test, test.

1455

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04:12:24.540 --> 04:12:26.990
Owl: We're not bringing mine, actually, right now.

1456
04:12:27.410 --> 04:12:39.219
Owl: Goodbye, Kat.

1457
04:12:42.990 --> 04:12:44.760
Owl: Frustrated.

1458
04:12:56.910 --> 04:13:07.880
Owl: Alright, so we're gonna continue on with the meeting. We're just going through the meeting album. Okay, folks, I'm sorry.

1459
04:13:08.020 --> 04:13:23.179
Owl: Very quiet, because we won't be able to use the microphones on the dais. So we can't have any noise in the audience, because we can't use the dais microphones right now.

1460
04:13:24.230 --> 04:13:27.879
Owl: So, Mayor, I'll start the recording again on the meeting.

1461
04:13:29.220 --> 04:13:31.139
Owl: Now we're recording.

1462
04:13:32.990 --> 04:13:36.060
Brent Blackaby: There's a motion to extend and a second.

1463
04:13:36.060 --> 04:13:42.020
Owl: What extent to what time? To 12 p.m. Okay.

1464
04:13:42.020 --> 04:13:48.000
Brent Blackaby: motion to extend to meeting 12 a.m. Customer Cancer Whiting? Yes.

1465
04:13:48.000 --> 04:13:49.320
Owl: Yes.

1466
04:13:49.320 --> 04:13:58.399

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Brent Blackaby: Yes, Spartlett? No. No. Trega? No. No. Okie? Yes. Yes. Flappy? Yes.

1467
04:13:58.530 --> 04:14:08.050
Owl: Yes. Munifara? No. No. Umber? Yes. Yes. Mayor Ishii? No. No. Motion fails.

1468
04:14:11.450 --> 04:14:25.780
Owl: Can I motion to schedule this for a special meeting on… at Gold Canaan on September 29th? So, Councilmember Gastarani is making a motion to call a special meeting on September 29th.

1469
04:14:26.200 --> 04:14:32.170
Owl: At 4pm. Mark, they… I don't think they can hear us on. Oh, sorry.

1470
04:14:32.170 --> 04:14:34.159
Rashi Kesarwani: on my audio. No.

1471
04:14:34.480 --> 04:14:37.810
Rashi Kesarwani: No, I think we're just using the OWL audio.

1472
04:14:37.810 --> 04:14:38.370
Owl: season.

1473
04:14:38.370 --> 04:14:39.589
Rashi Kesarwani: Oh. Where's that?

1474
04:14:39.590 --> 04:14:44.050
Owl: It's over here. It's on the tape. I see it's coming on the captioning.

1475
04:14:44.660 --> 04:14:50.539
Owl: like the Zoom meeting for us. Okay, so I'd like to motion to schedule a special meeting on Tuesday, September.

1476
04:14:50.540 --> 04:14:53.970
Brent Blackaby: 29th at 4pm, that's the motion. Second.

1477
04:14:55.150 --> 04:14:56.550

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Owl: The progress of the…

1478
04:14:56.810 --> 04:14:57.300
Brent Blackaby: Sorry, K.

1479
04:14:59.100 --> 04:15:03.700
Owl: Mr. City Manager, I just want to see if you have any thoughts about scheduling wrap-up.

1480
04:15:04.180 --> 04:15:05.949
Owl: Eric says he couldn't hear.

1481
04:15:06.840 --> 04:15:12.439
Owl: What time did you want to schedule it for? 4PM. 4 o'clock on the 25th? Yeah. Yeah.

1482
04:15:15.290 --> 04:15:19.049
Owl: Okay. On the motion to schedule a special hearing.

1483
04:15:19.340 --> 04:15:19.969
Brent Blackaby: I said.

1484
04:15:19.970 --> 04:15:27.009
Owl: meeting at 4 p.m. on the 29th for items 21A and 21B. Councilmember Kessarwani? Yes.

1485
04:15:27.430 --> 04:15:28.739
Owl: Kaplan? Aye.

1486
04:15:28.900 --> 04:15:30.380
Brent Blackaby: Bartlett? Yes.

1487
04:15:30.550 --> 04:15:32.619
Brent Blackaby: Drago? No.

1488
04:15:32.740 --> 04:15:33.420
Owl: Okay.

1489

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

04:15:33.420 --> 04:15:35.760
Brent Blackaby: Yes. Yes.

1490
04:15:36.410 --> 04:15:37.660
Owl: Lunapara.

1491
04:15:38.230 --> 04:15:43.609
Owl: Humbert? Yes. Mayor Ishii? Yes. Okay, that motion carries.

1492
04:15:47.610 --> 04:15:56.339
Owl: I just don't think, yeah, I don't think that this is the right way to have a meeting. I feel like this is gonna be… obviously, who's trying to…

1493
04:15:56.480 --> 04:16:15.359
Owl: trying to hear it online, I just feel like this is… the owl is not a good way to do it, so I would much rather have a conversation when the… when the public can hear us. I think that would be better for democracy. Schedule this, we're carrying these items forward to, September 29th at 4 p.m.

1494
04:16:15.560 --> 04:16:19.830
Owl: Okay, so, yeah.

1495
04:16:20.160 --> 04:16:28.209
Owl: Well… There would need to be a motion to adjourn or a year on agenda probable comments.

1496
04:16:29.270 --> 04:16:41.929
Owl: Say that again? Non-agenda public comments. Motion to adjourn is always in orders.

1497
04:16:42.500 --> 04:16:51.529
Owl: Okay, almost to adjourn, because we can't hear. Okay, on the motion to adjourn, Councilor Professor Wani? Yes.

1498
04:16:51.530 --> 04:16:52.420
Brent Blackaby: buy it.

1499
04:16:52.420 --> 04:16:54.469

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Owl: Yes. Right now.

1500
04:16:54.470 --> 04:16:55.919
Brent Blackaby: to your face steps.

1501
04:16:55.920 --> 04:16:56.910
Owl: that piece.

1502
04:16:56.910 --> 04:16:57.700
Brent Blackaby: Yes.

1503
04:16:57.700 --> 04:17:02.400
Owl: Novara, and married you. Yes.

1504
04:17:02.680 --> 04:17:04.990
Owl: Which is a very different part.

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